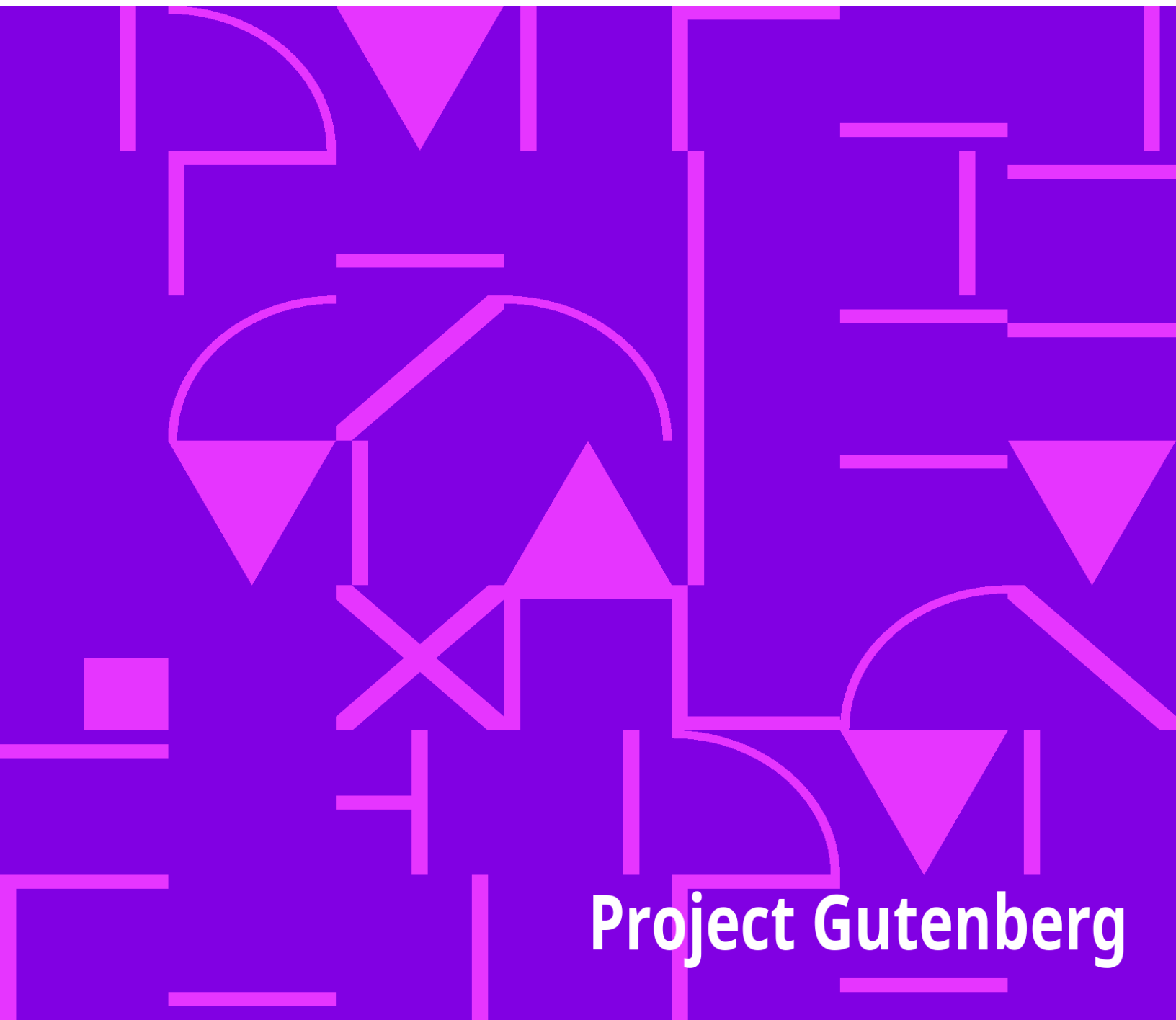


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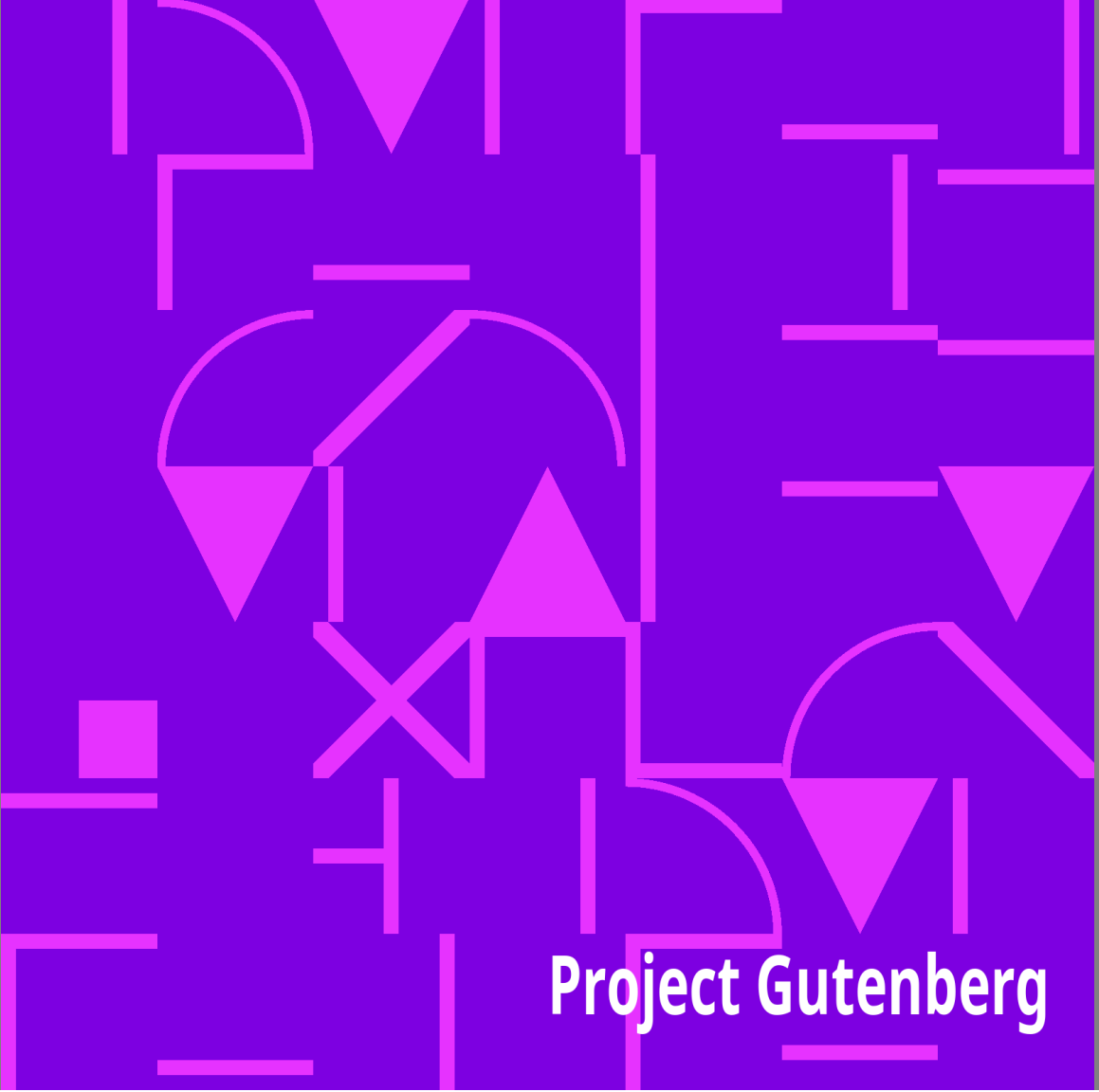
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History of the United States, Volume 3

Elisha Benjamin Andrews



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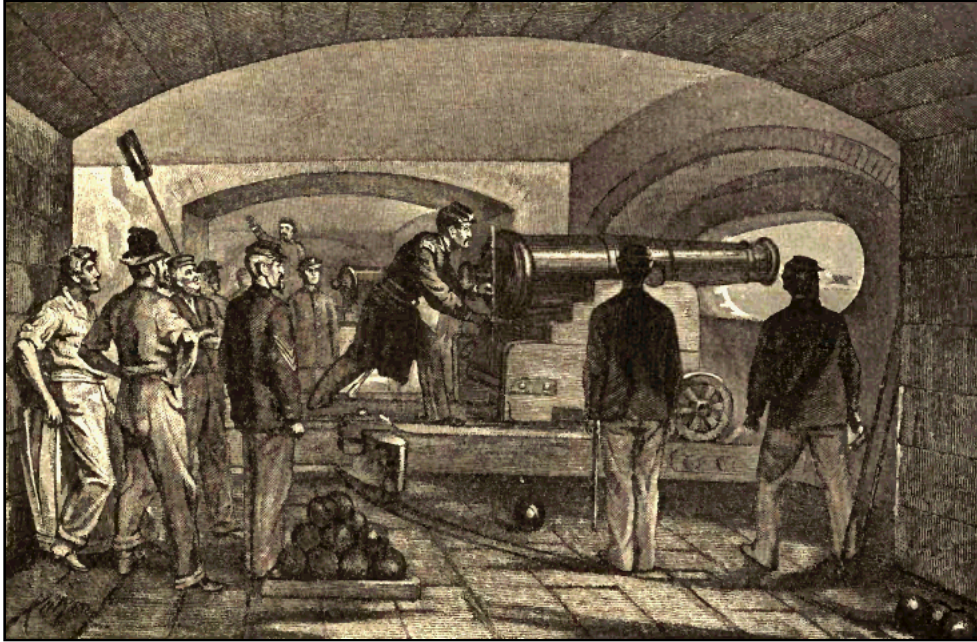
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HISTORY OF THE UNITED STATES



The First Gun Fired from Fort Sumter

HISTORY OF THE UNITED STATES

FROM THE EARLIEST DISCOVERY
OF AMERICA TO THE PRESENT DAY

BY

E. BENJAMIN ANDREWS
PRESIDENT OF BROWN UNIVERSITY

WITH 400 ILLUSTRATION AND MAPS

VOLUME III

NEW YORK
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1896

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PERIOD II.

WHIGS AND DEMOCRATS TILL THE DOMINANCE OF THE SLAVERY CONTROVERSY.

1814-1840

CHAPTER I.

THE WHIG PARTY AND ITS MISSION

[1820]

The term "whig" is of Scotch origin. During the bloody conflict of the Covenanters with Charles II. nearly all the country people of Scotland sided against the king. As these peasants drove into Edinburgh to market, they were observed to make great use of the word "whiggam" in talking to their horses. Abbreviated to "whig," it speedily became, and has in England and Scotland ever since remained, a name for the opponents of royal power. It was so employed in America in our Revolutionary days. Sinking out of hearing after Independence, it reappeared for fresh use when schism came in the overgrown Democratic Party.

The republican predominance after 1800, so complete, bidding so fair to be permanent, drew all the more fickle Federalists speedily to that side. Since it was evident that the new party was quite as national in spirit as the ruling element of the old, the Adams Federalists, those most patriotic, least swayed in their politics by commercial motives, including Marshall, the War Federalists, and the recruits enlisted at the South during Adams's administration, also went over, in sympathy if not in name, to Republicanism. The fortunate issue of the war silenced every carper, and the ten years following have been well named the "era of good feeling."

But though for long very harmonious, yet, so soon as Federalists began swelling their ranks, the Republicans ceased to be a strictly homogeneous party. Incipient schism appeared by 1812, at once announced and widened by the creation of the protective system and the new United States Bank in 1816, and the attempted launching of an internal improvements regime in 1821, all three the plain marks of federalist survival, however men might shun that name. Republicans like Clay,

Calhoun in his early years, and Quincy Adams, while somewhat more obsequious to the people, as to political theory differed from old Federalists in little but name. The same is true of Clinton, candidate against Madison for the Presidency in 1812, and of many who supported him.

[1825]

But to drive home fatally the wedge between "democratic" and "national" Republicans, required Jackson's quarrel with Adams and Clay in 1825, when, the election being thrown into the House, although Jackson had ninety-nine electoral votes to Adams's eighty-four, Crawford's forty-one, and Clay's thirty-seven, Clay's supporters, by a "corrupt bargain," as Old Hickory alleged, voted for Adams and made him President. Hickory's idea--an untenable one--was that the House was bound to elect according to the tenor of the popular and the electoral vote. After all this, however, so potent the charm of the old party, the avowal of a purpose to build up a new one did not work well, Clay polling in 1832 hardly half the electoral vote of Adams in 1828. This democratic gain was partly owing, it is true, to Jackson's popularity, to the belief that he had been wronged in 1825, and to the widening of the franchise which had long been going on in the nation. Calhoun's election as Vice-President in 1828, by a large majority, shows that party crystallization was then far from complete. From about 1834, the new political body thus gradually evolved was regularly called the Whigs, though the name had been heard ever since 1825.

[1830-1833]

The doctrines characteristic of Whiggism were chiefly five:

I. Broad Construction of the Constitution.

This has been sufficiently explained in the chapter on Federalism and Anti-Federalism, and need not be dwelt upon. The whig attitude upon it appears in all that follows.

II. The Bank.

The First United States Bank had perished by the expiration of its charter in 1811. It had been very useful, indeed almost indispensable, in managing the national finances, and its decease, with the consequent financial disorder, was a most terrible drawback in the war. Recharter was, however, by a very small majority, refused. The evils flowing from this perverse step manifesting themselves day by day, a new Bank of the United States, modelled closely after the first, was chartered on April 10, 1816, Clay, Calhoun, and Webster being its chief champions. Republican opponents, Madison among them, were brought around by the plea that war had proved a national bank a necessary and hence a constitutional helper of the Government in its appointed work.

In the management of this second bank there were disorder and dishonesty, which greatly limited its usefulness. This, notwithstanding, was considerable. The credit of the nation was restored and its treasury resumed specie payments. But confidence in the institution was shaken. We shall see how it met with President Jackson's opposition on every

possible occasion. In 1832 he vetoed a bill for the renewal of its charter, to expire in 1836, and in 1833 caused all the Government's deposits in it, amounting to ten million dollars, to be removed. These blows were fatal to the bank, though it secured a charter from Pennsylvania and existed, languishing, till 1839.

III. The Tariff.

Until the War of 1812 the main purpose of our tariff policy had been revenue, with protection only as an incident. During the war manufacturing became largely developed, partly through our own embargo, partly through the armed hostilities. Manufacture had grown to be an extensive interest, comparing in importance with agriculture and commerce. Therefore, in the new tariff of 1816, the old relation was reversed, protection being made the main aim and revenue the incident. It is curious to note that this first protective tariff was championed and passed by the Republicans and bitterly opposed by the Federalists and incipient Whigs. Webster argued and inveighed vehemently against it, appealing to the curse of commercial restriction and of governmental interference with trade, and to the low character of manufacturing populations.

But very soon the tables were turned: the Whigs became the high-tariff party, the Democrats more and more opposing this policy in favor of a low or a revenue tariff. It should be marked that even now the idea of protection in its modern form was not the only one which went to make a high tariff popular. There were, besides, the wish to be prepared for war by the home production of war material, and also the spirit of commercial retortion, paying back in her own coin England's burdensome tax upon our exports to her shores.

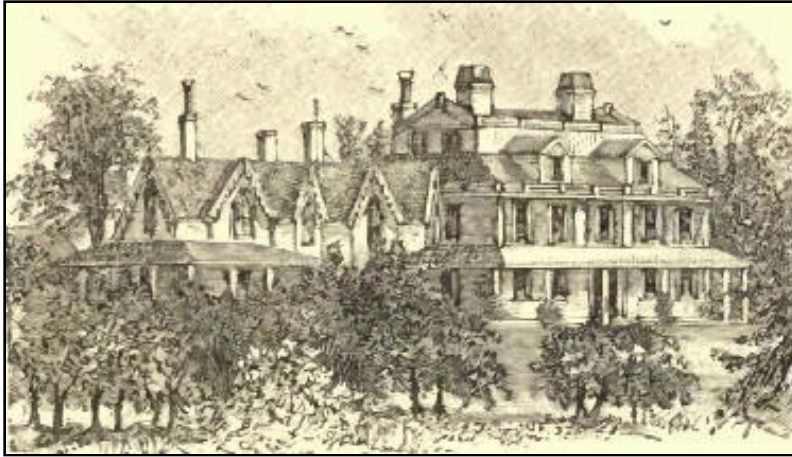
IV. Land.

What may not improperly be styled the whig land policy sprung from the whig sentiment for large customs duties. Cheap public lands, offering each poor man a home for the taking, constantly tended to neutralize the effect of duties, by raising wages in the manufacturing sections, people needing a goodly bribe to enter mills in the East when an abundant living was theirs without money and without price on removing west. As a rule, therefore, though this question did not divide the two parties so crisply as the others, the Whigs opposed the free sale of government land, while the Democrats favored that policy. In spite of this, however, eastern people who moved westward--and they constituted the West's main population--quite commonly retained their whig politics even upon the tariff question itself.

V. Internal Improvements.

It has always been admitted that Congress may lay taxes to build and improve light-houses, public docks, and all such properties whereof the United States is to hold the title. The general improvement of harbors, on the other hand, the Constitution meant to leave to the States, allowing each to cover the expense by levying tonnage duties. The practice for years corresponded with this. The inland commonwealths, however, as they were admitted, justly regarded this unfair unless offset by Government's aid to them in the construction of roads, canals,

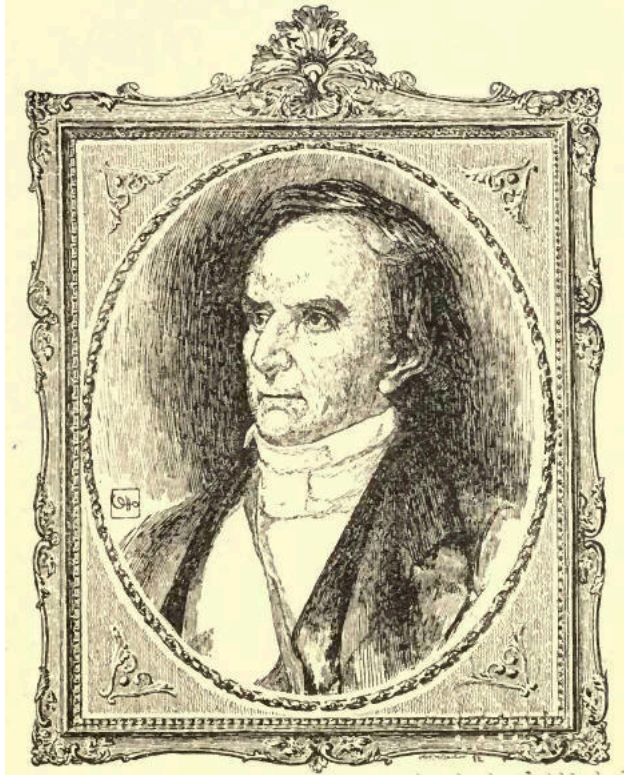
and river ways.



Webster's Home at Marshfield. Mass.

The War of 1812 revealed the need of better means for direct communication with the remote sections of the Union. Transportation to Detroit had cost fifty cents per pound of ammunition, sixty dollars per barrel of flour. All admitted that improved internal routes were necessary. The question was whether the general Government had a right to construct them without amendment to the Constitution.

The Whigs, like the old Federalists, affirmed such right, appealing to Congress's power to establish post-roads, wage war, supervise inter-state trade, and conserve the common defence and general welfare. As a rule, the Democrats, being strict constructionists, denied such right. Some of them justified outlay upon national rivers and commercial harbors under the congressional power of raising revenue and regulating commerce. Others conceded the rightfulness of subsidies to States even for bettering inland routes. Treasury surplus at times, and the many appropriations which, by common consent, had been made under Monroe and later for the old National Road, encouraged the whig contention; but the whig policy had never met general approval down to the time when the whole question was taken out of politics by the rise of the railroad system after 1832. The National Road, meantime, extending across Ohio and Indiana on its way to St. Louis, was made over in 1830 to the States through which it passed.



Daniel Webster. From a picture by Healy at the State Department, Washington.

The Whig Party deserves great praise as the especial repository, through several decades, of the spirit of nationality in our country. It cherished this, and with the utmost boldness proclaimed doctrines springing from it, at a time when the Democracy, for no other reason than that it had begun as a state rights party, foolishly combated these. Yet Whiggism was mightier in theories than in deeds, in political cunning than in statesmanship. It was far too fearful, on the whole, lest the country should not be sufficiently governed. To secure power it allied itself now with the Anti-Masons, strong after 1826 in New England, New York, and Pennsylvania; and again with the Nullifiers of South Carolina, Georgia, and Tennessee, led by Calhoun, Troup, and White. It did the latter by making Tyler, an out-and-out Nullifier, its Vice-President in 1840.

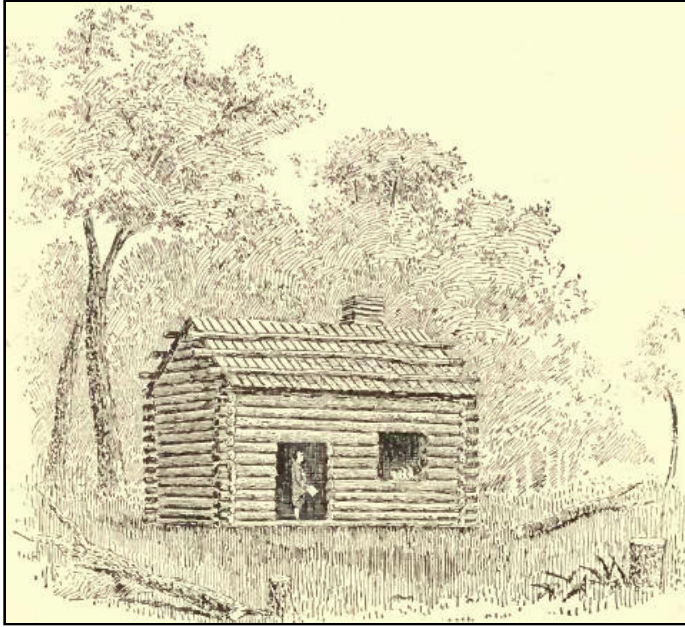
A leading Whig during nearly all his political career was John Quincy Adams, one of the ablest, most patriotic, and most successful presidents this country has ever had. He possessed a thorough education, mainly acquired abroad, where, sojourning with his distinguished father, he had enjoyed while still a youth better opportunities for diplomatic training than many of our diplomatists have known in a lifetime. He went to the United States Senate in 1803 as a Federalist. Disgusted with that party, he turned Republican, losing his place. From 1806 to 1809 he was professor in Harvard College. In the latter year Madison sent him Minister to St. Petersburg. He was commissioner at Ghent, then Minister to England, then Monroe's Secretary of State, then President.



The House in which Henry Clay was Born.

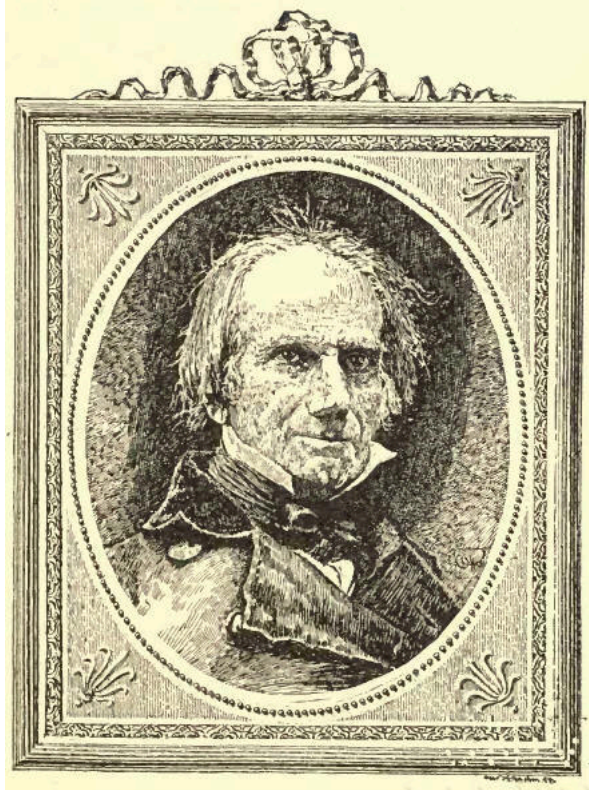
But Mr. Adams's best work was done in the House of Representatives after he was elected to that body in 1830. He sat in the House until his death, in 1848--its acknowledged leader in ability, in activity, and in debate. Friend and foe hailed him as the "Old Man Eloquent," nor were any there anxious to be pitted against him. He spoke upon almost every great national question, each time displaying general knowledge; legal lore, and keenness of analysis surpassed by no American of his or any age.

Webster was, however, the great orator of the party. Reared upon a farm and educated at Dartmouth College, he went to Congress from New Hampshire as a Federalist in 1813. Removing to Boston, he soon entered Congress from Massachusetts, first as representative, then as senator, and from 1827 was in the Senate almost continuously till 1850. He was Secretary of State under Harrison and Tyler, and again in the Taylor-Fillmore cabinet from 1850.



The School-house of the Slashes.

As an orator Webster had no peer in his time, nor have the years since evoked his peer. He was an influential party leader, and repeatedly thought of for President, though too prominent ever to be nominated. On two momentous questions, the tariff and slavery, he vacillated, his dubious action concerning the latter costing him his popularity in New England.



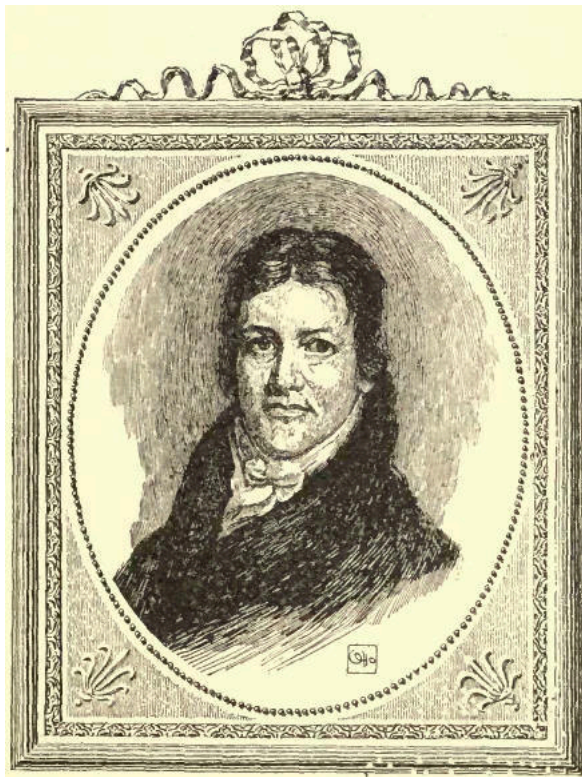
Henry Clay. From a photograph by Rockwood of an old daguerreotype.

Yet in many respects the most interesting figure in the party was Henry Clay. He was born amid the swamps of Hanover County, Va., and had grown up in most adverse surroundings. His father, a Baptist clergyman, died while he was an infant, leaving him destitute. In "The Slashes," as the neighborhood where Clay passed his childhood was called, he might often have been seen astride a sorry horse with a rope bridle and no saddle, carrying his bag of grain to the mill. He had attended only district schools. After obtaining the rudiments of a legal education in Richmond by service as a lawyer's clerk, he removed to Kentucky. He was soon famous as a criminal lawyer, and a little later as a politician. The rest of his life was spent in Congress or cabinet.

Clay's speeches read ill, but were powerful in their delivery. He spoke directly to the heart. As he proceeded, his tall and awkward form swayed with passion. His voice was sweet and winsome. Once Tom Marshall was to face him in joint debate over a salary grab for which Clay had voted. Clay had the first word, and as he warmed to his work Marshall slunk away through the crowd in despair. "Come back," said Clay's haters to him; "you can answer every point." "Of course," replied Marshall, "but I can't get up there and do it now." The common people shouted for Clay as they shouted for neither Webster nor Adams. He had infinite fund of anecdote, remembered everyone he had ever seen, and was kindly to all. John Tyler is said to have wept when Clay failed of the Presidential nomination in the Whig Convention of 1839.

[1840]

Clay's vices and inconsistencies were readily forgiven. He had denounced duelling as barbarous, yet when sharp-tongued John Randolph referred to him and Adams as having, in 1825, formed "the coalition of Blifil and Black George, the combination of the Puritan and the blackleg"--for Clay gambled--Clay challenged him. They met, the diminutive Randolph being in his dressing-gown. Neither was hurt, as Randolph fired in air and Clay was no shot. Being asked why he did not kill Randolph, Clay said: "I aimed at the part of his gown where I thought he was, but when the bullet got there he had moved." In 1842, when Lord Ashburton was in Washington, there was a famous whist game, my lord, with Mr. Crittenden, playing against Clay and the Russian Minister, Count Bodisco, while Webster looked on. "What shall the stake be?" asked his lordship. "Out of deference to Her Majesty," said Clay, "we will make it a sovereign."



John Randolph.
From a picture by Jarvis in 1811, at the New York Historical Society.

Emphatically patriotic, super-eminent in debate, ambitious, adventurous in political diplomacy, a hard worker, incessant in activity for his party, temperate upon the slavery question, whole-souled in every measure or policy calculated to advance nationality, this versatile man may be put down as foremost among the leaders of the Whig Party from its origin till his death.

CHAPTER II.

FLORIDA AND THE MONROE DOCTRINE

[1816]

It was a delicate question after the Louisiana purchase how much territory it embraced east of the Mississippi. Louisiana had under France, till 1762, reached the Perdido, Florida's western boundary at present, and was "retroceded" by Spain to France in 1800 "with the same extent that it had when France possessed it." The United States of course succeeded to whatever France thus recovered. Spain claimed still to own West Florida, the name given by Great Britain on receiving it from France in 1763 to the part of Louisiana between the Perdido and the Mississippi. Spain had never acquired the district from France, but obtained it by conquest from Great Britain during our Revolution.

This claim by Spain, based only on the "retro" in the treaty of 1800, our Government viewed as fanciful, regarding West Florida undoubtedly ours through the Louisiana purchase. Spain was intractable, first of herself, later still more so through Napoleon's dictation. Hence our offer, in Jefferson's time, to avoid war, of a lump sum for the two Floridas was spurned by her. In 1810 and 1811, to save it from anarchy--also to save it from Great Britain or France, now in the whitest heat of their contest for Spain--we occupied West Florida, as certainly entitled to it against those powers, yet with no view of precluding further negotiations with Spain. When in 1812 Louisiana became a State, its eastern boundary ran as now, including a goodly portion of the region in debate.

[1817]

The necessity of acquiring East Florida, too, was more and more apparent. That country was without rule, full of filibusterers, privateers, hostile refugee Creeks and runaway negroes, of whose services the English had availed themselves freely during the war of 1812, when Spaniards and English made Florida a perpetual base for hostile raids into our territory. A fort then built by the English on the Appalachicola and left intact at the peace with some arms and ammunition, had been occupied by the negroes, who, from this retreat, menaced the peace beyond the line. Spain could not preserve law and order here. This was perhaps a sufficient excuse for the act of General Gaines in crossing into Florida and bombarding the negro fort, July 27, 1816. Amelia Island, on the Florida coast, a nest of lawless men from every nation, was in 1817 also seized by the United States with the same propriety. Knowledge that Spain resented these acts encouraged the Floridians. Collisions continually occurred all along the line, finally growing into general hostility. Such was the origin of the First Seminole War.



James Monroe. From a painting by Gilbert Stuart--now the property of T. Jefferson Coolidge.

[1818]

December, 1817, Jackson was placed in command in Georgia. To clear out the filibusterers, the chief source of the Indians' discontent ever since before the Creek War, the hero of New Orleans, mistakenly supposing himself to be fortified by his Government's concurrence, boldly took forcible possession of all East Florida. Ambrister and Arbuthnot, two officious English subjects found there, he put to death.

This procedure was quite characteristic of Old Hickory. He acted upon the theory that by the law of nations any citizen of one land making war upon another land, the two being at peace, becomes an outlaw. International law has no such doctrine, and most likely the maxim occurred to Jackson rather as an excuse after the act than in the way of forethought. Nor was it ever proved that the two victims were guilty as Jackson alleged. With him this probably made little difference. Having undertaken to quiet the Floridian outbreaks he was determined to accomplish his end, whatever the consequences of some of his means.

With the country the New Orleans victor, who had now dared to hang a British subject, was ten times a hero, but the deed confused and troubled Monroe's cabinet not a little. Calhoun wished General Jackson censured, while all his cabinet colleagues disapproved his high-handed acts and stood ready to disavow them with reparation. On this occasion Jackson owed much to one whom he subsequently hated and denounced, viz.,

Quincy Adams, by whose bold and acute defence of his doubtful doings, managed with a fineness of argument and diplomacy which no then American but Adams could command, he was formally vindicated before both his own Government and the Governments of England and Spain.

The posts seized had of course to be given up, yet our bold invasion had rendered Spain willing at last to sell Florida, while Great Britain, wishing our countenance in her opposition to the anti-progressive, misnamed Holy Alliance of continental monarchs, concurred. Spain after all got the better of the bargain, as we surrendered all claim to Texas, which the Louisiana purchase had really made ours.

[1823]

The Florida imbroglio nursed to its first public utterance a sentiment which has ever since been spontaneously taken as a principle of American public policy, almost as if it were a part of our law itself. Spain's American dependencies had been sensible enough to avail themselves of that land's distraction in Napoleon's time, to set up as states on their own account. She naturally wanted them back. Ferdinand VII. withheld till 1820 his signature of the treaty ceding Florida, in order to prevent--which, after all, it did not--our recognition of these revolted provinces as independent nations. Backed by the powerful Austrian minister, Metternich, and by the Holy Alliance, France, having aided Ferdinand to suppress at home the liberal rebellion of 1820-23, began to moot plans for subduing the new Spanish-American States. Great Britain opposed this, out of motives partly commercial, partly philanthropic, partly relating to international law, yet was unwilling so early to recognize the independence of those nations as the United States had done.

Assured at least of England's moral support, President Monroe in his message of December, 1823, declared that we should consider any attempt on the part of the allied monarchs "to extend their system to any portion of this hemisphere as dangerous to our peace and safety," and any interposition by them to oppress the young republics or to control their destiny, "as a manifestation of an unfriendly disposition toward the United States." This, in kernel, is the first part of Monroe's doctrine.

The second part added: "The American continents, by the free and independent condition which they have assumed and maintain, are henceforth not to be considered as subjects for future colonization by any European powers." The meaning of this was that the mere hap of first occupancy on the continent by the citizens of any country would not any longer be recognized by us as giving that country a title to the spot occupied.

These important doctrines--for though akin in principle they are really two--were no sudden creation of individual thought, but the result rather of slow processes in the public mind. Germs of the first are traceable to Washington; express statements of both, yet not essentially detracting from Monroe's originality, to Jefferson. Both were put in form by Quincy Adams, Monroe's Secretary of State. Especially Monroe's, we believe, is the second, a resolution to which Russia's advance down the Pacific coast, and more still the recent vexations from the

proximity of Spain in Florida, had pushed him.

CHAPTER III.

THE MISSOURI COMPROMISE

Louisiana having become a State in 1812, that portion of the purchase north of the thirty-third degree took the name of the Missouri Territory. St. Louis was its centre of population and of influence.

[1818]

Being found in this extensive domain at the purchase, slavery had never been hindered in its growth. It had therefore taken firm root and was popular. The application, early in 1818, of the densest part of Missouri Territory for admission into the Union as a slave State, called attention to this threatening status of slavery beyond the Mississippi, and occasioned in Congress a prolonged, able, angry, and momentous debate. Jefferson, still alive, wrote, "The Missouri question is the most portentous which has ever threatened the Union. In the gloomiest hour of the Revolutionary War I never had apprehensions equal to those which I feel from this source."

To see the bearing of the tremendous question thus raised, we have need of a retrospect. Property in man is older than history and has been nearly universal. It cannot be doubted that in an early stage of human development slavery is a means of furthering civilization. Negro slavery originated in Africa, spread to Spain before the discovery of America, to America soon after, and from the Spanish colonies to the English. The first notice we have of it in English America is that in 1619 a Dutch ship landed twenty blacks at Jamestown for sale. The Dutch West India Company began importing slaves into Manhattan in 1626. There were slaves in New England by 1637. Newport was subsequently a great harbor for slavers. Georgia offered the strongest resistance to the introduction of the system, but it was soon overcome. Till about 1700, Virginia had a smaller proportion of slave population than some northern colonies, and the change later was mostly due to considerations not of morality but of profit. Anti-slavery cries were indeed heard from an early period, but they were few and faint. Penn held slaves, though ordering their emancipation at his death. Whitfield thought slavery to be of God. But its most culpable abettor was the English Government, moved by the profits of the slave trade. A Royal African Company, with the Duke of York, afterward James II., for some time its president, was formed to monopolize this business, which monarchs and ministries furthered to the utmost of their power.

Thus the Revolution found slavery in all the colonies, north as well as south. But it was then, so far south as Virginia, thought to be an evil. That commonwealth had passed many laws to restrain it, but the King had commanded the Governor not to assent to any of them. The Legislature, replying, stigmatized the traffic as inhuman and a threat to the very existence of the colony. Hostility extended from the trade to slavery itself. Jefferson was for emancipation with deportation, and trembled for his country as he reflected upon the wrong of slavery and the

justice of God. Patrick Henry, George Mason, Peyton Randolph, Washington, Madison, in a word all the great Virginians of the time held similar views.

The Quakers of Pennsylvania were, however, the most aggressive of slavery's foes. So early as 1775 a society, the first in America if not in the world for promoting its abolition, was formed in Pennsylvania. In 1789 it was incorporated, with Franklin for president. Similar organizations soon rose in several northern States, numbering among their members many of the most eminent men in the land. The British Abolition Society, formed in 1787, and the labors of Wilberforce, Clarkson, and Zachary Macaulay against the slave trade in the West Indies, had influence here, as had still more the French Assembly's bold proclamation of the Rights of Man.

The Ordinance of 1787 for the Northwest Territory marked a most decisive point in the history of slavery. By its decree, in Jefferson's language, there was never to be either slavery or involuntary servitude in the said territory otherwise than in punishment for crimes. It is to the everlasting honor of the southern members then in the Continental Congress that they all voted for this inhibition. Virginia, whose assent as a State was necessary to its validity, she having at this time rights over much of the domain in question, also concurred. Whatever the strictly legal weight of this prohibition over the immense Louisiana purchase, it certainly aided much in confirming freedom as the presupposition and maxim of our law over all our national territory.

Vermont had never recognized slavery save to prohibit it in its first constitution. In New Hampshire it existed but nominally. The Massachusetts constitution of 1780 virtually ended it in that State. Gradual abolition statutes passed in Pennsylvania in 1780, in Rhode Island and Connecticut in 1784. The constitution made it possible to forbid the importation of slaves in 1808. A national law to that effect was passed in 1807, making the trade illegal and affixing to it heavy penalties. The American Colonization Society was formed in 1816 for the purpose of negro deportation. It did little of this, but rendered some service toward carrying out the act against slave importation. A new law in 1820, which made this traffic piracy, punishable with death, was partly due to its influence. Also many, like Birney, Gerrit Smith and the Tappans, who began as colonizationists, subsequently became abolitionists.

Notwithstanding all these influences slavery increased in strength every year. South Carolina and Georgia were finding it exceedingly profitable for cotton and rice culture, and the income from slave traffic into the vast opening lands of Tennessee and Kentucky constituted an irresistible temptation. In spite of the law of 1807 and of the indescribable horrors of the business, even the foreign slave trade went on. The institution found many defenders in the Federal Convention of 1787, and in the first and subsequent Congresses. The pleas began to be raised, so current later, that the negro was an inferior being, slavery God's ordinance, a blessing to slaves and masters alike, and emancipation a folly. Now began also that policy of bravado by which, for sixty years, the friends of slavery bullied their opponents into shameful inaction upon that accursed thing politically as well as morally, which was so nearly to cost the nation its life. Thus stood matters when the Missouri

Compromise was mooted in the national Legislature.

We hardly need say that this strife ended in a compromise. Missouri was created a slave State, balanced by Maine as a free State, but at the same time slavery was to be excluded forever from all the remainder of the Louisiana purchase north of 36 degrees 30 minutes, the southern line of Virginia and Kentucky as well as of Missouri itself. The land between Missouri and Louisiana had been in 1819 erected into the "Territory of Arkansas."

In the memorable discussion over this issue, involving the country as well as Congress, two sorts of argumentation were heard in favor of the suit of Missouri. The genuine pro-slavery men urged the sacredness of property as such, and the special sacredness of property-right in slaves as tacitly guaranteed by the Constitution. They also made much of the third article of the Louisiana purchase treaty. This read as follows:

"The inhabitants of the ceded territory shall be incorporated in the Union of the United States and admitted as soon as possible, according to the principles of the Federal Constitution, to the enjoyment of all the rights, advantages, and immunities of citizens of the United States; and in the meantime they shall be maintained and protected in the free enjoyment of their liberty, property, and the religion which they profess."

There were with these, men who acted from mere policy, thinking it best to admit the slave State because of the difficulty and also the danger to the Union of suppressing slavery there. They appealed as well to the sacred compromises in the Constitution, meaning the permission at first to import slaves, the three-fifths rule for slave representation in Congress, and the fugitive slave clause. They spoke much of the necessity of preserving the balance of power within the Union, and of Congress's inaction as to slavery in the Louisiana purchase hitherto, and also in Florida. These arguments won many professed foes of slavery, as Jefferson, Madison, Monroe and Quincy Adams. In all Congress Clay was the most earnest pleader for the compromise.

To all these arguments the unbending friends of free soil replied that property right was subordinate to the national good, and that Congress had full power over territorial institutions and should never have permitted slavery to curse the domain in question. If it had committed error in the past, that could not excuse continuance in error. The terms of the Louisiana purchase, it was further urged, could not, even if they had been meant to do so, which was not true, detract from this sovereign power. It was pointed out that in every case in which a State had been admitted thus far, Congress had prescribed conditions. It was boldly said, still further, that if slavery threatened disunion unless allowed its way, it ought all the more to be denied its way.

The chief strength of slavery in this crisis lay in the distressing practical difficulty, if the prayer of Missouri were refused, of dealing with slaves and slave proprietorship there, and of quieting a numerous and spirited population bent upon statehood and slavery together. The more decided foes of slavery did not sufficiently consider these complications. Nor did they duly reflect upon the sweeping triumph which freedom had withal secured in the pledge that the vast bulk of the Louisiana purchase should be forever free. The pledge was indeed broken

in 1854, but not until such a sense of its sacredness had been impressed upon the country that the breach availed slavery nothing.

CHAPTER IV.

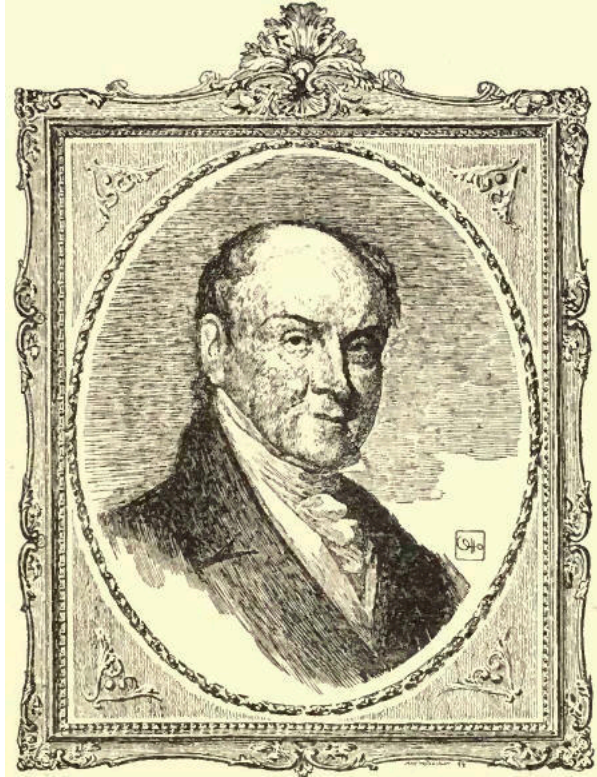
THE GREAT NULLIFICATION

[1816-1828]

The tariff rates of 1816 on cottons and woollens were to be twenty-five per cent. for three years, after that twenty. Instead of this the cotton tariff was in 1824 replaced at twenty-five per cent., the same as that upon woollens costing thirty-three and a third cents or less per square yard; woollens over this price bearing thirty per cent. Wool, which by the tariff of 1816 was free, now bore, some grades fifteen, some twenty, some thirty per cent. Iron duties were put up in 1818 and again in 1824, from which date for ten years they ranged between forty and one hundred per cent. The whole tendency of tariff rates was strongly upward. The duty upon all dutiables averaged between 1816 and 1824 only twenty-four and a half per cent; from 1824 to 1828 the average was thirty-two and a half per cent. Importation remained copious, notwithstanding, which made the cry for protection louder than ever.

[1828]

From Quincy Adams's presidency the tariff question becomes on the one hand political, dividing Whigs from Democrats about exactly, which had never been the case before, and on the other, sectional, the West, the Centre, and now also the East, pitted against the solid South, except Louisiana. The year 1824 heard Webster's last speech for free trade and saw Calhoun's and Jackson's last vote for protection. However, so strong was the protectionist sentiment in the XXth Congress, though democratic, that free-traders could hope to defeat the new tariff bill of 1828 only by rendering it odious to New England. They therefore conspired to make prohibitive its rates for Smyrna wool, and nearly so those on iron, hemp, and cordage for ship-building; also on molasses, the raw material for rum, whereon no drawback was longer to be allowed if it was exported.



John Quincy Adams. From a picture by Gilbert Stuart.

The Whigs had arranged, to be now passed, a series of minimum rates on woollens, by which all costing over fifty cents a square yard were to pay as if costing \$2.50, and all over this as if costing \$4.00. The rate was to be forty per cent. the first year, forty-five the second, and fifty thereafter.

This illustrates the famous "minimum principle," which has played such a figure in all our tariff history since 1816, its effect being always to make the tariff much higher than it seems. Thus in the case before us, most of the woollens then imported cost about ninety cents. If based on this price, the tariff would be thirty-six per cent., but if based on \$2.50 as the price, it would mount up to one hundred and ten per cent. To prevent this and to render the bill still more unpalatable to the Whigs, the Democrats introduced a dollar "minimum," so that the tariff on the bulk of our imported woollens, costing, as just stated, about ninety cents, would come in at forty-four and four-tenths per cent.

But as this was after all more vigorous protection than woollens had before received, amounting, through minima, in some cases to over one hundred per cent., sixteen out of the thirty-nine New England members, led by Webster, accepted this universally odious tariff bill--the Tariff of Abominations, it was called--as the preferable evil, and, aided by a few Democrats in each house, made it a law. The average duty on dutiables was now about forty-three and a third per cent.

No one can question that this high tariff worked injustice to the South. It forced from her an undue share of the national taxes, as well as

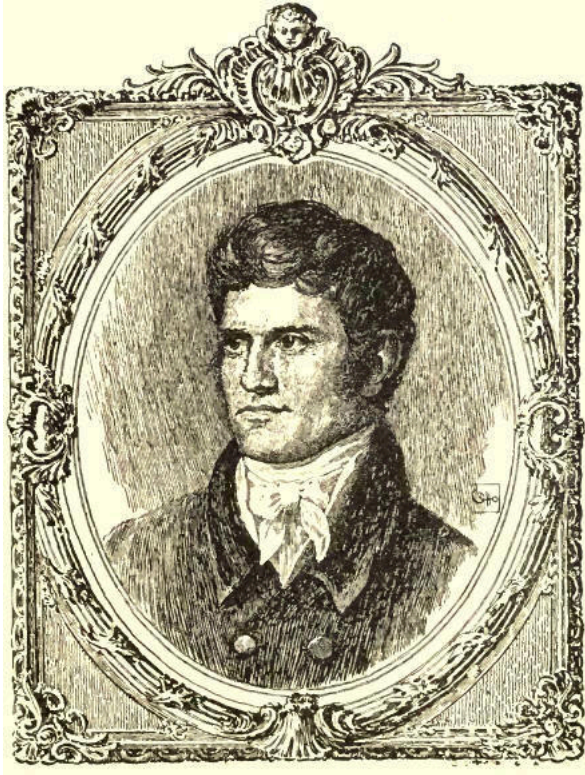
extensive tribute to northern manufacturers. But in resenting the evil she exaggerated it, mistakenly referring all the relative decrease in her prosperity to tariff legislation, when a great part of it was due simply to slavery. The South complained that selfishness and political ambition, not patriotism or reason, determined the dominant policy, and there was of course some truth in this. Moreover, as New England now favored it, this policy bade fair to become permanent, and since the tariff bills did not announce protection as their purpose, the constitutionality of them could not be gotten before the courts.

[1830]

Nearly all the southern Legislatures consequently denounced the tariff as unjust and as hostile to our fundamental law. Most of them were, however, prudent enough to suggest no illegal remedies. Not so with fiery South Carolina, where a large party, inspired by Calhoun, proposed a bold nullification of the tariff act, virtually amounting to secession. At a dinner in this interest at Washington, April 13, 1830, Calhoun offered the toast: "The Union; next to our liberty the most dear; only to be preserved by respecting the rights of the States."

[1832]

John C. Calhoun was now, except, perhaps, Clay, the ablest and most influential politician in all the South. Born in South Carolina in 1782, of Irish-Presbyterian parentage, though poor and in youth ill-educated like Clay and Jackson, his energy carried him through Yale College, and through a course of legal study at Litchfield, Conn., where stood the only law school then in America. November, 1811, found him a member of Congress, on fire for war with Britain. Monroe's Secretary of War for seven years from 1817, he was in 1825 elected Vice-President, and reelected in 1828. He had meantime turned an ardent free-trader, and seeing the North's predominance in the Union steadily increasing, had built up a nullification theory based upon that of the Virginia and Kentucky resolutions and the Hartford Convention, and upon the history of the formation of our Constitution. He had worked out to his own satisfaction the untenable view that each State had the right, not in the way of revolution but under the Constitution itself--as a contract between parties that had no superior referee--to veto national laws upon its own judgment of their unconstitutionality.



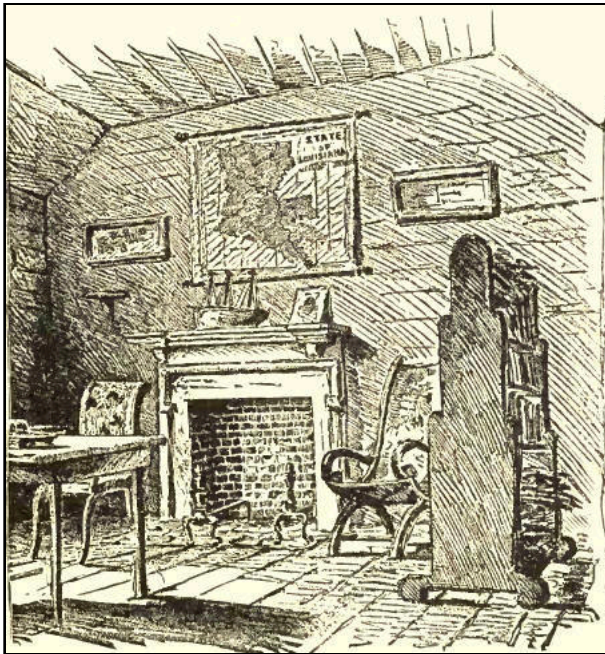
John C. Calhoun
From a picture by King at the Corcoran Art Gallery.

On this doctrine South Carolina presently proceeded to act. November 24, 1832, the convention of that State passed its nullification ordinance, declaring the tariff acts of 1828 and 1832 "null, void, and no law," defying Congress to execute them there, and agreeing, upon the first use of force for this purpose, to form a separate government.

This was the quintessence of folly even had good theory been behind it. The tone of the proceeding was too hasty and peremptory. The decided turn of public opinion and of congressional action in favor of large reduction in duties was ignored. But the theory appealed to was clearly wrong, and along with its advocates was sure to be reprobated by the nation. A precious opportunity effectively to redress the evil complained of was wantonly thrown away. Worst of all, from a tactical point of view, South Carolina had miscalculated the spirit of President Jackson. At the dinner referred to, his toast had been the memorable words: "Our Federal Union; it must be preserved." Men now saw that Old Hickory was in earnest. General Scott, with troops and warships, was ordered to Charleston.

The nullifiers receded, a course made easier by Clay's "compromise tariff" of 1833, gradually reducing duties for the next ten years, and enlarging the free list. From all duties of over twenty per cent. by the act of 1832, one-tenth of the excess was to be stricken off on September 30, 1835, and another tenth every other year till 1841. Then one-half the excess remaining was to fall, and in 1842 the rest, so that the end of the last named year should find no duty over twenty per cent.

This episode, threatening as it was for a time, drew in its train results the most happy, revealing with unprecedented vividness to most, both the original nature of the Constitution as not a compact, and also the might which national sentiment had attained since the War of 1812. The doctrine of state rights was seen to have gradually lost, over the greater part of the country, all its old vitality. Nearly every State Legislature condemned the South Carolina pretensions, Democrats as hearty in this as Whigs. Jackson's proclamation against them--impressive and unanswerable--ran thus: "The Constitution of the United States forms a government, not a league; and whether it be formed by compact between the States, or in any other manner, its character is the same I consider the power to annul a law of the United States incompatible with the existence of the Union, contradicted expressly by the letter of the Constitution, and destructive of the great object for which it was formed. . . . Our Constitution does not contain the absurdity of giving power to make laws, and another power to resist them. To say that any State may at pleasure secede from the Union is to say that the United States are not a nation."



Calhoun's Library and Office.

The congressional debates which the nullification question evoked, among the ablest in our parliamentary history, held the like high national tenor. Calhoun's idea, though advocated by him with consummate skill, was shown to be wholly chimerical. The doughty South Carolinian, from this moment a waning force in American politics, was supported by Hayne almost alone, the arguments of both melting into air before Webster's masterful handling of constitutional history and law. Not questioning the right of revolution, admitting the general government to be one of "strictly limited," even of "enumerated, specified, and particularized powers," the Massachusetts orator made it convincingly apparent that the

Calhoun programme could lead to nothing but anarchy. It was seen that general and state governments emanate from the people with equal immediacy, and that the language of the clause, "the Constitution and the laws of the United States made in pursuance thereof" are "the supreme law of the land, anything in the constitution or laws of any State to the contrary notwithstanding," means precisely what it says. To this language little attention had apparently been paid till this time.

CHAPTER V.

MINOR PUBLIC QUESTIONS OF JACKSON'S "REIGN"

[1828]

Andrew Jackson was born March 15, 1767. His parents had come from Carrick-fergus, Ireland, two years before. He was without any education worthy the name. As a boy, he went into the War for Independence, and was for a time a British prisoner. He studied law in North Carolina, moved west, and began legal practice at Nashville. He was one of the framers of the Tennessee constitution in 1796. In 1797 he was a senator from that State, and subsequently he was a judge on its supreme bench. His exploits in the Creek War, the War of 1812, and the Seminole War are already familiar. They had brought him so prominently and favorably before the country that in 1824 his vote, both popular and electoral, was larger than that of any other candidate. As we have seen, he himself and multitudes throughout the country thought him wronged by the election over him of John Quincy Adams. This contributed largely to his popularity later, and in 1828 he was elected by a popular vote of 647,231, against 509,097 for Adams. Four years later he was reelected against Clay by a still larger majority. Nor did his popularity to any extent wane during his double administration, notwithstanding his many violent and indiscreet acts as President.



Andrew Jackson. From a photograph by Brady.

Much of Jackson's arbitrariness sprung from a foolish whim of his, taking his election as equivalent to the enactment of all his peculiar ideas into law. Ours is a government of the people, he said; the people had spoken in his election, and had willed so and so. Woe to any senator or representative who opposed! This was, of course, to mistake entirely the nature of constitutional government.

After all, Jackson was by no means the ignorant and passionate old man, controlled in everything by Van Buren, that many people, especially in New England, have been accustomed to think him. Illiterate he certainly was, though Adams exaggerated in calling him "a barbarian who could not write a sentence of grammar and could hardly spell his own name." He was never popular in the federalist section of the Union. Yet with all his mistakes and self-will, often inexcusable, he was one of the most patriotic and clear-headed men who ever administered a government. If he resorted to unheard-of methods within the law, very careful was he never to transgress the law.

The most just criticism of Jackson in his time and later related to the civil service. It was during his administration that the cry, "turn the rascals out," first arose, and it is well known that, adopting the policy of New York and Pennsylvania politicians in vogue since 1800, he made nearly a clean sweep of his political opponents from the offices at his disposal. This was the more shameful from being so in contrast with the policy of preceding presidents. Washington removed but two men from office, one of these a defaulter; Adams ten, one of these also a defaulter; Jefferson but thirty-nine; Madison five, three of them

defaulters; and Monroe nine. The younger Adams removed but two, both of them for cause.

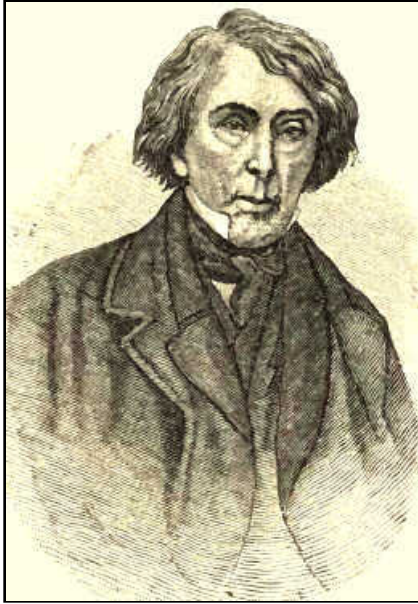
[1830]

Yet of Jackson's procedure in this matter it can be said, in partial excuse, so bitter had been the opposition to him by officeholders as well as others, that many removals were undoubtedly indispensable in order to the efficiency of the public service. It is not at all necessary for the rank and file of the civil service to be of the same party with the Chief Magistrate, but it is necessary that they should not be so utterly opposed to him as to feel bound in conscience to be working for his defeat.

The fine art of party organization, semi-military in form, has come to us from Jackson and his workers. Before his time, candidates for high state offices had usually been nominated by legislative caucuses, and those for national posts by congressional caucuses. State party conventions had been held in Pennsylvania and New York. Soon after 1830 such a device for national nominations began to be thought of, and the history of national party conventions may be said to begin with the campaign of 1832.

[1832]

Jackson's dearest foe while in office was the United States Bank. Magnifying the dishonesty which had, as everyone knew, disgraced its management, he attacked it as a monster, an engine of the moneyed classes for grinding the face of the poor. Like Jefferson, like Madison at first, he disbelieved in its constitutionality. In his first message and continually in his official utterances he inveighed against it as a public danger, using its funds and patronage for party ends. This made him unpopular with many who had been his friends, so that in the campaign of 1832 Clay forced the bank question to the front as one on which Jackson's attitude would greatly advantage the whig cause. He accepted Clay's challenge with pleasure, and from this moment gave the bank no quarter. We may call the contest of this year a pitched battle between Jackson and the bank.



Roger B. Taney.

[1833]

In 1832 he vetoed a bill for a renewal of its charter, which was to expire in 1836, and in 1833 he proceeded to break it by removing the United States deposits which it held. Such removal was by law within the power of the Secretary of the Treasury. Secretary McLane refused to execute Jackson's will. He was removed and Duane appointed. Then Duane was removed and Roger B. Taney appointed, who obeyed the President's behest. The bank was emptied by checking out the public money as wanted, at the same time depositing no more, the funds being instead placed in "pet" state banks, as they were called because of the government favor thus shown them.

The financial distress rightly or wrongly ascribed to this measure throughout the country, instead of injuring Jackson, probably, on the whole, made him still more popular, as showing the power of the bank. When Congress met in 1833, the Senate passed a vote of censure upon him for what he had done. Rancorous wranglings and debates pervaded Congress and the whole land. After persistent effort by Jackson's bosom friend, Senator Benton, of Missouri, this censure-vote was expunged by the XXIVth Congress, second session, January 16, 1837. This was before Jackson left office, and he accounted it the greatest triumph of his public life.

[1830]

Jackson was somehow fortunate in dealing with foreign nations. It was he who recovered for American ships that British West Indian trade which had been so long denied. Negotiations were opened with Great Britain, which, in 1830, had the result of placing American vessels in the British West Indian ports at an equal advantage with British vessels sailing thither from the United States--terms which, through the

contiguity of those islands to us, gave us a trade there better than that of any other nation. This diplomacy brought the administration much applause.

When Jackson became President, France was still in our debt on account of her spoliations upon American commerce after the settlement of 1803. The matter had been in negotiation ever since 1815, but hitherto in vain. Jackson took it up with zeal, but with his usual apparent recklessness. A treaty had been concluded in 1831, as a final settlement between the two countries, binding France to pay twenty-five million francs and the United States to pay one and one-half million. The first instalment from France became due February 2, 1833, but was not paid. Jackson's message to Congress in 1834, not an instalment having yet been received, contained a distinct threat of war should not payment begin forthwith. He also bade Edward Livingston, minister at Paris, in the same contingency to demand his passports and leave Paris for London.

[1835]

Most public men, even those in his cabinet, thought this action foolhardy and useless; but Quincy Adams, neither expecting nor receiving any thanks for it, just as in the Seminole War difficulty, nobly stood up for the President. A telling speech by him in the House led to its unanimous resolution, March 2, 1835, that the execution of the treaty should be insisted on. The French ministry blustered, and for a time diplomatic relations between the two countries were entirely ruptured. But France, affecting to see in the message of 1835, though voiced in precisely the same tone as its predecessor, some apology for the menace contained in that, began its payments. This money, as also all due from the other states included in Napoleon's continental system, was paid during Jackson's administration, a result which brought him and his party great praise, not more for the money than for the respect and consideration secured to the United States by insistence upon its rights. The President's message to Congress in 1835 announced the entire extinguishment of the public debt--the first and the last time this has occurred in all our national history.

An important measure touching the hard-money system of our country was passed in large part through the influence of President Jackson. By the Mint Law of 1792 our silver dollar was made to contain three hundred and seventy-one and a quarter grains of fine silver, or four hundred and sixteen of standard silver. The amount of pure silver in this venerable coin has remained unchanged ever since; only, in 1837, by a reduction of the alloy fraction to exactly one-tenth, the total weight of the coin became what it now is, four hundred and twelve and a half grains, nine-tenths fine. The same law of 1792 had given the gold dollar just one-fifteenth the weight of the silver dollar. This proportion, which Hamilton had arrived at after careful investigation characteristic of the man, was exactly correct at the time, but within a year, as is now known, on account of increase in the relative value of gold, the gold dollar at fifteen to one became more valuable than its silver mate. The consequence was that the gold brought to the United States mint for coinage fell off year by year, until some of the years between 1820 and 1830 it had been almost zero. Gold money had nearly ceased to circulate.

[1834-1836]

Jackson resolved to restore the yellow metal to daily use. In this he was opposed by many Whigs, who, so zealous were they for the United States Bank, had become paper money men. The so-called Gold Bill was carried through Congress in 1834, changing the proportion of silver to gold in our currency from fifteen to one to sixteen to one. It should have been fifteen and a half to one. Now gold in its turn was over-valued, so that silver gradually ceased to circulate, as gold had almost ceased before. This result was made worse after 1848, when there was a still further appreciation of silver through the discovery of gold in California and Australia. Silver dollars did not again circulate freely in the country until 1878, though they were full legal tender till 1873. Gold, on the other hand, was everywhere seen after 1834, though not abundant in circulation, owing to the large amounts of paper money then in use.

In 1836 the President ordered his Secretary of the Treasury to put forth the famous Specie Circular, declaring that only gold, silver, or land scrip should be received in payment for public lands. The occasion of this was that while land sales were very rapidly increasing, the receipts hitherto had consisted largely in the notes of insolvent banks. Land speculators would organize a bank, procure for it, if they could, the favor of being a "pet" bank, issue notes, borrow these as individuals and buy land with them. The notes were deposited, when they would borrow them again to buy land with, and so on. As there was little specie in the West, the circular broke up many a fine plan, and evoked much ill-feeling. Gold was drawn from the East, where, as many of the banks had none too much, the drain caused not a few of them to collapse. The condition of business at this time was generally unsound, and this westward movement of gold was all that was needed to precipitate a crisis. A crisis accordingly came on soon after, painfully severe. It is unfair, however, to arraign Jackson's order as wholly responsible for the evils which accompanied this monetary cataclysm. It was rather an occasion than the cause.

CHAPTER VI.

THE FIRST WHIG TRIUMPH

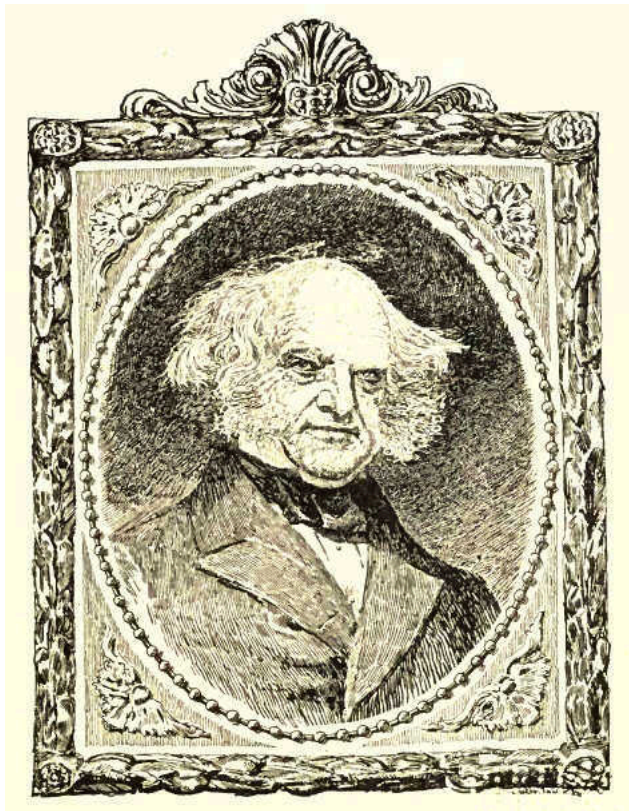
[1837]

Partly Jackson's personal influence, partly his able aides, partly favoring circumstances had, during his administrations, brought the Democracy into excellent condition, patriotic, national in general spirit, with a creed that, however imperfect--close construction being its integrating idea--was, after all, definite, consistent, and thoughtful. Yet in 1840 the Democrats, who four years before had chosen Van Buren by an electoral vote of 170 to 73, had to surrender, with the same Van Buren for candidate, to the Whigs by a majority of 234 electoral votes to 60; only five States, and but two of them northern, going for the democratic candidate.

There were several causes for this defeat. Jackson had made many enemies as well as many friends, some of these within his own party, while the

entire opposition to him was indescribably bitter on account of the personal element entering into the struggle. The commendably national spirit of the Whig Party told well in its favor. Upon this point its attitude proved far more in accord with the best sentiment of the nation than that of the Democracy, sound as the latter was at the core and nobly as its chief had behaved in the nullification crisis.

More influential still was the financial predicament into which on Jackson's retirement his successor and the country were plunged. The commercial distress which seemed to spring from Jackson's measures was now first fully realized. Anger and pain from the death of the bank had not abated. Ardent hatred prevailed toward the "pet" banks, extending to the party whose darlings they were, while the Specie Circular was held to have ruined most of the others. The subsequent legislation for distributing the treasury surplus among the States, by removing the deposits from the pet banks, destroyed many of these as well. They had been using this government money for the discount of loans to business men, and were not in condition instantly to pay it back. Hence the panic of 1837. First the New York City banks suspended, soon followed by the others throughout that State, all sustained in their course by an act of the Legislature. Suspension presently occurred everywhere else. The financial pressure continued through the entire summer of 1837, banks, corporations, and business men going to the wall, and all values greatly sinking. Boston suffered one hundred and sixty-eight business failures in six months.



Martin Van Buren.
From a photograph by Brady.

One of Van Buren's earliest acts after assuming office was to call an extra session of Congress for September 4, 1837, to consider the financial condition of the country. When it convened, an increase of the whig vote was apparent, though the Democrats were still in the majority. On the President's recommendation, agitation now began in favor of the sub-treasury or independent treasury plan, still in use to-day, of keeping the government moneys. This had been first broached in 1834-35 by Whigs. The Democrats then opposed it; but now they took it up as a means of counteracting the whig purpose to revive a national bank.

There was soon less need of any such special arrangement, as the treasury was swiftly running dry. In June of the preceding year, 1836, both parties concurring, an act had passed providing that after January 1, 1837, all surplus revenue should be distributed to the States in proportion to their electoral votes. It was meant to be a loan, to be recalled, however, only by vote of Congress, but it proved a donation. Twenty-eight millions were thus paid in all, never to return. Such a disposition of the revenue had now to be stopped and reverse action instituted. Importers called for time on their revenue bonds, which had to be allowed, and this checked income. This special session was needed to authorize an issue of ten millions in treasury notes to tide the Government over the crisis.

[1840]

Another influence which now worked powerfully against the Democracy was hostility to slavery. This campaign--it was the first--saw a "Liberty Party" in the field, with its own candidates, Birney and Earle. The abolition sentiment, of which more will be said in a subsequent chapter, was growing day by day, and little as the Whigs could be called an antislavery party on the whole, their rank and file were very much more of that mind than those of the opposition. Jackson had ranted wildly against the despatch of abolition literature through the mails. The second Seminole War, 1835-42, was waged mainly in deference to slave-holders, to recover for them their Florida runaways, and, by removal of the Seminoles beyond the Mississippi, to break up a popular resort for escaped negroes. The Indians, under Osceola, whose wife, as daughter to a slave-mother, had been treacherously carried back into bondage, fought like tigers. After their massacre of Major Dade and his detachment, Generals Gaines, Jesup, Taylor, Armistead, and Worth successively marched against them, none but the last-named successful in subduing them. Over 500 persons had been restored to slavery, each one costing the Government, as was estimated, at least \$80,000 and the lives of three white soldiers.



General William J. Worth.

[1839]

Van Buren was to the slavocrats even more obsequious than Jackson. His spirit was shown, among other things, by the Amistad case, in 1839. The schooner Amistad was sailing between Havana and Puerto Principe with a cargo of negroes kidnapped in Africa. Under the lead of a bright negro named Cinque the captives revolted and killed or confined all the crew but two, whom they commanded to steer the ship for Africa. Instead, these directed her to the United States coast, where she was seized off Long Island by a war vessel and brought into New London. The negroes were, even by Spanish law, not slaves but free men, as Spain had prohibited the slave trade. Yet when their case was tried before the district court, Mr. Van Buren spared no effort to procure their release to the Spanish claimants. He even had a government vessel all ready to convey the poor victims back to Cuba. The district court having decided for the blacks, the government attorney appealed to the circuit court, thence also to the supreme court. Final judgment happily re-affirmed that the men were free. The supreme court trial was the occasion of one of John Quincy Adams's most splendid forensic victories, he being the counsel for the negroes.

The attitude of the administration in this affair greatly injured the party in the North, the more as it but illustrated a spirit and policy which had grown characteristic of the party's head. In several instances previous to this time, when ships conveying slaves from one of the United States to another, entered the ports of the Bahama Islands through stress of weather, England had, while freeing them, allowed some compensation. Now, having emancipated the slaves in her own West Indian possessions, she declined longer to continue that practice. Her first refusal touched the slaves on the ship Enterprise, which had put in at Port Hamilton in 1835. Jackson's administration in vain sought indemnity, Van Buren, then Secretary of State, designating this business as "the most immediately pressing" before the English embassy.

[1840]

In the same pro-slavery interest an increasing proportion of the Democracy, though not Van Buren himself, had come to favor the annexation of Texas. The southwestern boundary of the United States had ever since the purchase in Florida in 1819 been recognized as the Sabine River, west of this lying the then foreign country of Texas. France had claimed the Rio Grande as Louisiana's western bound, but Mr. Monroe, to placate the North in the Florida annexation, had receded from this claim. Texas and Coahuila became a state in the new Mexican republic, which Spain recognized in 1821; but in 1836 Texas declared itself independent. It was ill-governed and weighed down with debt, and hence almost immediately, in 1837, asked membership in the American Union. Its annexation was bitterly opposed all over the North, so bitterly in fact that the northern Democrats would not have dared, even had they wished, to favor the scheme. Yet so strong was the southern influence in the party by 1840 that the democratic platform that year urged the "re-annexation" of Texas, the term assuming that as a part of Louisiana it had always been ours since 1803. This was a fact, but it was now asseverated by the Democracy for a selfish sectional purpose, and the cry brought thousands of votes to the Whigs.

It proved good politics for the Whigs in 1840 to pass over Clay and adopt as their candidate William Henry Harrison. He had indeed been unsuccessful in 1836, owing to the great popularity of Jackson, all whose influence went for Van Buren; but now that "Little Van," or "Matty," as Jackson used to call him, stood alone, Harrison had a better chance. His political record had been inconspicuous but honorable. Nothing could be alleged against his character. He was a gentleman of some ability, while his brilliant military record in 1812, now revived to the minutest detail, gave him immense popularity. Every surviving Tippecanoe or Thames veteran stumped his vicinity for the old war-horse. Many wavering Democrats in the South, especially those of the nullification stripe, were toled to the whig ticket by the nomination of John Tyler for Vice-President. "Tippecanoe and Tyler too" rang through the land as the whig watchword for the campaign. During the electioneering every hamlet was regaled with portrayals of Harrison's simple farm life at North Bend, where, a log cabin his dwelling, and hard cider--so one would have supposed--his sole beverage, he had been a genuine Cincinnatus. "Tippecanoe and Tyler" were therefore elected; their popular vote numbering 1,275,017, against 1,128,702 polled for Van Buren.



William Henry Harrison
From a Copy at the Corcoran Art Gallery of a painting by Beard in 1840.

However, this whig success, for a moment so imposing, proved superficial and brief. Harrison died at the end of his first month in office, and Tyler, coming in, showed that though training under the whig banner, he had not renounced a single one of his democratic principles. The Whigs scorned and soon officially repudiated him. During the entire four years that he held office there was constant deadlock between him and the slight whig majority in Congress, which gave the Democrats main control in legislation. The panic of 1837 was forgotten, while the hold of the Democracy upon the country was so firm that its gains in Congress and its triumphs in the States once more went steadily on.

CHAPTER VII.

LIFE AND MANNERS IN THE FOURTH DECADE

[1835]

By the census of 1830 the United States had a population of 12,866,020, the increase having been for the preceding ten years about sufficient to double the inhabitants in thirty years. There were twenty-four States, Indiana having been taken into the Union in 1816, Mississippi in 1817, Illinois in 1818, Alabama in 1819, Maine in 1820, and Missouri, the last, in 1821. Florida, Michigan, and Arkansas were the Territories. The area, now that Florida had been annexed, was 725,406 square miles.

Comparatively little of the soil of Michigan, Iowa, Minnesota, and Wisconsin had as yet been occupied, though settlements were making on most of the larger streams. The southwest had at this time filled up more rapidly than the northwest. In 1830 the centre of population for the Union was farther south than it has ever been at any other time. Except in Louisiana and Missouri, not over thirty thousand inhabitants were to be found west of the Mississippi. The vast outer ranges of the Louisiana purchase remained a mysterious wilderness. Indianapolis in 1827 contained twenty-five brick houses, sixty frame, and about eighty log houses; also a court-house, a jail, and three churches. Chicago was laid out in 1830. Thither in, 1834 went one mail per week, from Niles, Mich., on horseback. In 1833 it was incorporated as a town, having 175 houses and 550 inhabitants. That year it began publishing a newspaper and organized two churches. In 1837 it was a city, with 4,170 inhabitants. The Territory of Iowa had in 1836, 10,500 inhabitants; in 1840, 43,000. At this time Wisconsin had 31,000. So early as 1835 Ohio had nearly or quite 1,000,000 inhabitants. Sixty-five of its towns had together 125 newspapers. Between 1830 and 1840 Ohio's population rose from 900,000 to 1,500,000; Michigan's, from 30,000 to 212,000; and the whole country's, from 13,000,000 to 17,000,000. Before 1840, eight steamers connected Chicago with Buffalo.



John Tyler
From a photograph by Brady.

By 1840 nearly all the land of the United States this side the Mississippi had been taken up by settlers. The last districts to be

occupied were Northern Maine, the Adirondack region of New York, a strip in Western Virginia from the Potomac southward through Kentucky nearly to the Tennessee line, the Pine Barrens of Georgia, and the extremities of Michigan and Wisconsin. Beyond the Father of Waters his shores were mostly occupied, as well as those of his main tributaries, a good way from their mouths. The Missouri Valley had population as far as Kansas City. Arkansas, Missouri, and Iowa Territory had many settlements at some distance from the streams. The aggregate population of the country was 17,069,453, the average density twenty-one and a tenth to the square mile. The mass of westward immigration was as yet native, since the great rush from Europe only began about 1847. This was fortunate, as fixing forever the American stamp upon the institutions of western States. To compensate each new commonwealth for the non-taxation of the United States land it contained, it received one township in each thirty-six as its own for educational purposes, a provision to which is due the magnificent school system of Michigan, Wisconsin, Iowa, Minnesota, and their younger sisters.

Farther east, too, there had, of course, been growth, but it was slower. In 1827 Hartford had but 6,900 inhabitants; New Haven, 7,100; Newark, N. J., 6,500, and New Brunswick about the same. The State of New York paid out, between 1815 and 1825, nearly \$90,000 for the destruction of wolves, showing that its rural population had attained little density. The entire country had vastly improved in all the elements of civilization. A national literature had sprung up, crowding out the reprints of foreign works which had previously ruled the market. Bryant, Cooper, Dana, Drake, Halleck, and Irving were now re-enforced by writers like Bancroft, Emerson, Hawthorne, Holmes, Longfellow, Poe, Prescott, and Whittier. Educational institutions were multiplied and their methods bettered. The number of newspapers had become enormous. Several religious journals were established previous to 1830, among them the New York Observer, which dates from 1820, and the Christian Register, from 1821. Steam printing had been introduced in 1823. The year 1825 saw the first Sunday paper; it was the New York Sunday Courier. Greeley began his New York Tribune only in 1841.

Fresh news had begun to be prized, as shown by the competition between the two great New York sheets, the Journal of Commerce and the Morning Enquirer, each of which, in 1827, established for this purpose swift schooner lines and pony expresses. The Journal of Commerce in 1833 put on a horse express between Philadelphia and New York, with relays of horses, enabling it to publish congressional news a day earlier than any of its New York contemporaries. Other papers soon imitated this example, whereupon the Journal extended its relays to Washington. Mails came to be more numerous and prompt. More letters were written, and, from 1839, letters were sent in envelopes. Postage-stamps were not used till 1847. Most of the principal cities in the country, including Rochester and Cincinnati, published dailies before 1830. Baltimore and Louisville had each a public school in 1829. This year witnessed in Boston the beginning work of the first blind asylum in the country. In Hartford instruction had already been given to the deaf and dumb since 1817.



A Pony Express.

By the fourth decade of the century the American character had assumed a good deal of definiteness and greatly interested foreign travellers. There was, by those who knew what foreign manners were, much foolish aping of the same. English visitors noted Brother Jonathan's drawl in talking, his phlegmatic temperament, keen eye, and blistering inquisitiveness. Jonathan was a rover and a trader, everywhere at home, everywhere bent upon the main chance. He ate too rapidly, chewed and smoked tobacco, and spat indecently. He drank too much. During the first quarter of the century nearly everyone used liquor, and drunkenness was shamefully common. Every public entertainment, even if religious, set out provision of free punch. At hotels, brandy was placed upon the table, free as water to all. The smaller sects often held preaching services in bar-rooms for lack of better accommodations. On such occasions the preacher was not infrequently observed, without affront to anyone, to refresh himself from behind the bar just before announcing his text.

In 1824 commenced in Boston a temperance movement which accomplished in this matter the most happy reform. It swept New England, passing thence to all the other parts of the Union. By the end of 1829 over a thousand temperance societies were in existence. The distilling and importation of spirits fell off immensely. It became fashionable not to drink, and little by little drinking came to be stigmatized as immoral.

By the time of which we now speak, the old habit of expressing solicitude for the fate of the Union had passed away. Whig like Democrat--so different from old Federalist--swore by "the people." Every American believed in America. Travelling abroad, the man from this country was wont to assume, and if opposed to contend, ill-manneredly sometimes, that its institutions were far the best in the world. No one wished a change. The unparalleled prosperity of all contributed to this satisfaction. Cities and towns came up in a day. Public improvements were to be seen making in every direction. There was no idle aristocracy on the one hand, no beggars on the other. Self-respect was universal. The people held the power. If men attained great wealth, as not a few

did, they usually did not waste it but invested it. Business enterprise was intense and common. Character entered into credit as an element along with financial resources. People did not crowd into cities, but loved and built up the country rather. Laws and penalties were become more mild. In 1837 a man was flogged at the whipping-post in Providence, R. I., for horse-stealing, perhaps the last case of the kind in the country. Prisons were now made clean and healthy, and the idea of reforming the criminal instead of taking vengeance upon him was spreading. Reformatories for children had been opened in New York, Boston, and Philadelphia. There were institutions for homeless children, for the sick poor, for the insane, and for other unfortunate classes.

By this time the Methodists and Baptists had become extremely strong in numbers. In 1833 the Massachusetts constitution was altered, abolishing obligatory contributions for the support of the ministry of the standing order. Connecticut had made the same change fifteen years before, in its constitution of 1818. In many localities the newer denominations, hitherto sects, were more influential than the old one, and in this abolition of ecclesiastical taxes they had with them Jews, atheists, deists, agnostics, and heathen.

About 1825 began a period of peculiar religious enthusiasm. Missions to the heathen were instituted. Revivals were numerous and often shook whole neighborhoods for weeks and months. About this date Millerism began to make converts. William Miller, from whom it took its name, preached far and wide that the world would be destroyed in 1843, securing multitudes of disciples, who clung to his general belief even after his prophecy as to the specific date for the final catastrophe was seen to have failed. Mormonism was also founded, in 1830, and the Book of Mormon published by Joseph Smith. A church of this order, organized this year at Manchester, N. Y., removed the next to Kirtland, O., and thence to Independence, Mo. Driven from here by mob violence, they built the town of Nauvoo, Ill. Meeting in this place too with what they regarded persecution, several of their members being prosecuted for polygamy, they were obliged to migrate to Salt Lake City, where, however, they were not fully settled until 1848.

As part of the same general stir we may perhaps register the anti-masonic movement. One William Morgan, a Mason residing in Western New York, was reported about to expose in a publication the secrets of that order. The Masons were desirous of preventing this and made several forcible efforts to that end. Morgan was soon missing, and the exciting assumption was almost universally made that the Masons had taken him off. There was much evidence of this; but conviction was found impossible because, as was alleged, judges, juries, and witnesses were nearly all Masons. An intense and widespread feeling was developed that Masonry held itself superior to the laws, was therefore a foe to the Government and must be destroyed. The Anti-Masons became a mighty political party. Masons were driven from office. In 1832 anti-masonic nominations were made for President and Vice-President, which had much to do with the small vote of Clay in that year. It was this party that brought to the front politically William H. Seward, Millard Fillmore, and Thurlow Weed.



Thurlow Weed. From an unpublished Photograph by Disderi, Paris, in 1861. In the possession of Thurlow Weed Barnes.

In 1833 Massachusetts, New York, and Pennsylvania passed laws suppressing lotteries, but the gambling mania seemed to transform itself into a craze for banks. In many parts this was such that actual riots took place when subscriptions to the stock of banks were opened, the earliest comers subscribing the whole with the purpose of selling to others at an advance. To make a bank was thought the great panacea for every ill that could befall. In this we see that the American people, bright as they were, could be duped.

Less wonder, then, at the success of the Moon Hoax, perpetrated in 1835. It was generally known that Sir John Herschel had gone to the Cape of Good Hope to erect an observatory. One day the New York Sun came out with what purported to be part of a supplement to the Edinburgh Journal of Science, giving an account of Herschel's remarkable discoveries. The moon, so the bogus relation ran, had been found to be inhabited by human beings with wings. Herschel had seen flocks of them flying about. Their houses were triangular in form. The telescope had also revealed beavers in the moon, exhibiting most remarkable intelligence. Pictures of some of these and of moon scenery accompanied the article. The fraud was so clever as to deceive learned and unlearned alike. The sham story was continued through several issues of the Sun, and gave the paper an enormous sale. As it arrived in the different places, crowds scrambled for it, nor would those who failed to secure copies disperse until some one more fortunate had read to them all that the paper said upon the subject. Several colleges sent professorial deputations to the Sun office to see the article, and particularly the appendices, which, it

was alleged, had been kept back. Richard Adams Locke was the author of this ingenious deception, which was not exploded until the arrival of authentic intelligence from Edinburgh.

Party spirit sometimes ran terribly high. A New York City election in 1834 was the occasion of a riot between men of the two parties, disturbances continuing several days. Political meetings were broken up, and the militia had to be called out to enforce order. Citizens armed themselves, fearing attacks upon banks and business houses. When it was found that the Whigs were triumphant in the city, deafening salutes were fired. Philadelphia Whigs celebrated this victory with a grand barbecue, attended, it was estimated, by fifty thousand people. The death of Harrison was malignantly ascribed to overeating in Washington, after his long experience with insufficient diet in the West. Whigs exulted over Jackson's cabinet difficulties. Jackson's "Kitchen Cabinet," the power behind the throne, gave umbrage to his official advisers. Duff Green, editor of the United States Telegraph, the President's "organ," was one member; Isaac Hill, of New Hampshire, and Amos Kendall, first of Massachusetts, then of Kentucky, were others, these three the most influential. All had long worked, written, and cheered for Old Hickory. In return he gave them good places at Washington, and now they enjoyed dropping in at the White House to take a smoke with the grizzly hero and help him curse the opposition as foes of "the people."

Major Eaton, Old Hickory's first Secretary of War, had married a beautiful widow, maiden name Peggy O'Neil, of common birth, and much gossipped about. The female members of other cabinet families refused to associate with her, the Vice-President's wife leading. Jackson took up Mrs. Eaton's cause with all knightly zeal. He berated her traducers and persecutors in long and fierce personal letters. His niece and housekeeper, Mrs. Donelson, one of the anti-Eatonites, he turned out of the White House, with her husband, his private secretary. The breach was serious anyway, and might have been far more so but for the healing offices of Van Buren, who used all his courtliness and power of place to help the President bring about the social recognition of Mrs. Eaton. He called upon her, made parties in her honor, and secured her entree to the families of the greatest foreign ministers. Mrs. Eaton triumphed, but the scandal would not down.

When Jackson wrote his foreign message upon the French spoliation claims, his cabinet were aghast and begged him to soften its tone. Upon his refusal, it is said, they stole to the printing-office and did it themselves. But the proofs came back for Jackson's perusal. The lad who brought them was the late Mr. J. S. Ham, of Providence, R. I. He used to say that he had never known what profane swearing was till he listened to General Jackson's comments as those proofs were read.

Jackson and Quincy Adams were personal as well as political foes. When the President visited Boston, Harvard College bestowed on him the degree of Doctor of Laws. Adams, one of the overseers, opposed this with all his might. As "an affectionate child of our Alma Mater, he would not be present to witness her disgrace in conferring her highest literary honors upon a barbarian." Subsequently he would refer, with a sneer, to "Dr. Andrew Jackson." The President's illness at Boston Adams declared "four-fifths trickery" and the rest mere fatigue. He was like John Randolph, said Adams, who for forty years was always dying. "He is now

alternately giving out his chronic diarrhoea and making Warren bleed him for a pleurisy, and posting to Cambridge for a doctorate of laws, mounting the monument of Bunker's Hill to hear a fulsome address and receive two cannon-balls from Edward Everett."

To be sure, manifestations of a contrary spirit between the political parties were not wanting. The entire nation mourned for Madison after his death in 1836, as it had on the decease of Jefferson and John Adams both on the same day, July 4, 1826.

A note or two upon costume may not uninterestingly close this chapter.

Enormous bonnets were fashionable about 1830. Ladies also wore Leghorn hats, with very broad brims rolled up behind, tricked out profusely with ribbons and artificial flowers. Dress-waists were short and high. Skirts were short, too, hardly reaching the ankles. Sleeves were of the leg-of-mutton fashion, very full above the elbows but tightening toward the wrist. Gentlemen still dressed for the street not so differently from the revolutionary style. Walking-coats were of broadcloth, blue, brown, or green, to suit the taste, with gilt buttons. Bottle-green was a very stylish color for evening coats. Blue and the gilt buttons for street wear were, however, beginning to be discarded, Daniel Webster being one of the last to walk abroad in them. The buff waistcoat, white cambric cravat, and ruffled shirt still held their own. Collars for full dress were worn high, covering half the cheek, a fashion which persisted in parts of the country till 1850 or later.

CHAPTER VIII.

INDUSTRIAL ADVANCE BY 1840

[1840]

During the War of 1812 we had in England an industrial spy, whose campaign there has perhaps accomplished more for the country than all our armies did. It was Francis C. Lowell, of Boston. Great Britain was just introducing the power loom. The secret of structure was guarded with all vigilance, yet Lowell, passing from cotton factory to cotton factory with Yankee eyes, ears, and wit, came home in 1814, believing, with good reason, as it proved, that he could set up one of the machines on American soil. Broad Street in Boston was the scene of his initial experiments, but the factory to the building of which they led was at Waltham. It was owned by a company, one of whose members was Nathan Appleton. Water furnished the motive power. By the autumn of 1814 Lowell had perfected his looms and placed them in the factory. Spinning machinery was also built, mounting seventeen hundred spindles. English cotton-workers did not as yet spin and weave under the same roof, so that the Lowell Mill at Waltham may, with great probability, be pronounced the first in the world to carry cloth manufacture harmoniously through all its several successive steps from the raw stuff to the finished ware.

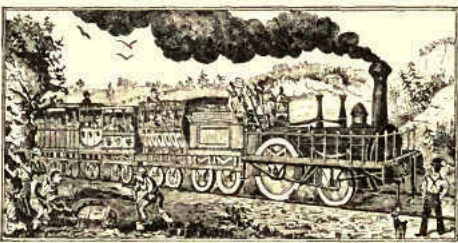
From this earliest establishment of the power-loom here, the cotton-cloth business strode rapidly forward. Fall River, Holyoke,

Lawrence, Lowell, and scores of other thriving towns sprung into being. Every year new mills were built. In 1831 there were 801; in 1840, 1,240; in 1850, 1,074. Henceforth, through consolidation, the number of factories decreased, but the number of spindles grew steadily larger. This rise of great manufacturing concerns was facilitated by a new order of corporation laws. There had been corporations in the country before 1830, as the Waltham case shows; but the system had had little evolution, as incorporation had in each case to proceed from a special legislative act. In 1837 Connecticut passed a statute making this unnecessary and enabling a group of persons to become a corporation on complying with certain simple requirements. New York placed a similar provision in its constitution of 1846. The Dartmouth College decision of the United States Supreme Court in 1819, interpreting an act of incorporation as a contract, which, by the Constitution, no State can violate, still further humored and aided the corporation system.

1843. RAIL-ROAD ROUTE 1843.

BETWEEN

Albany & Buffalo.



FARE REDUCED--ARRANGEMENT TO COMMENCE JULY 10, 1843.

Those who pay through between Albany and Buffalo, - \$10. in the best cars,
do. do. do. \$8. in accommodation cars,
which have been re-arranged, cushioned and lighted.

Those who pay through between Albany & Rochester, \$8. in the best cars.
do. do. do. 6.50 in accommodation cars.

THREE DAILY LINES.

Through in 25 hours.

GOING WEST.

	1st Train	2d Train	3d Train
Leave Albany,	6 A. M.	1 P. M.	7 P. M.
Pass Schenectady,	7 A. M.	3 P. M.	9 P. M.
Pass Utica,	1 P. M.	9 P. M.	4 A. M.
Pass Syracuse,	5 P. M.	2 A. M.	8 A. M.
Pass Auburn,	7 P. M.	4 A. M.	10 A. M.
Pass Rochester,	2 A. M.	10 A. M.	4 P. M.
Arrive at Buffalo,	7 A. M.	3 P. M.	9 P. M.

GOING EAST.

	1st Train	2d Train	3d Train
Leave Buffalo,	4 A. M.	9 A. M.	4 P. M.
Pass Rochester,	9 A. M.	3 P. M.	10 P. M.
Pass Auburn,	3 P. M.	9 P. M.	4 A. M.
Pass Syracuse,	5 P. M.	11 P. M.	6 A. M.
Pass Utica,	9 P. M.	4 A. M.	10 A. M.
Pass Schenectady,	3 A. M.	10 A. M.	3 P. M.
Arrive at Albany,	8 A. M.	11 A. M.	4 P. M.

EMIGRANTS WILL BE CARRIED ONLY BY SPECIAL CONTRACT.

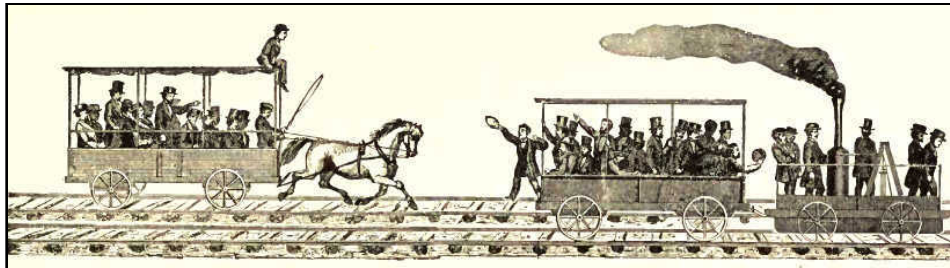
Passengers will procure tickets at the offices at Albany, Buffalo or Rochester through, to be entitled to seats at the reduced rates.

Fare will be received at each of the above places to any other places named on the route.

From an Old Time-table. (Furnished by the ABC Pathfinder Railway Guide.)

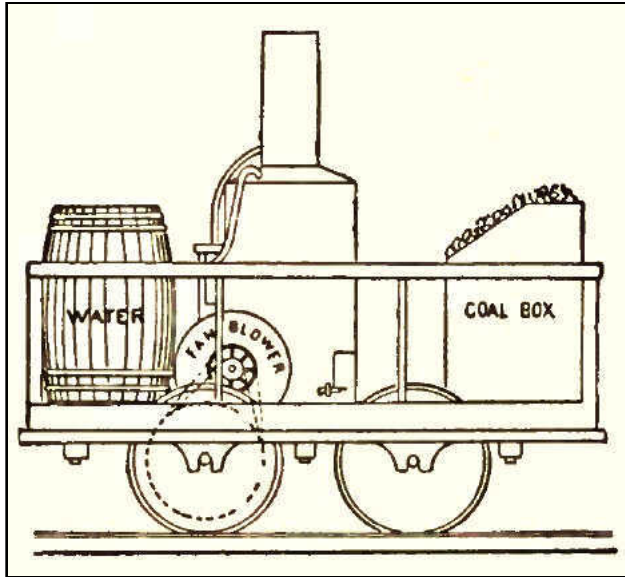
In 1816 the streets of Baltimore were lighted with gas. A gas-light company was incorporated in New York in 1823. Not till 1836, however, did the Philadelphia streets have gas lights. The first savings-banks were established in Philadelphia and Boston in 1816. Baltimore had one two years later. Portable fire-proof safes were used in 1820. The Lehigh

coal trade flourished this year, and also the manufacture of iron with coal. The whale fishery, too, was now beginning. The first factory in Lowell started in 1821. In 1822 there was a copper rolling mill in Baltimore, the only one then in America, and Paterson, N. J., began the manufacture of cotton duck. Patent leather was made in the United States by 1819. In 1824 Amesbury, Mass., had a water-power manufactory of flannel. The next year the practice of homoeopathy began in America, and matches of a rude sort were displacing the old tinder-box. The next year after this Hartford produced axes and other edged tools. Lithography, of which there had been specimens so early as 1818, was a Boston business in 1827. Pittsburgh manufactured damask table linen in 1828. The same year saw paper made from straw, and planing machinery in operation. The insuring of lives began in this country in 1812.



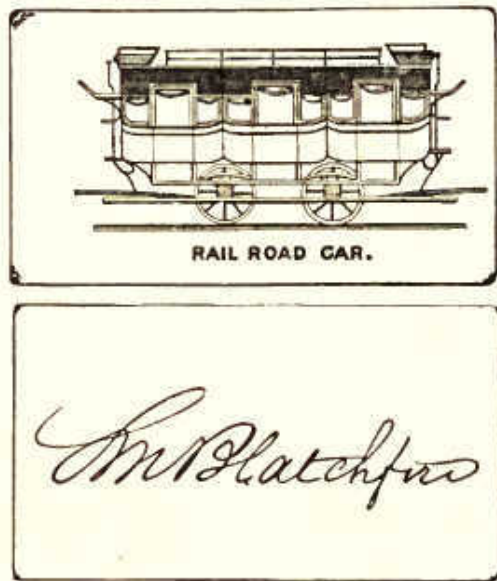
Trial between Peter Cooper's Locomotive "Tom Thumb" and one of Stockton's and Stokes' Horse Cars. From "History of the First Locomotive in America."

The first figured muslin woven by the power-loom in America, and perhaps in the world, was produced at Central Falls, R. I., in 1829. Calico printing began at Lowell the same year, also the manufacture of cutlery at Worcester, of sewing-silk at Mansfield, Conn., of galvanized iron in New York City. With the new decade chloroform was invented, in 1831, being first used as a medicine, not as an anaesthetic. Reaping machines were on trial the same year, and three years later machine-made wood screws were turned out at Providence. About the same time, 1832, pins were made by machinery, hosiery was woven by a power-loom process, and Colt perfected his revolver. In 1837 brass clocks were put upon the American market, and by 1840 extensively exported. Also in 1837 Nashua was making machinists' tools. By 1839 the manufacture of iron with hard coal was a pronounced success. In 1840 daguerreotypes began to appear. Steam fire-engines were seen the next year.



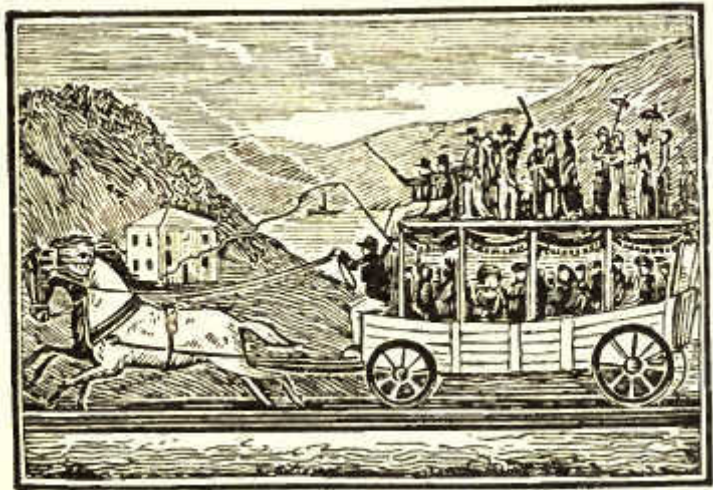
Peter Cooper's Locomotive, 1829.

So early as 1816 the New York and Philadelphia stages made the distance from city to city between sun and sun. The National Road from Cumberland was finished to Wheeling in 1820, having been fourteen years in construction and costing \$17,000,000. It was subsequently extended westward across Ohio and Indiana. It was thirty-five feet wide, thoroughly macadamized, and had no grade of above five degrees. Over parts of this road no less than 150 six-horse teams passed daily, besides four or five four-horse mail and passenger coaches. In Jackson's time, when for some months there was talk of war with France and extra measures were thought proper for assuring the loyalty of Louisiana, swift mail connections were made with the Mississippi by the National Road. Its entire length was laid out into sections of sixty-three miles apiece, each with three boys and nine horses, only six hours and eighteen minutes being allowed for traversing a section, viz., a rate of about ten miles an hour. Great men and even presidents travelled by the public coaches of this road, though many of them used their own carriages. James K. Polk often made the journey from Nashville to Washington in his private carriage. Keeping down the Cumberland River to the Ohio, and up this to Wheeling, he would strike into the National Road eastward to Cumberland, Md. He came thus so late as 1845, to be inaugurated as President; only at this time he used the new railway from Cumberland to the Relay House, where he changed to the other new railway which had already joined Baltimore with Washington.



Obverse and Reverse of a Ticket used in 1838 on the New York & Harlem Railroad.

The first omnibus made its appearance in New York in 1830, the name itself originating from the word painted upon this vehicle. The first street railway was laid two years later. The era of the stage coach was at this time beginning to end, that of canals and railroads opening. Yet in the remoter sections of the country the old coach was destined to hold its place for decades still. Where roads were fair it would not uncommonly make one hundred miles between early morning and late evening, as between Boston and Springfield, Springfield and Albany. So soon as available the canal packet was a much more easy and elegant means of travel. The Erie Canal was begun in 1817, finished to Rochester in 1823, the first boat arriving October 8th. The year 1825 carried it to Buffalo. The Blackstone Canal, between Worcester and Providence, was opened its whole length in 1828; the next year many others, as the Chesapeake and Delaware, the Cumberland and Oxford in Maine, the Farmington in Connecticut, the Oswego, connecting the Erie Canal with Lake Ontario, also the Delaware and Hudson, one hundred and eight miles long, from Honesdale, Pa., to Hudson River. The Welland Canal was completed in 1830.



Baltimore & Ohio Railroad, 1830.

Salt-water transportation had meantime been much facilitated by the use of steam. It had been thought a great achievement when, in 1817, the Black Ball line of packet ships between New York and Liverpool was regularly established, consisting of four vessels of from four hundred to five hundred tons apiece. But two years later a steamship crossed the Atlantic to Liverpool from Savannah. It took her twenty-five days--longer than the time in which the distance often used to be accomplished under sail. In 1822 there was a regular steamboat between Norfolk and New York, though no steamboat was owned in Boston till 1828. The Atlantic was first crossed exclusively by steam-power in 1838, and the first successful propeller used in 1839. The last-named year also witnessed the beginning of a permanent express line between Boston and New York, by the Stonington route. The next year, the Adams Express Company was founded, doing its first business between these two cities over the Springfield route, in competition with that by the Stonington.



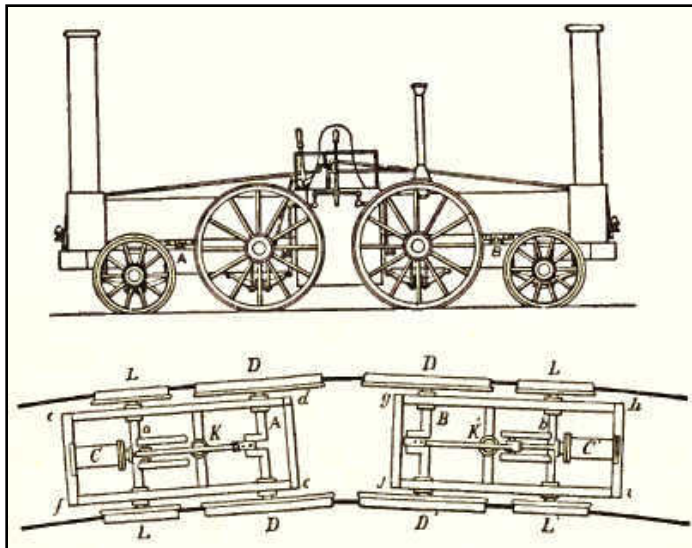
Old Boston & Worcester Railway Ticket (about 1837).

But all these improvements were soon to be overshadowed by the work of the railway and locomotive. The first road of rails in America was in the Lehigh coal district of Pennsylvania. Its date is uncertain, but not later than 1825. In 1826, October 7th, the second began operation, at

Quincy, Mass., transporting granite from the quarries to tide-water, about three miles. This experiment attracted great attention, showing how much heavier loads could be transported over rails than upon common roads, and with how much greater ease and less expense ordinary weights could be carried. The same had been demonstrated in England before. Locomotives were not yet used in either country, but only horse-power. The conviction spread rapidly that not only highway transportation but even that by canals would soon be, for all large burdens, either quite superseded or of secondary importance. In 1827 the Maryland Legislature chartered a railroad from Baltimore to Wheeling. The projectors, though regarding it a bold act, promised an average rate between the two cities of at least four miles per hour. Subscriptions were offered for more than twice the amount of the stock. The Massachusetts Legislature the same year appointed commissioners to look out a railway route between Boston and Hudson River. Also in this year a railway was completed at Mauch Chunk, Pa., for transporting coal to the landing on the Lehigh. The descent was by gravity, mules being used to haul back the cars.

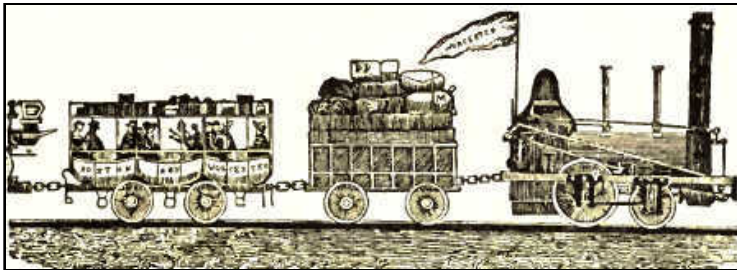
In most country parts, the new railway projects encountered great hostility. Engineers were not infrequently clubbed from the fields as they sought to survey. Learned articles appeared in the papers arguing against the need of railways and exhibiting the perils attending them. When steam came to be used, these scruples were re-enforced by the alleged danger that the new system of travel would do away with the market for oats and for horses, and that stage-drivers would seek wages in vain.

The first trip by a locomotive was in 1828, over the Carbondale and Honesdale route in Pennsylvania. The engine was of English make, and run by Mr. Horatio Allen, who had had it built. This was a year before the first steam railroad was opened in England. July 4, 1828, construction upon the Baltimore & Ohio Railroad was begun. It, like the other early roads, was built of stone cross-ties, with wooden rails topped with heavy straps of iron. Such ties were soon replaced by wooden ones, as less likely to be split by frost, but the wooden rail with its iron strap might be seen on branch lines, for instance, between Monocacy Bridge and Frederick City, Md., so late as the Civil War.



The "South Carolina," 1831, and plan of its running gear.

The first railroad for passengers in this country went into operation between Charleston and Hamburg, S. C., in 1830. The locomotive had been gotten up in New York, the first of American make. It had four wheels and an upright boiler. This year the railroad between Albany and Schenectady was begun, and fourteen miles of the Baltimore & Ohio opened for use. In 1831 Philadelphia was joined to Pittsburgh by a line of communication consisting of a railway to Columbia, a canal thence to Hollidaysburg, another railway thence over the Alleghanies to Johnstown, and then on by canal. The railway over the mountains consisted of inclined planes mounted by the use of stationary engines. It is interesting to notice the view which universally prevailed at first, that the locomotive could not climb grades, and that where this was necessary stationary engines would have to be used. Not till 1836 was it demonstrated that locomotives could climb. Up to the same date, also, locomotives had burned wood, but this was now found inferior to coal, and began to be given up except where it was much the cheaper fuel.



Boston & Worcester Railroad, 1835.

From 1832 the railway system grew marvellously. The year 1833 saw completed the South Carolina Railroad between Charleston and the Savannah River, one hundred and thirty-six miles. This was the first railway line in this country to carry the mails, and the longest continuous one then in the world. Two years later Boston was connected by railway with Providence, with Lowell, and with Worcester, Baltimore with Washington, and the New York & Erie commenced. In 1839 Worcester was joined to Springfield in the same manner, and in 1841 a passenger could travel by rail from Boston to Rochester, changing cars, however, at least ten times.

PERIOD III.

THE YEARS OF SLAVERY CONTROVERSY 1840-1860

CHAPTER I.

SLAVERY AFTER THE MISSOURI COMPROMISE

[1820]

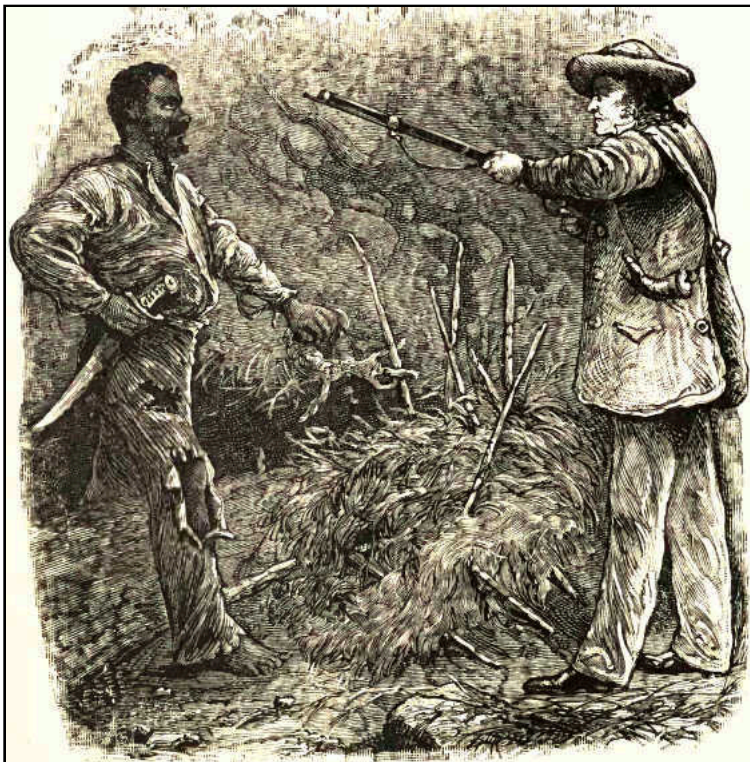
Slavery would most likely never have imperilled the life of this nation had it not been for the colossal industrial revolution sketched above. Cotton had been grown here since, 1621, and some exportation of it is said to have occurred in 1747. Till nearly 1800 very little had gone from the United States to England, for by the old process a slave could clean but five or six pounds a day. In 1784, an American ship which brought eight bags to Liverpool was seized, on the ground that so much could not have been the produce of the United States. Jay's treaty, as first drawn, consented that no cotton should be exported from America. It changed the very history of the country when, in 1793, Eli Whitney invented the saw-gin, by which a slave could clean 1,000 pounds of cotton per day. Slavery at once ceased to be a passive, innocuous institution, promising soon to die out, and became a means of gain, to be upheld and extended in all possible ways. The cotton export, but 189,316 pounds in 1791, and a third less in 1792, rose to 487,600 pounds in 1793, to 1,610,760 pounds in 1794, to 6,276,300 pounds in 1795, and to 38,118,041 pounds in 1804. Within five years after Whitney's invention, cotton displaced indigo as the great southern staple, and the slave States had become the cotton-field of the world. In 1869 the export was nearly 1,400,000,000 pounds, worth about \$161,500,000. [Footnote: Johnson, in Lalor's Cyclopaedia, Art. "Slavery."]

So profitable was slavery to vast numbers of individuals because of this its new status, that men would not notice how, after all, it militated against the nation's supreme interests. It polluted social relations in obvious ways, setting at naught among slaves family ties and the behests of virtue, influences that reacted terribly upon the whites. The entire government of slaves had a brutalizing tendency, more pronounced as time passed. "Plantation manners" were cultivated, which, displaying themselves in Congress and elsewhere, in all discussions and measures relating to the execrable institution, made the North believe that the South was drifting toward barbarism. This was an exaggeration, yet everyone knew that schools in the South were rare and poor, and thought and speech little free as compared with the same in the North. Political power, like the slaves, was in the hands of a few great barons, totally merciless toward even southerners who differed from them. It is of course not meant that virtue, kindness, intelligence, and fair-mindedness were ever wanting in that section, but they flourished in spite of the slave-system.

Economically slavery was an equal evil, taking as was the superficial evidence to the contrary. No cruelty could make the slave work like a free man, while his power to consume was enormous. Infants, aged, and weak had to be supported by the owner. Even the best slaves were improvident. Everywhere slave labor tended to banish free. Upon slave soil scarcely an immigrant could be led to set foot. Poor whites grew steadily poorer, their lot often more wretched than that of slaves. Invention, care, forethought were as good as unknown among them. Slave labor proved incompetent even for agriculture, impoverishing the richest soil in comparatively few years, whence the perpetual impulse of the slave-owners to acquire new territory. The dishonesty of blacks and the danger of slave insurrections made property insecure, at the same time that the system diminished in every community the number of its natural defenders. The result was that the South, the superior of the North in natural resources, was, by 1800, rapidly becoming the inferior in every single element of prosperity.

[1831]

One of these insurrections was the event of 1831 in Virginia, originating near the southern border. Four slaves in alliance with three whites commenced it by killing several families and pressing all the slaves they could find into their service, until the force was nearly two hundred. They spread desolation everywhere. Fifty-five white persons were murdered before the insurrection was in hand. Virginia and North Carolina called out troops, and at last all the insurgents were captured or killed. The leader was a black named Nat Turner, who believed himself called of God to give his people freedom. He had heard voices in the air and seen signs on the sky, which, with many other portents, he interpreted as proofs of his divine commission. When all was over Turner escaped to the woods, dug a hole under some fence-rails and lived there for six weeks, coming out only at midnight for food. Driven thence by discovery, he still managed to hide here and there about the plantations in spite of a whole country of armed men in search of him, until at last he was accidentally confronted in the bush by a white man with levelled rifle. He was hanged, November 11th, and sixteen others later. His wife was tortured for evidence, but in vain. Twelve negroes were transported. Very many were, without trial, punished in inhuman ways, the heads of some impaled along the highway as a warning. Partly in consequence of this horrible affair, originated a stout movement for the abolition of slavery in Virginia. This was favored by many of the ablest men in the Old Dominion, but they were overruled.



The Discovery of Nat Turner.

Danger from the blacks necessitated the most rigid laws concerning them. Time had been when it was thought not dangerous to teach slaves to read. In 1742 Commissary Garden, of the English Society for Propagating the Gospel, founded a negro school in Charleston, where slaves were taught by slave teachers, these last being the society's property. Honest Elias Neale, the society's catechist in New York, engaged in the same work there, and afterward catechists were so employed in Philadelphia. That organization did much to stir up the planters to teach their slaves the rudiments of Christianity. [Footnote: Eggleston in Century, May, 1888.] Now, all this was changed. The strictest laws were made to keep every slave in the most abject ignorance, to prevent their congregating, and to make it impossible for abolitionists or abolitionist literature or influence to get at them.

[1816]

Inconvenient and perilous as slavery was, southern devotion to it for many reasons strengthened rather than weakened. The masses did not perceive the ruin the system was working, which, moreover, consisted with great profits to vast numbers of influential men and to many localities. Border States little by little gave up the hope of becoming free, the old anti-slavery convictions of their best men faltering, and the practical problem of emancipation, really difficult, being too easily decided insoluble. More significant, owing to a variety of circumstances, the abolition spirit itself greatly subsided early in the present century. Completion of the emancipation process in the North was assured by the action of New York in 1817, proclaiming a total end to slavery there from July 4, 1827. The view that each State was absolute sovereign over slavery within its own borders, responsibility for it and its abuses there ending with the State's own citizens, was now universally accepted. Success in securing the act of 1807, making the slave trade illegal from January 1, 1808, and affixing to it heavy penalties, lulled multitudes to sleep. This act, however, had effect only gradually, and its beneficence was greatly lessened in that it left confiscated negroes to the operation of the local law.

Such quietude was furthered through the formation of the American Colonization Society in 1816, by easy philanthropists and statesmen, North as well as South, who swore by the Constitution as admitting no fundamental amendment, admired its three great compromises, loved all brethren of the Union except agitators, and deprecated slavery and the black race about equally; its mission negro deportation, but its actual efforts confined to the dumping of free blacks, reprobates, and castaways in some remote corner of the universe, for the convenience of slave-holders themselves. [Footnote: 3 Schouler's United States, 198.]

[1839]

Meantime much was occurring to harden northern hostility to slavery into resolute hatred, a fire which might smoulder long but could not die out. The fugitive slave law for the rendition of runaways found in free States operated cruelly at best, and was continually abused to kidnap free blacks. The owner or his attorney or agent could seize a slave anywhere on the soil of freedom, bring him before the magistrate of the county, city, or town corporate in which the arrest was made, and prove his ownership by testimony or by affidavit; and the certificate of such

magistrate that this had been done was a sufficient warrant for the return of the poor wretch into bondage. Obstruction, rescue, or aid toward escape was fined in the sum of five hundred dollars. This is the pith of the fugitive slave act of 1793. It might have been far more mischievous but for the interpretation put upon it in the celebrated case of Prigg versus Pennsylvania.

Mr. Prigg was the agent of a Maryland slave-owner. He had in 1839 pursued a slave woman into Pennsylvania, and when refused her surrender by the local magistrate carried her away by force. He was indicted in Pennsylvania for kidnapping, an amicable lawsuit made up, and an appeal taken to the United States Supreme Court. Here, in an opinion prepared by Justice Story, the Pennsylvania statute under which the magistrate had acted, providing a mode for the return of fugitives by state authorities, was declared unconstitutional on the ground that only Congress could legislate on the subject; but it was added that while a free State had no right in any way to block the capture of a runaway, as for example by ordering a jury trial to determine whether a seized person had really been a slave, so as to protect free persons of dark complexion, yet States might forbid their officers to aid in the recovery of slaves. As the act of 1793 did not name any United States officials for this service it became nearly inoperative. Spite of this terrible construction of the Constitution, which Chief Justice Taney thought should have included an assertion of a State's duty by legislation to aid rendition, many northern States passed personal liberty laws, besetting the capture of slaves with all possible difficulties thought compatible with the Constitution. The South denounced all such laws whatever as unconstitutional, and perhaps some of them were.

[1835]

Constitutional or not, they were needed. There were regular expeditions to carry off free colored persons from the coasts of New York and New Jersey, many of them successful. The foreign slave-trade, with its ineffable atrocities, proved defiant of law and preternaturally tenacious of life. A lucrative but barbarous domestic trade had sprung up between the Atlantic States, Virginia and North Carolina especially, and those on the Gulf, for the supply of the southern market. Families were torn apart, gangs of the poor creatures driven thousands of miles in shackles or carried coastwise in the over-filled holds of vessels, to live or die--little matter which--under unknown skies and strange, heartless masters.

The slave codes of the southern States grew severer every year, as did legislation against free colored people. Laws were passed rendering emancipation more difficult and less a blessing when obtained. The Mississippi and Alabama constitutions, 1817 and 1819 respectively, and all those in the South arising later, were shaped so as to place general emancipation beyond the power even of Legislatures. Congress was even thus early--so it seemed at the North--all too subservient to the slave-holders, partly through the operation of the three-fifths rule, partly from fear that opposition would bring disunion, partly in that ambitious legislators were eager for southern votes. As to the Senate, the South had taken care, Vermont, Kentucky and Tennessee having evened the score, all before 1800, to allow no new northern State to be

admitted unless matched by a southern. In addition to all this, the North had a vast trade with the South, and northern capitalists held to an enormous amount mortgages on southern property of all sorts, so that large and influential classes North had a pecuniary interest in maintaining at the South both good nature and business prosperity.

CHAPTER II.

"IMMEDIATE ABOLITION"

[1832]

While slavery was thus strengthening itself upon its own soil and in some respects also at the North, its champions ever more alert and forward, its old foes asleep, these very facts were provoking thought about the institution and hostility to it, destined in time to work its overthrow. Interested people saw that slavery, so aggressive and defiant, must be fought to be put down, and that if the Constitution was its bulwark, as all believed, provided a tithe of what the South as well as the North had said of its evils was true, the whole country, and not the South only, was guilty in tolerating the curse. In 1821 Lundy began publishing his *Genius of Universal Emancipation*, seconded, from 1829, by the more radical Garrison. In 1831 Garrison founded the *Liberator*, whose motto, "immediate and unconditional emancipation," was intended as a rebuke to the tame policy of the colonizationists. "I am in earnest," said the plucky man, when his utterances threatened to cost him his life, "I am in earnest, I will not equivocate, I will not excuse, I will not retreat a single inch, and I will be heard." These were startling tones. Had God turned a new prophet loose in the earth?

The abolition spirit was a part of the general moral and religious quickening we have mentioned as beginning about 1825, and revealing itself in revivals, missions, a religious press, and belief in the end of the world as approaching. The ethical teaching of the great German philosopher, Emanuel Kant, denouncing all use of man as an instrument, began to take effect in America through the writings of Coleridge. Hatred of slavery was gradually intensified and spread. In 1832 rose the New England Anti-Slavery Society. In 1833 the American Society was organized, with a platform declaring "slavery a crime."

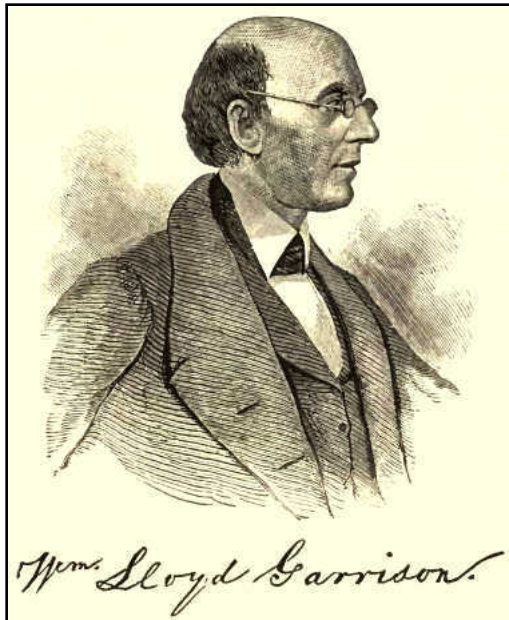
[1833]



John G. Whittier in 1833.

This declaration marked one of the most important turning-points in all the history of the United States. It drew the line. It brought to view the presence in our land of two sets of earnest thinkers, with diametrically opposite views touching slavery, who could not permanently live together under one constitution. May, Phillips, Weld, Whittier, the Tappans, and many other men of intellect, of oratorical power, and of wealth, drew to Garrison's side. State abolition societies were organized all over the North, the Underground Railroad was hard worked in helping fugitives to Canada, and fiery prophets harangued wherever they could get a hearing, demanding "immediate abolition" in the name of God.

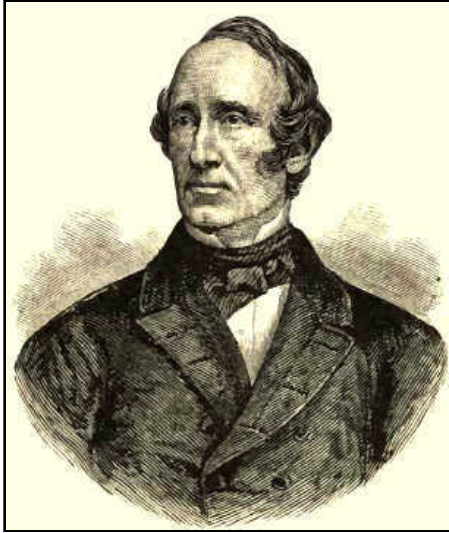
The Abolitionists proposed none but moral arms in fighting slavery--papers, pamphlets, public addresses, personal appeals. They deprecated rebellion by slaves, and urged congressional action against slavery only in the District of Columbia, in the territories, and at sea, where the absolute jurisdiction of the general Government was admitted by nearly all. Nevertheless, southern hostility to them was indescribably ferocious and uncompromising. They were charged with instigating all the slave insurrections and insubordination that occurred, and with having made necessary the new, more diabolical discipline over blacks, both bond and free. Southern papers and Legislatures incessantly commanded that Abolitionists be delivered up to southern justice, their societies and their publications suppressed by law, and abolitionist agitation made penal. There were northerners quite ready to grant these demands. Rage against abolitionism, much of it, if possible, even more unreasoning, prevailed at the North. Garrison says that he found here "contempt more bitter, detraction more relentless, prejudice more stubborn, and apathy more frozen than among slave-owners themselves." The Church, politics, business--all interests save righteousness--seemed to bow to the false god. Of all utterances against abolitionism, those of clergymen and religious journals were the bitterest. To call slavery sin was the unpardonable sin.



Wm. Lloyd Garrison.

[1834-1836]

In 1834, on July 4th, a mob broke up a meeting of the American Anti-Slavery Society in New York. A few days after, Lewis Tappan's house was sacked in the same manner, as well as several churches, school-houses, and dwellings of colored families. At Newark, N. J., a colored man who had been introduced into a pulpit by the minister of the congregation, was forcibly wrenched therefrom and carried off to jail. The pulpit was then torn down and the church gutted. In Norwich, Conn., the mob pulled an abolitionist lecturer from his platform and drummed him out of town to the Rogues' March. In 1836 occurred the murder of Rev. E. P. Lovejoy, at Alton, Ill. He was the publisher of *The Observer*, an abolitionist sheet, which had already been three times suspended by the destruction of his printing apparatus. It was at a meeting held in Faneuil Hall over this occurrence that Wendell Phillips first made his appearance as an anti-slavery orator. Also in 1836 the office at Cincinnati in which James G. Birney published *The Philanthropist*, was sacked, the types scattered, and the press broken and sunk in the river. Birney was a southerner by birth, and had been a slave-holder, but had freed his slaves. Between 1834 and 1840 there was hardly a place of any size in the North where an Abolitionist could speak with certain safety.



Wendell Phillip.

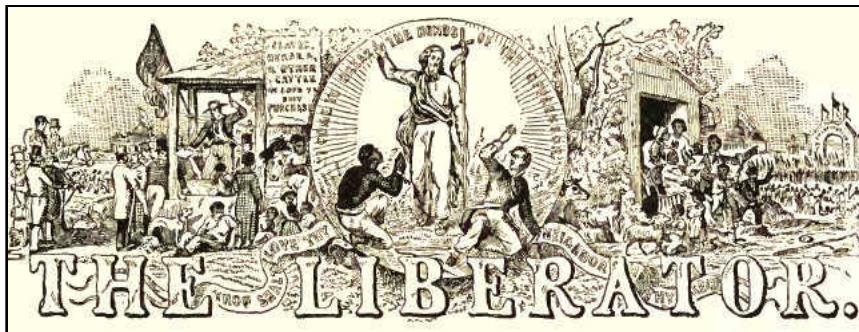
The destruction of colored people's houses became for a time an every-day occurrence in many northern cities. For some years the condition of the free blacks and their friends was hardly better north than south. Schools for colored children were violently opposed even in New England. One kept by Miss Prudence Crandall, at Canterbury, Conn., was, after its opponents had for months sought in every manner to close it, destroyed by fire. The lady herself was imprisoned, and such schools were by law forbidden in the State. A colored school at Canaan, N. H., was voted a nuisance by a meeting of the town; the building was then dragged from its foundations and ruined. Many who aided in these deeds belonged to what were regarded the most respectable classes of society.

[1839-1840]

Owing to the vagaries and unpatriotism of the Garrisonians, there was from 1840 schism in the abolition ranks. Garrison and his closest sympathizers were very radical on other questions besides that concerning the sin of slavery. They declared the Constitution "a league with death and a covenant with hell" because it recognized slavery. They would neither vote nor hold office under it. They upbraided the churches as full of the devil's allies. They also advocated community of property, women's rights, and some of them free love. Others, as Birney, Whittier, and Gerrit Smith, refused to believe so ill of the Constitution or of the churches, and wished to rush the slavery question right into the political arena. The division, far from hindering, greatly set forward the abolitionist cause. Perhaps neither abolition society, as such, had, after the schism of 1840, quite the influence which the old exerted at first, but by this time a very general public opinion maintained anti-slavery propagandism, pushing it henceforth more powerfully than ever, as well as, through broader modes of utterance and action, more successfully. Whittier, Lowell, Longfellow, each enlisted his muse in the crusade. Wendell Phillips's tongue was a flaming sword. Clergymen, politicians, and other people entirely conservative in most things, felt free to join the new society of political Abolitionists.

In 1839 the Governor of Virginia made a requisition on Governor Seward of New York, to send to Virginia three sailors charged with having aided a slave out of bondage. Seward declined, on the ground that by New York law the sailors were guilty of no crime, as that law knew nothing of property in man. He accompanied his refusal with a discussion of slavery and slave law quite in the abolitionist vein. To a like call from Georgia, Seward responded in the same way, and his example was followed by other northern governors. The Liberty Party took the field in 1840, Birney and Earle for candidates, who polled nearly 7,000 votes. Four years later Birney and Morris received 62,300.

It would be a mistake, let us remember, to regard the anti-abolitionist temper at the North wholly as apathy, friendliness to slavery, or the result of truckling to the South. Besides sharing the general fanaticism which mixed itself with the movement, the Abolitionists ignored the South's dilemma--the ultras totally, the moderates too much. "What would you do, brethren, were you in our place?" asked Dr. Richard Fuller, of Baltimore, in a national religious meeting where slavery was under debate; "how would you go to work to realize your views?" Dr. Spencer H. Cone, of New York, roared in reply, "I would proclaim liberty throughout all the land, to all the inhabitants thereof." But the thing was far from being so simple as that. Denouncing the Constitution as Garrison did could not but affront patriotic hearts. It was impolitic, to say the least, to import English co-agitators, who could not understand the intricacies of the subject as presented here.



facsimile of Heading of the "Liberator."

The fact that, defying slave-masters and sycophants alike, the cause of abolition still went on conquering and to conquer, was due much less to the strength of its arguments and the energy of its agitation than to the South's wild outcry and preposterous effrontery of demand. Conservative northerners began to see that, bad as abolitionism might be, the means proposed for its suppression were worse still, being absolutely subversive of personal liberty, free speech, and a free press. More serious was the conviction, which the South's attitude nursed, that such mortal horror at Abolitionists and their propaganda could only be explained by some sort of a conviction on the part of the South itself that the Abolitionists were right, and that slavery was precisely the heinous and damnable evil they declared it to be. It was mostly in considering this aspect of the case that the Church and clergy more and more developed conscience and voice on freedom's side, as practical allies of abolitionism. In each great denomination the South

had to break off from the North on account of the latter's love to the black as a human being. Men felt that an institution unable to stand discussion ought to fall. By 1850 there were few places at the North where an Abolitionist might not safely speak his mind.

It were as unjust as it would be painful to view this long, courageous, desperate defence of slavery as the pure product of depravity. The South had a cause, in logic, law, and, to an extent, even in justice. Both sides could rightly appeal to the Constitution, the deep, irrepressible antagonism of freedom against bondage having there its seat. The very existence of the Constitution presupposed that each section should respect the institutions of the other. What right, then, had the North to allow publications confessedly intended to destroy a legal southern institution, deeply rooted and cherished? From a merely constitutional point of view this question was no less proper than the other: What right had the South, among much else, to enact laws putting in prison northern citizens of color absolutely without indictment, when, as sailors, they touched at southern ports, and keeping them there till their ships sailed? This outrage had occurred repeatedly. What was worse, when Messrs. Hoar and Hubbard visited Charleston and New Orleans, respectively, to bring amicable suits that should go to the Supreme Court and there decide the legality of such detention, they were obliged to withdraw to escape personal violence.

It was said that the North must bear these incidents of slavery, so obnoxious to it, in deference to our complex political system. Yes, but it was equally the South's duty to bear the, to it, obnoxious incidents of freedom. Southern men seem never to have thought of this. Doubtless, as emancipation in any style would have afflicted it, the South could not but account all incitements thereto as hardships; but the North must have suffered hardships, if less gross and tangible, yet more real and galling, had it acceded to southern wishes touching liberty of person, speech, and the press. That at the North which offended the South was of the very soul and essence of free government; that at the South which aggrieved the North was, however important, certainly somewhat less essential. Manifestly, considerations other than legal or constitutional needed to be invoked in order to a decision of the case upon its merits, and these, had they been judicially weighed, must, it would seem, all have told powerfully against slavery. Not to raise the question whether the black was a man, with the inalienable rights mentioned in the Declaration of Independence, the South's own economic and moral weal, and further--what one would suppose should alone have determined the question--its social peace and political stability loudly demanded every possible effort and device for the extirpation of slavery. That this would have been difficult all must admit; that it was intrinsically possible the examples of Cuba and Brazil since sufficiently prove.

CHAPTER III.

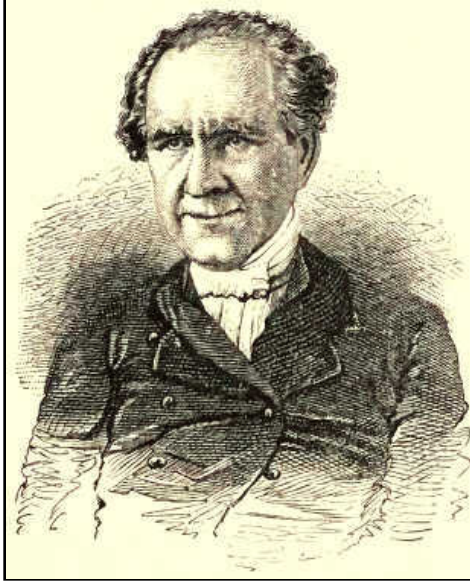
THE MEXICAN WAR

[1836]

Attracted by fertility of soil and advantages for cattle-raising, large numbers of Americans had long been emigrating to Texas. By 1830 they probably comprised a majority of its inhabitants. March 2, 1836, Texas declared its independence of Mexico, and on April 10th of that year fought in defence of the same the decisive battle of San Jacinto. Here Houston gained a complete victory over Santa Anna, the Mexican President, captured him, and extorted his signature to a treaty acknowledging Texan independence. This, however, as having been forced, the Mexican Government would not ratify.

[1845]

Not only did the Texans almost to a man wish annexation to our Union, but, as we have seen, the dominant wing of the democratic party in the Union itself was bent upon the same, forcing a demand for this into their national platform in 1840. Van Buren did not favor it, which was the sole reason why he forfeited to Polk the democratic nomination in 1844. Polk was elected by free-soil votes cast for Birney, which, had Clay received them, would have carried New York and Michigan for him and thus elected him; but the result was hailed as indorsing annexation. Calhoun, Tyler's Secretary of State, more influential than any other one man in bringing it about, therefore now advocated it more zealously than ever. Calhoun's purpose in this was to balance the immense growth of the North by adding to southern territory Texas, which would of course become a slave State, and perhaps in time make several States. As the war progressed he grew moderate, out of fear that the South's show of territorial greed would give the North just excuse for sectional measures.



General Sam. Houston.

Henry Clay, with nearly the entire Whig Party, from the first opposed the Tyler-Calhoun programme. Clay's own reason for this, as his memorable Lexington speech in 1847 disclosed, was that the United States would be looked upon "as actuated by a spirit of rapacity and an inordinate desire for territorial aggrandizement." His party as a whole dreaded more the increment which would come to the slave power. After much discussion in Congress, Texas was annexed to the Union on January 25, 1845, just previous to Polk's accession. June 18th, the Texan Congress unanimously assented, its act being ratified July 4th by a popular convention. Thus were added to the United States 376,133 square miles of territory.



General Santa Anna.

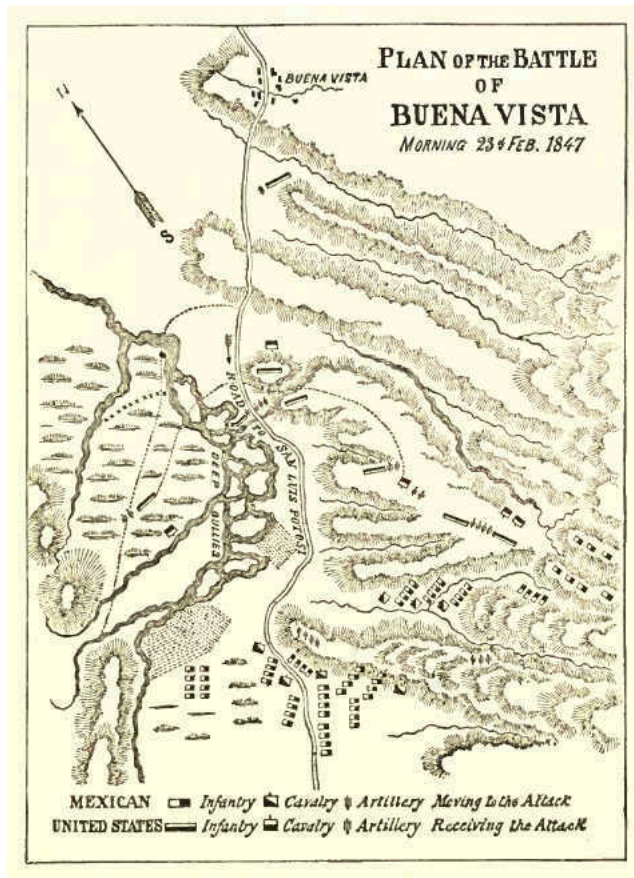
The all-absorbing question now was where Texas ended: at the Nueces, as Mexico declared, or at the Rio Grande, as Texas itself had maintained, insisting upon that stream as of old the bourne between Spanish America and the French Louisiana. Mexico, proud, had recognized neither the independence of Texas nor its annexation by the United States, yet would probably have agreed to both as preferable to war, had the alternative been allowed. To be sure, she was dilatory in settling admitted claims for certain depredations upon our commerce, threatened to take the annexation as a *casus belli*, withdrew her envoy and declined to accept Slidell as ours, and precipitated the first actual bloodshed. Yet war might have been averted, and our Government, not Mexico's, was to blame for the contrary result. Slidell played the bully, the navy threatened the coast, our wholly deficient title, through Texas, to the Nueces-Rio-Grande tract was assumed without the slightest ado to be good, and when General Arista, having crossed the river in Taylor's vicinity, repelled the latter's attack upon him, the President, followed by Congress, falsely alleged war to exist "by act of the Republic of Mexico."

[1846]

During most of 1845, General Zachary Taylor was at Corpus Christi on the west bank of the Nueces, in command of 3,600 men. The first aggressive movement occurred in March of the following year, when Taylor, invading the disputed territory by command from Washington, advanced to the Rio Grande, opposite Matamoras. April 26th, a Mexican force crossed the river and captured a party of American dragoons which attacked them. Taylor drew back to establish communication with Point Isabel, and on advancing again toward the Rio Grande, May 8th, found before him a Mexican force of nearly twice his numbers, commanded by Arista. The battle of Palo Alto ensued, and next day that of Resaca de la Palma, Taylor completely victorious in both. May 13th, before knowledge of these actions had reached Washington, warranted merely by news of the cavalry skirmish on April 26th, Congress declared war, and the President immediately called for 50,000 volunteers. In July Taylor was re-enforced by Worth, and proceeded to organize a campaign against Monterey, a strongly fortified town some ninety miles toward the City of Mexico. This place was reached September 19th, and captured on the 22d, after hard fighting and severe losses on both sides. An armistice of eight weeks followed.



James K. Polk, after a photograph by Brady.



PLAN OF THE BATTLE OF BUENA VISTA MORNING 23 OF FEB 1847.

[1847]

Meantime a revolution had occurred in Mexico. The banished Santa Anna was recalled, and as President of the Republic assumed command of the Mexican armies. On February 23, 1847, occurred one of the most sanguinary but brilliant battles of the war, that of Buena Vista. Taylor, learning that a Mexican force was advancing under Santa Anna, at least double the 5,200 left him after the requisition upon him which General Scott had just made, drew back to the strong position of Buena Vista, south of Saltillo. Here Santa Anna, having through an intercepted despatch learned of Taylor's weakness, ferociously fell upon him with a force 12,000 strong. On right and centre, by dint of good tactics and bull-dog fighting, Taylor held his own and more, but the foe succeeded at first in partly turning and pushing back his left. The Mexican commander bade Taylor surrender, but was refused, whence the saying that "Old Rough and Ready," as they called Taylor, "was whipped but didn't know it."

To check the flanking movement he sent forward two regiments of infantry, well supported by dragoons and artillery, who charged the advancing mass, broke the Mexicans' column, and sent them fleeing in confusion. This saved the day. The American loss was 746, including several officers, among them Lieutenant-Colonel Clay, son of the Kentucky statesman. Colonel Jefferson Davis, one day to be President of

the Southern Confederacy, caused during this conflict great havoc in the enemy's ranks with his Mississippi riflemen. Santa Anna's loss was 2,000.



General Winfield Scott.

General Winfield Scott had meantime been ordered to Mexico as chief in command. Taylor was a Whig, and the Whigs whispered that his martial deeds were making the democratic cabinet dread him as a presidential candidate. But Scott was a Whig, too, and if there was anything in the surmise, his victorious march must have given Polk's political household additional food for reflection. Scott's plan was to reduce Vera Cruz, and thence march to the Mexican capital, two hundred miles away, by the quickest route. Vera Cruz capitulated March 27, 1847.

Scott straightway struck out for the interior. He was bloodily opposed at Cerro Gordo, April 18th, and at Jalapa, but he made quick work of the enemy at both these places. In the latter city, after his victory, he awaited promised re-enforcements. When the last of these had arrived, August 6th, under General Franklin Pierce, so that he could muster about 14,000 men, he advanced again. August 10th the Americans were in sight of the City of Mexico. This was a natural stronghold, and art had added to its strength in every possible way. Except on the south and west it was nearly inaccessible if defended with any spirit. Scott of course directed his attack toward the west and south sides of the city. The first battle in the environs of the capital was fiercely fought near the village of Contreras, and proved an overwhelming defeat for the Mexicans. Two thousand were killed or wounded, while nearly 1,000, including four generals, were captured, together with a large quantity of stores and ammunition. The American loss was only 60 killed and wounded.

The survivors fled to Churubusco, farther toward the city, where, with every advantage of position, Santa Anna had united his forces for a final stand. An old stone convent, which our artillery could not reach

till late in the action, was utilized as a barricade, and from this the Mexicans poured a most deadly fire upon their assailants. The Americans were victorious, as usual, but their loss was fearful, 1,000 being killed or wounded, including 76 officers. A truce to last a fortnight was now agreed upon, but Scott, seeing that the Mexicans were taking advantage of it to strengthen their fortifications, did not wait so long. He now had about 8,500 men fit for duty, and sixty-eight guns. Hostilities were renewed September 7th, by the storm and capture, costing nearly 800 men, of Molino del Rey, or "King's Mill," a mile and a half from the city.

Possession of the Molino opened the way to Chapultepec, the Gibraltar of Mexico, 1,100 yards nearer the goal. As it was built upon a rock 150 feet high, impregnable on the north and well-nigh so on the eastern and most of the southern face, only the western and part of the southern sides could be scaled. But the stronghold was the key to the city, and after surveying the situation, a council of war decided that it must be taken. Two picked American detachments, one from the west, one from the south, pushed up the rugged steep in face of a withering fire. The rock-walls to the base of the castle had to be mounted by ladders. This was successfully accomplished; the enemy were driven from the building back into the city, and the castle and grounds occupied by our troops. A large number of fugitives were cut off by a force sent around to the north.



The Plaza of the City of Mexico.

[1848]

To pierce the city was even now by no means easy. The approach was by two roads, one entering the Belen gate, the other the San Cosme. General Quitman advanced toward the Belen, but at the entrance was stopped by a destructive cannonade from the citadel itself. Those fighting their way toward the San Cosme succeeded in entering the city, Lieutenant U. S.

Grant making his mark in the gallant work of this day. The city was evacuated that night, and on the 15th of September, 1847, was fully in the hands of Scott.

The treaty of Guadalupe Hidalgo was signed on February 2, 1848. It established the Rio Grande as the boundary between the two countries, and New Mexico, of course including what is now Arizona and also California, was ceded to the United States for \$15,000,000. The United States also assumed, to the sum of \$3,250,000, the claims of American citizens upon Mexico. For Gadsden's Purchase, in 1853, between the Gila River and the Mexican State of Chihuahua, we paid \$10,000,000 more. Our territory thus received in all, as a consequence of the Mexican War, an increment of 591,398 square miles.

Inseparable from the politics of the Mexican War is the Oregon question, since Oregon's re-occupation and "fifty-four forty or fight" had been democratic cries for securing to Polk west-northern votes in 1844. We had, however, no valid claim so far north, except against Russia--by the treaty of 1824. The Louisiana purchase, indeed, had vested us with whatever--very dubious--rights France had upon the Pacific, and the Florida treaty of 1819 gave us the far better title of Spain to the coast north of 42 degrees. This treaty, with Gray's discovery of the Columbia in 1792, Lewis and Clarke's official explorations of the Columbia valley in 1804-05-06, England's retrocession, in 1818, of Astoria, captured during the War of 1812, and extensive actual settlements upon the river by American citizens from 1832 on, made our claim perfect up to 49 degrees at least. This parallel the convention with Great Britain in 1818 had already fixed as our northern line from the Lake of Woods to the Rocky Mountains. Between this and 54 degrees 40 minutes, England's title, from exploration and settlement, was superior to ours, which was based upon alleged old Spanish discovery. The same convention of 1818, renewed in 1827, opened the Oregon country to occupation by settlers from both nations. Increase of immigration rendering a fixing of jurisdictions imperative, England pressed for the line of the Columbia below its intersection of the forty-ninth parallel. We had twice offered to settle upon 49 degrees, which limit the rapid growth of our population in the region induced England in 1836 to accept. Whether Polk's blustering demand for "all Oregon," which came near bringing on war with England, and his much condemned recession later, were mere opportunist acts, is still a question. Many consider them pieces of a deep-laid policy by Polk to tole Mexico to war in hope of England's aid, then, suddenly pacifying England, to devour Mexico at his leisure.

CHAPTER IV.

CALIFORNIA AND THE COMPROMISE OF 1850

[1846]

One of the campaigns at the beginning of the Mexican War was that of General Stephen W. Kearney, from Fort Leavenworth, against New Mexico. It was opened in May, 1846. He invaded the country without much opposition, arrived at Santa Fe August 18th, having marched 873 miles,

declared the inhabitants free from all allegiance to Mexico, and formed a territorial government over them as United States subjects.

Captain John C. Fremont had previously, but in the same year, 1846, been sent to California at the head of an exploring expedition, and in May he was notified to remain in the country in anticipation of hostilities. On June 15th he captured Samona. Meanwhile, Commodore Sloat was erecting our flag over the towns on the coast. In July Sloat was superseded by Commodore Stockton, who routed the Mexican commander, De Castro, at Los Angeles, joined Fremont, and on August 13th seized Monterey, the then capital. The two commanders now placed themselves at the head of a provisional government for California.



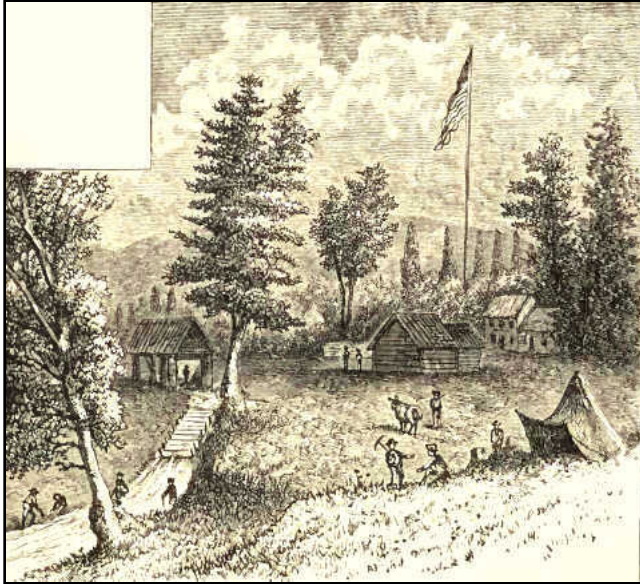
Zachary Taylor. After a photograph by Brady.



The Site of San Francisco in 1848.

[1848-1849]

In 1848, on the same day and almost at the same hour when the peace of Guadalupe Hidalgo was concluded, gold was discovered in California. It was on the land of one Sutter, a Swiss settler in the Sacramento Valley, as some workmen were opening a flume for a mill. In three months over 4,000 persons were there, digging for gold with great success. By July, 1849, it is thought, 15,000 had arrived. Nearly all were forced to live in booths, tents, log huts, and under the open sky. The sparse population previously on the ground left off farming and grazing and opened mines. People became insane for gold. Immigrants soon came in immense hordes. In 1846, aside from roving Indians, California had numbered not much over 15,000 inhabitants. By 1850, it seems certain that the territory contained no fewer than 92,597. The new-comers were from almost every land and clime--Mexico, South America, the Sandwich Islands, China--though, of course, most were Americans. The bulk of these hailed from the Northwest and the Northeast. To this land of promise the sturdy pioneers from the Mississippi Valley found their way on foot, on horseback, or in wagons, over the Rocky Mountains and the Sierras, following trails previously untrodden by civilized man. Those from the East made long detours around Cape Horn or across the Isthmus of Panama.



Sutter's Mill, California, where Gold was First Discovered.

The yield of gold from the virgin placers was enormous, a laborer's average the first season being perhaps an ounce a day, though many made much more. During the first two years about \$40,000,000 worth of gold was extracted. According to careful estimates the gold yield of the United States, mostly from California, which had been only \$890,000 in 1847, increased to \$10,000,000 in 1848, to \$40,000,000 in 1849, to \$50,000,000 in 1850, to \$55,000,000 in 1851, to \$60,000,000 in 1852, and in 1853 to \$65,000,000.

Most interesting were the spontaneous governmental and legal institutions which arose in these motley communities, some of them finding their originals in the English mining districts, others in Mexico and Spain, and still others recalling the mining customs of medieval Germany. For a time many camps had each its independent government, disconnected from all human authority around or above. Some of these were modelled after the Mexican Alcaldeship, others after the New England town. Over those who rushed to the vicinity of Sutter's mill that gentleman became virtual Alcalde, though he was not recognized by all. The men first opening a placer would seek to pre-empt all the adjoining land, giving up only when others came in numbers too strong for them. Officers were elected and new customs sanctioned as they were needed. Partnerships were sacredly maintained, yet by no other law than that of the camp. Crimes against property and life seem to have been infrequent at first, but the unparalleled wealth toled in and developed a criminal class, which the rudimentary government could not control. San Francisco formed in 1851 a vigilance committee of citizens, by which crimes could be more summarily and surely punished. The pioneer banking house in California began business at San Francisco in January, 1849. The same month saw the first frame house on the Sacramento, near Sutter's Fort.

The vast acquisition of territory by the Mexican War seemed destined to be a great victory for slavery, because nearly all of it lay south of 36 degrees 30 minutes and hence by the Missouri Compromise could become

slave soil. But there was the complication that under Mexico all this wide realm had been free. To exist there legally slavery must therefore be established by Congress, making the case very different from the cases of Louisiana, Florida, and Texas, which came under United States authority already burdened. This predisposed many who were not in general opposed to slavery, against extending the institution hither. Early in the war a bill had passed the House, failing almost by accident in the Senate, which contained the famous Wilmot Proviso, so named from its mover in the House, that, except for crime, neither slavery nor involuntary servitude should ever exist in any of the territories to be annexed. Wilmot was a Democrat, and at this time a decided majority of his party favored the proviso. But the pro-slavery wing rallied, while the Whigs, disbelieving in the war and in annexation both, offered the proviso Democrats no hearty aid. In consequence it was defeated both then and after the annexation.

The election of 1848 went for the Whigs, and the next March 4th, General Taylor became President. Though a southerner and a slave-holder, he was moderate and a true patriot. So rapid had been the influx into California that the Territory needed a stable government. Accordingly, one of Taylor's first acts as President was to urge California to apply for admission to statehood. General Riley, military governor, at once called a convention, which, sitting from September 1st to October 13th, framed a constitution and made request that California be taken into the Union. This constitution prohibited slavery, and thus a new firebrand was tossed into the combustible material with which the political situation abounded. By this time nearly all the friends of freedom were for the proviso, but its enemies as well had greatly increased. The immense growth, actual and prospective, of northern population, greatly inspired one side and angered the other.

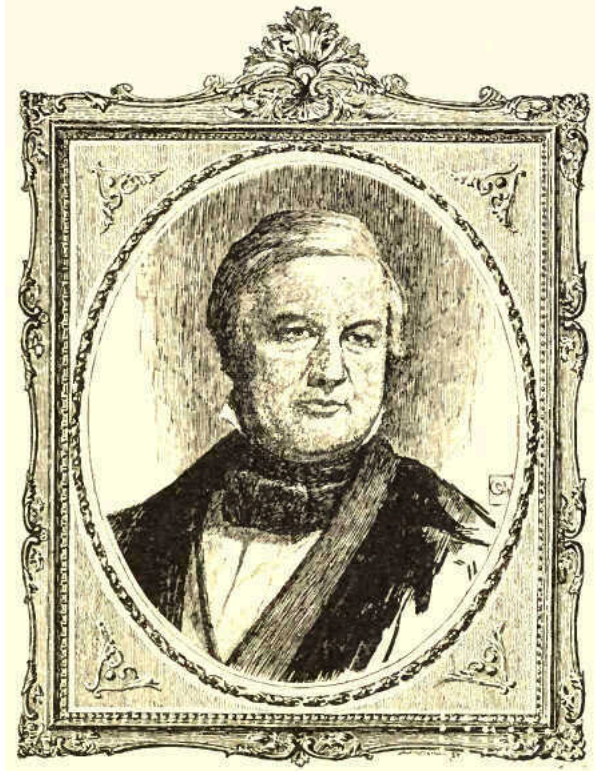
[1850]

Resort was now had again to the old, illusive device of compromise, Clay being the leader as usual. He brought forward his "Omnibus Bill," so called because it threw a sop to everybody. It failed to pass as a single measure, but was broken up and enacted piecemeal. Stubborn was the fight. Radicals of the one part would consent to nothing short of extending the Missouri Compromise line to the Pacific; those of the other stood solidly for the unmodified proviso.

In this crisis occurred President Taylor's death, July 9, 1850, which was most unfortunate. He was known not to favor the pro-slavery aggression which, in spite of Clay's personal leaning in the opposite direction, the omnibus bill embodied. Mr. Fillmore, as also Webster, whom he made his Secretary of State, nervous with fear of an anti-slavery reputation, went fully Clay's length. The debate on this compromise of 1850 was the occasion when Webster deserted the free-soil principles which were now dominant in New England. His celebrated speech of March. 7th marked the crisis of his life. He argued that the proviso was not needed to prevent slavery in the newly gotten district, while its passage would be a wanton provocation to the South. From this moment Massachusetts dropped him. When she next elected a senator for a full term, it was Charles Sumner, candidate of the united Democrats and Free-soilers, who went to Congress pledged to fight slavery to the death.

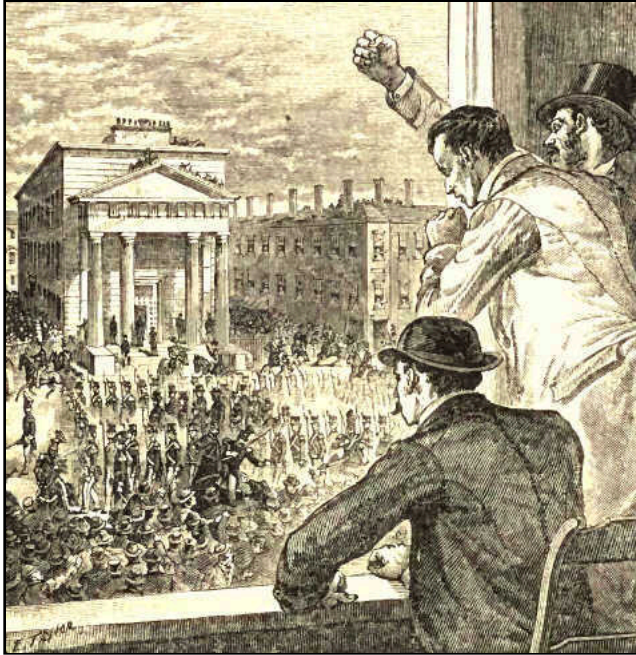
But the omnibus compromises were passed. California was, indeed, admitted free, September 9, 1850--the thirty-first State in order--and slave-trade in the District of Columbia slightly alleviated. On the other hand, Texas was stretched to include a huge piece of New Mexico that was free before, and paid \$10,000,000 to relinquish further claims. This was virtually a bonus to holders of her scrip, which from seventeen cents the dollar instantly rose to par. New Mexico and Utah were to be organized as Territories without the proviso, and were made powerless to legislate on slavery till they should become States. Least sufferable, a fugitive slave law was passed, so Draconian that that of 1793, hitherto in force, was benign in comparison. It placed the entire power of the general Government at the slave-hunter's disposal, and ordered rendition without trial or grant of habeas corpus, on a certificate to be had by simple affidavit. Bystanders, if bidden, were obliged to help marshals, and tremendous penalties imposed for aid to fugitives.

This act facilitated the recovery of fugitives at first, but not permanently. Many who had labored for its passage soon saw that it was a mistake. It powerfully fanned the abolition flame all over the North. New personal liberty laws were enacted. A daily increasing number adopted the view that the new act was unconstitutional, on the ground that the Constitution places the rendition of slaves as of criminals in the hands of States, and guarantees jury trial, even upon title to property, if over twenty dollars in value. After the act had been justified in the courts, multitudes of moderate northern men urged to a dangerous degree the doctrine of state rights in defence of the liberty laws. Others adopted the cry of the "higher law," and without joining Garrison in denouncing the Government, did not hesitate to oppose in every possible way the operation of this drastic legislation for slave-catching.



Millard Fillmore.
From a painting by Carpenter in 1853, at the City Hall, New York.

The country's growth made escape from bondage continually easier and easier. Once across the border a runaway was sure to find many friends and few enemies. Openly, or, if this was required, by stealth, he was passed quickly along to the Canada line. Between 1830 and 1860 over 30,000 slaves are estimated to have taken refuge in Canada. By 1850, probably no less than 20,000 had found homes in the free States. The new law moved many of these across into the British dominions. It was hence increasingly difficult for the slave-owner to recover stray property. All possible legal obstructions were placed in his way, and when these failed he was likely still to be opposed by a mob which might prove too powerful for the marshal and any posse which he could gather.



The Rendition of Anthony Burns in Boston.

In Boston, when a slave named Shadrach was arrested, his friends made a sudden dash, rescued him from the officers and freed him. With Simms the same was attempted, but in vain. The removal of Anthony Burns from that city in 1855 was possible only by escorting him down State Street to the revenue cutter in waiting, inside a dense hollow square of United States artillerymen and marines, with the whole city's militia under arms and at hand. Business houses as well as residences were closed and draped in mourning. It was an indignity which Massachusetts never forgot. At Alton, Ill., slave-hunters seized a respectable colored woman, long resident there, who fully believed herself free. She was surrounded by an infuriated company of citizens, and would have been wrenched from her captors' clutch had not they, in their terror, offered to sell her back into freedom. The needed \$1,200 was raised in a few minutes, and the agonized creature restored to her family. Judge Davis, whom the evidence had compelled to deliver the woman, on rendering the sentence resigned his commission, declaring: "The law gives you your victim. Thank it and not me, and may God have mercy on your sinful souls."

CHAPTER V.

THE FIGHT FOR KANSAS

[1850-1854]

The measures of 1850 proved anything but the "finality" upon slavery discussion which both parties, the Whigs as loudly as the Democrats, promised and insisted that they should be. Elated by its victory in 1850, and also by that of 1852, when the anti-slavery sentiment of northern Whigs drove so many of their old southern allies to vote for

Pierce, giving him his triumphant election, the slavocracy in 1854 proceeded in its work of suicide to undo the sacred Missouri Compromise of 1820. Douglas, the ablest northern Democrat, led in this, succeeding, as official pacificator between North and South, somewhat to the office of Clay, who had died June 29, 1852. The aim of most who were with him was to make Kansas-Nebraska slave soil, but we may believe that Douglas himself cherished the hope and conviction that freedom was its destiny.

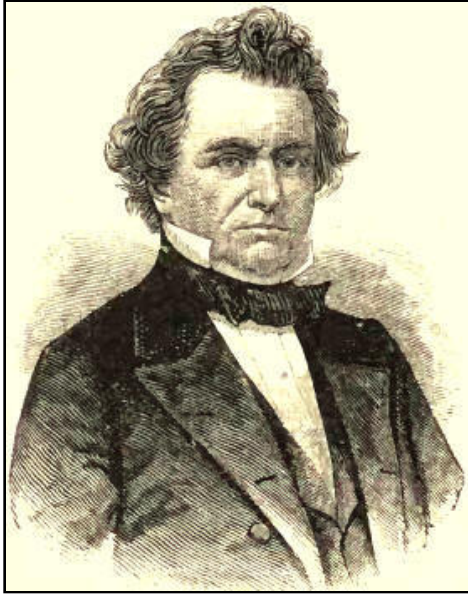
This rich country west and northwest of Missouri, consecrated to freedom by the Missouri Compromise, had been slowly filling with civilized men. It did not promise to be a profitable field for slavery, nor would economic considerations ever have originated a slavery question concerning it. But politically its character as slave or free was of the utmost consequence to the South, where the resolution gradually arose either to secure it for the peculiar institution or else prevent its organization even as a Territory. A motion for such organization had been unsuccessfully made about 1843, and it was repeated, equally without effect, each session for ten years. None of these motions had contained any hint that slavery could possibly find place in the proposed Territory. The bill of December 15, 1853, like its predecessors, had as first drawn no reference whatever to slavery, but when it returned from the committee on Territories, of which Douglas was chairman, the report, not explicitly, indeed, made the assumption, unheard of before, that Kansas-Nebraska stood in the same relation to slavery in which Utah and New Mexico had stood in 1850; and that the compromise of that year, in leaving the question of slavery to the States to be formed from these Territories, had already set aside the agreement of 1820. These assumptions were totally false. The act of 1850 gave Utah and New Mexico no power as Territories over the debatable institution, and contained not the slightest suggestion of any rule in the matter for territories in general.

But the hint was taken, and on January 16th notice given of intention to move an out-and-out abrogation of the Missouri Compromise. Such abrogation was at once incorporated in the Kansas-Nebraska bill reported by Douglas, January 23, 1854. This separated Kansas from Nebraska, and the subsequent struggle raged in reference to Kansas alone. The bill erroneously declared it established by the acts of 1850 that "all questions as to slavery in the Territories," no less than in the States which should grow out of them, were to be left to the residents, subject to appeal to the United States courts. It passed both houses by good majorities and was signed by President Pierce May 30th. Its animus appeared from the loss in the Senate of an amendment, moved by S. P. Chase, of Ohio, allowing the Territory to prohibit slavery.



Franklin Pierce.
From a painting by Healy, in 1852, at the Corcoran Art Gallery.

Thus was first voiced by a public authority Judge Douglas's new and taking heresy of "squatter sovereignty," that Congress, though possessing by Article IV., Section iii., Clause 2 of the Constitution, general authority over the Territories, is not permitted to touch slavery there, but must leave it for each territorial populace "to vote up or vote down." At the South this doctrine of Douglas's was dubbed "nonintervention," and its real aim to secure Kansas a pro-slavery character avowed. It was consequently popular there as useful toward the repeal, although repudiated the instant its working bade fair to render Kansas free.



Stephen A. Douglas.

[1855]

This was soon the prospect. Organizations had been formed to aid anti-slavery emigrants from the northern States to Kansas. The first was the Kansas Aid Society, another a Massachusetts corporation entitled the New England Emigrant Aid Society. There were others still. Kansas began to fill up with settlers of strong northern sympathies. They were in real minority at the congressional election of November, 1854, and in apparent minority at the territorial election the next March. The vote against them on the last occasion, however, was largely deposited by Missourians who came across the border on election day, voted, and returned. This was demonstrated by the fact that there were but 2,905 legal voters in the Territory at the time, while 5,427 votes were cast for the pro-slavery candidates alone. These early successes gave the pro-slavery party and government in Kansas great vantage in the subsequent congressional contest. The first Legislature convened at Pawnee, July 2, 1855, enacted the slave laws of Missouri, and ordered that for two years all state officers should be appointed by legislative authority, and no man vote in the Territory who would not swear to support the fugitive slave law.

The free-state settlers, now a majority, ignored this Legislature and its acts, and at once set to work to secure Kansas admission to the Union as a State without slavery. The Topeka convention, October 23, 1855, formed the Topeka constitution, which was adopted December 14th, only forty-six votes being polled against it. This showed that pro-slavery men abstained from voting. January 15, 1856, an election was held under this constitution for state officers, a state legislature, and a representative in Congress. The House agreed, July 3d, by one majority, to admit Kansas with the Topeka constitution, but the Senate refused. The Topeka Legislature assembled July 4th, but was dispersed by United States troops.

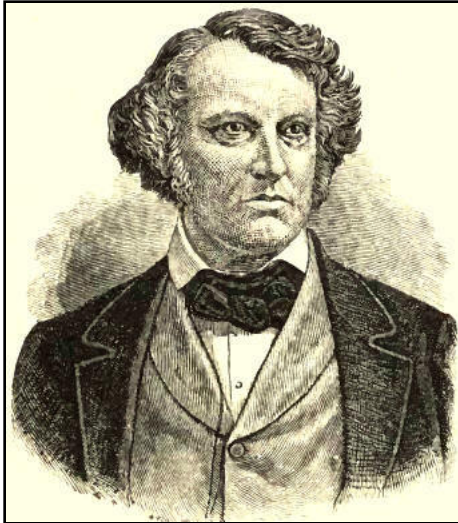
[1856-1857]

This was done under command from Washington. President Pierce, backed by the Senate with its steady pro-slavery majority, was resolved at all hazards to recognize the pro-slavery authorities of Kansas and no other, and, as it seemed, to force it to become a slave State; but fortunately the House had an anti-slavery majority which prevented this. The friends of freedom in Kansas had also on their side the history that was all this time making in Kansas itself. During the summer of 1856 that Territory was a theatre of constant war. Men were murdered, towns sacked. Both sides were guilty of violence, but the free-state party confessedly much the less so, having far the better cause. Nearly all admitted that this party was in the majority. Even the governors, all Democrats, appointed by Pierce, acknowledged this, some of them, to all appearance, being removed as a punishment for the admission. Governor Geary, in office from September, 1856, to March, 1857, and Governor Walker, in office from May, 1857, were just and able men, and their decisions, in most things favorable to the free-state cause, had much weight with the country.

Walker's influence in the Territory led the free-state men to take part in the territorial election of October, 1857, where they were entirely triumphant. But the old, pro-slavery Legislature had called a constitutional convention, which met at Lecompton, September, 1857, and passed the Lecompton constitution. This constitution sanctioned slavery and provided against its own submission to popular vote. It ordained that only its provision in favor of slavery should be so submitted. This pro-slavery clause was adopted, but only because the free-state men would not vote. The Topeka Legislature submitted the whole constitution to popular vote, when it was overwhelmingly rejected. The President and Senate, however, urged statehood under the Lecompton constitution, although popular votes in Kansas twice more, April, 1858, and March, 1859, had adopted constitutions prohibiting slavery, the latter being that of Wyandotte. But the House still stood firm. Kansas was not admitted to the Union till January 29, 1861, when her chief foes in the United States Senate had seceded from the Union. She came in with the Wyandotte constitution and hence as a free State.

It was during the debate upon Kansas affairs in 1856 that Preston S. Brooks, a member of the House from South Carolina, made his cowardly attack upon Charles Sumner. Sumner had delivered a powerful speech upon the crime against Kansas, worded and delivered, naturally but unfortunately, with some asperity. In this speech he animadverted severely upon South Carolina and upon Senator Butler from that State. This gave offence to Brooks, a relative of Butler, and coming into the Senate Chamber while Sumner was busy writing at his desk, he fell upon him with a heavy cane, inflicting injuries from which Sumner never recovered, and which for four years unfitted him for his senatorial duties. Sumner's colleague, Henry Wilson, in an address to the Senate, characterized the assault as it deserved. He was challenged by Brooks, but refused to fight on the ground that duelling was part of the barbarism which Brooks had shown in caning Sumner. Anson Burlingame, representative from Massachusetts, who had publicly denounced the caning, was challenged by Brooks and accepted the challenge, but, as he named Canada for the place of meeting, Brooks declined to fight him for the ostensible reason that the state of feeling in the North would

endanger his life upon the journey. A vote to expel Brooks had a majority in the House, though not the necessary two-thirds. He resigned, but was at once re-elected by his South Carolina constituency.



Charles Sumner.

While the fierce Kansas controversy had been raging, the South had grown cold toward the Douglas doctrine of popular sovereignty, and had gradually adopted another view based upon Calhoun's teachings. This was to the effect that Congress, not under Article IV., section iii., clause 2, but merely as the agent of national sovereignty, rightfully legislates for the Territories in all things, yet, in order to carry out the constitutional equality of the States in the Territories, is obliged to treat slaves found there precisely like any other property. If one citizen wishes to hold slaves, all the rest opposing, the general Government must support him. It is obvious how antagonistic this thought was to that of Douglas, since, according to the latter, a majority of the inhabitants in a Territory could elect to exclude slavery as well as to establish it.

The new southern or Calhoun theory assumed startling significance for the Nation when, in 1857, it was proclaimed in the Dred Scott decision of the United States Supreme Court as part of the innermost life of our Constitution. Dred Scott was a slave of an army officer, who had taken him from Missouri first into Illinois, a free State, then into Wisconsin, covered by the Missouri Compromise, then back into Missouri. Here the slave learned that by decisions of the Missouri courts his life outside of Missouri constituted him free, and in 1848, having been whipped by his master, he prosecuted him for assault. The decision was in his favor, but was reversed when appeal was taken to the Missouri Supreme Court. Dred Scott was now sold to one Sandford, of New York. Him also he prosecuted for assault, but as he and Sandford belonged to different States this suit went to the United States Circuit Court. Sandford pleaded that this lacked jurisdiction, as the plaintiff was not a citizen of Missouri but a slave.

It was this last issue which made the case immortal. The Circuit Court

having decided in the defendant's favor, the plaintiff took an appeal to the Supreme Court. Here the verdict was against the citizenship of the negro, and therefore against the jurisdiction of the court below. The upper court did not stop with this simple dictum, hard and dubious as it was, but proceeded to lay down as law an astounding course of pro-slavery reasoning. In this it confined the ordinance of 1787 to the old northwestern territory, declared the Missouri Compromise and all other legislation against slavery in Territories unconstitutional, and the slave character portable not only into all the Territories but into all the States as well, slavery having everywhere all presupposition in its favor and freedom being on the defensive. The denial of Scott's citizenship was based solely upon his African descent, the inevitable implication being that no man of African blood could be an American citizen.

This decision rendered jubilant all friends of slavery, as also the ultra Abolitionists, but correspondingly disheartened the sober friends of human liberty. How, it was asked, is the cause of freedom to be advanced when the supreme law of the land, as interpreted by the highest tribunal existing for that purpose, virtually establishes slavery in New England itself, provided any slave-master wishes to come there with his troop? But anti-slavery men did not despair. Patriots had of course to obey the court till its opinion should be reversed, yet its opinion was at once repudiated as bad law. Men like Sumner, Wilson, Chase, Giddings, Seward, and Lincoln, appealing to both the history and the letter of the Constitution, and to the course of legislation and of judicial decisions on slavery even in the slave States, had been elaborating and demonstrating the counter theory, under which our fundamental law appeared as anything but a "covenant with hell."

The pith of this counter theory was that slaves were property not by moral, natural, or common law, but only by state law, that hence freedom, not slavery, was the heart and universal presupposition of our government, and that slavery, not freedom, was bound to show reasons for its existence anywhere. This being so, while Calhoun and Taney were right as against Douglas in ascribing to Congress all power over the Territories, it was as impossible to find slaves in any United States Territory as to find a king there. Slaves taken into Territories therefore became free. Slaves taken into any free State became free. Slaves carried from a slave State on to the high seas became free. Even the fugitive slave clause of the Constitution must be applied in the way least favorable to slavery.

On the other hand Douglas was right in his view that citizens and not States were the partners in the Territories. As to the assertion of incompatibility between citizenship and African blood, it would not stand historical examination a moment. If it was true that the framers of the Constitution did not consciously include colored persons in the "ourselves and our posterity" for whom they purposed the "Blessings of Liberty," neither did they consciously exclude, as is clear from the fact that nearly everyone of them expected blacks some time to be free.

CHAPTER VI.

SLAVERY AND THE OLD PARTIES

[1841]

The Democratic Party was predominantly southern, the Whig northern. Both sought to be of national breadth, but the democratic with much the better success. Democracy would not give up its northern vote nor the Whigs their southern; but a better party fealty, due to a longer and prouder party history, rendered the Democrats far the more independent and bold in the treatment of their out-lying wing. The consequence was that while its rank and file at the North never loved slavery, they tolerated it and became its apologists in a way to make the party as a whole not only in appearance but in effect the pliant organ of the slavocracy. This status became more pronounced with the progress of the controversy and of the South's self-assertion. It was real under Jackson, rigid under Van Buren, manifest and almost avowed under Polk, Pierce, and Buchanan.

Whig temper toward slavery was throughout the North much better, but whig party action was little better. Fear of losing southern supporters permanently forbade all frank enlistment by the Whig Party for freedom. The mighty leaders, Adams, Webster, even Clay, were well inclined, and the party, as such, was at the South persistently accused of alliance with the Abolitionists. This was untrue. Abolitionists, Liberal Party men, and Free-soilers oftener voted with Democrats than with Whigs. Clay complained once that Abolitionists denounced him as a slave-holder, slave-holders as an Abolitionist, while both voted for Van Buren. Compromise was the bane of this party as of the other; and each of the resplendent chieftains named at one time or another seemed so reverent to Belial that the record is painful reading.

When in 1841 the ship *Creole* sailed from Richmond with one hundred and thirty-five slaves on board bound for the southern market, and one Madison Washington, a recovered runaway on board, headed a dash upon captain and crew, got possession of the vessel and took her into New Providence, Clay was as loud as Calhoun or any southern senator in demanding of the English Government the return of these slaves to bondage or, at least, that of "the mutineers," as they were called. Webster, Secretary of State at the time, instructed Edward Everett, our English minister, to insist upon this, his arguments being sound and his tone emphatic enough to please Mr. Calhoun. This was the time when Giddings, of Ohio, brought into the House his resolutions to the effect that slavery was a state institution only, and that hence any slave carried on to the open ocean or to any other locality where only national law prevailed, was free. He was censured in the House by a large majority and resigned, but his Ohio constituency immediately re-elected him.

[1836-1844]

Up to this time Giddings and Adams were the only pronounced anti-slavery men in that body. Adams had acquiesced in the Missouri Compromise, but all his subsequent career, especially his course in the House of Representatives after 1830, is not only creditable to him so far as the slavery question is concerned, but registers him as one of the most influential opponents of slavery in our history. Refusing to be classed

with the Abolitionists, he was, in effect, the most efficient Abolitionist of them all.

Previous to 1835, though petitions against slavery reached Congress in great numbers and nettled many members, they had been received and referred in the usual manner. But in February, 1836, the House created a special committee to consider these petitions. It reported a resolution, which passed under the previous question, that thereafter all papers of the kind should be tabled without printing or reference. Adams declared to the House: "I hold the resolution to be a direct violation of the Constitution of the United States, the rules of this House, and the rights of my constituents." In this encounter Adams advanced the view on which the Emancipation Proclamation by and by proceeded, that slavery, even in States, was not beyond reach of the national arm, but would be at the mercy of Congress the instant slave-masters should rebel. This, the first of the gag laws, was, however, enacted. The second, or Patton gag, was passed on December 21, 1837, and the third, or Atherton gag, a year later. The principle of these, practically cutting off all petitions to Congress respecting slavery, was taken up in the twenty-first rule of the House in 1840.

Mr. Adams was from the first the resolute and uncompromising foe of the gag policy. Wagon-loads of petitions came to him to offer, among them one for his own expulsion from the House and one to dissolve the Union, and he presented all.

February 6, 1837, he inquired of Mr. Speaker whether or not it would be appropriate to offer a petition in his hand from slaves, whereupon the pro-slavery members flew at him like vampires. After much uproar, in which Adams gave as good as was sent him, he sarcastically reminded his already infuriated assailants that the petition was in favor of slavery, not against, and that he had emphatically not offered it, but only made an innocent inquiry of the Speaker about doing so, the proper answer to which was so far from obvious that the Speaker himself had signified his intention to take the sense of the House upon it. Regularly, year after year, Adams moved the abolition of the gag rule, was beaten as regularly, long as a matter of course, sometimes after heated debate in which he was always victor. But little by little the majority vote against him lessened. In 1842 the gag passed by but four votes, in 1843 it had a majority of three only, in 1844 his motion to strike it out was carried by a vote of one hundred and eight to eighty. Adams wrote that day in his diary: "Blessed, forever blessed be the name of God."

[1850]

But a plenitude of Whigs, not all southern, voted for each of these gags. The worst one of all was moved by a Whig. The XXVIIth Congress, strongly whig, voted to retain the gag, which it was left for the XXVIIIth, strongly democratic, finally to repeal. At the South, slavery more and more overbore party feeling. Said Dixon, a Kentucky Whig, in 1854, "Upon the question of slavery I know no Whiggery, no Democracy--I am a pro-slavery man." It should be added, however, that as the conflict progressed, pro-slavery Whigs became few save in the South, and that these nearly all soon turned Democrats.

Most humiliating was the vassalage to the slave power displayed by

northern congressmen of both parties, though forming a majority in the House during all the great days of the slavery battle. The gag history is one example. Resolutions against unquestionably unconstitutional laws imprisoning northern seamen at southern ports simply because they were colored, were tabled in the House by a large majority. Slavery in the District of Columbia, where Congress had the right of "exclusive legislation in all cases whatsoever," so that the entire nation was responsible, defied every effort to abolish it till 1862, after the Civil War began. Nor was the trade there in aught alleviated till 1850, when some modification of it was possible as an element of the compromise described in the preceding chapter. An enlargement of Missouri, adding to the northwest corner of that State, as slave territory, a vast tract which the Missouri Compromise had forever devoted to freedom, being in truth a preliminary repeal of that pact, was carried without opposition.

The brutal and murderous lawlessness practised against Abolitionists was praised by northern congressmen often as slavery came up in debate. Even Senator Silas Wright, of New York, subsequently famous as a foe of slavery, in remarks upon the reference of anti-slavery petitions, boasted of the atrocities at Utica in 1835 and of others similar, as proof that "resistance to these dangerous and wicked agitators in the North had reached a point beyond law and above law." A bill, in 1836, for closing the mails to abolitionist literature, another defiance of the Constitution, Amendment I., secured engrossment in the Senate by the casting vote of Vice-President Van Buren; Wright, Tallmadge, and Buchanan also favoring; but failed to pass, nineteen to twenty-five, because Benton, Clay, and Crittenden had the patriotism to vote nay.

Discussion hereon laid bare the vital contradiction in our governmental system. Calhoun showed that the Constitution permits each State for itself to define, in order to inhibit, incendiary literature. Characteristically, he would have forced mail agents to obey state laws upon this matter. Yet for Congress to have so directed would plainly have been abridging freedom of the press.



Thomas H. Benton.

Had the Whig Party, while in power from 1849 to 1853, been brave enough boldly to assume a rational anti-slavery attitude, though it might have been defeated, as it was in 1852, it would have had a future. The chance passed unimproved. The temporizing attitude of the party's then leaders and the known pro-slavery feeling of most of its southern members--twelve Whigs voting in the House for the repeal of the Missouri Compromise--proved deadly to the organization, its faithful old battalions going over in the South to the Democrats, in the North to the Republicans.

Many Whigs took the latter course by a circuitous route. Ever since the alien and sedition laws, cry had been raised at intervals against the too easy attainment of citizenship by the unnumbered immigrants thronging to our shores, and agitation raised, more or less successful, to thrust forward "Nativism" or Americanism, with opposition to the Roman Catholic Church, as an issue in our politics. To such movements Whigs, as legatees of Federalism, were always more friendly than Democrats, which was partly a cause and partly a consequence of the affinity that naturalized citizens all along showed for the Democratic Party.

Americanism had its greatest run after 1850, when the Whigs saw their organization going to pieces, and, mistakenly in part, attributed democratic success to the immigrant vote. A secret fraternity arose, called the "Know-nothings," from "I don't know," the ever-repeated reply of its members to inquiry about its nature and doings. "America for

Americans" was their cry, and they proposed to "put none but Americans on guard." At first pursuing their aims through silent manipulation of the old parties, by 1854 the Know-nothings swung out as a third party. From this date they lustily competed with the Republicans for the hosts of whig and democratic stragglers jostled from their old ranks by the omnibus bill legislation, the Kansas-Nebraska act, and the "Crime against Kansas" committed by Pierce and his slavocratic Senate. In 1855 this party assumed national proportions, and worried seasoned politicians not a little; but having crystallized around no living issue, like that which nerved Republicanism, it fell like a rocket-stick, its sparks going over to make redder still republican fires. Henry Wilson became a Republican from the status of a Know-nothing; so did Banks, Colfax, and a score of others subsequently eminent among their new associates. Some had of old been Democrats, though most had been Whigs.

Notwithstanding many appearances to the contrary, the Democracy had begun to lose its hold upon the North from the moment of Polk's nomination in 1844. In that act it showed preference, on the score of availability, for a small man as presidential candidate. Harrison's election and Van Buren's defeat in 1840 doubtless had something to do with this. The same disposition was revealed in 1852, when Pierce was made candidate. What harmed the party still more was swerving from strict construction in declaring for the annexation of Texas, which in this case did not imply enlargement of view in reading the Constitution, but simply subserviency to the slave power. In this way Van Buren was alienated and the vote of New York lost in 1848, insuring defeat that year.

[1856-1860]

This particular breach was pretty well healed, but the evil survived. Then came the compromise repeal, wherein the Democracy stood by the South in casting to the winds, the moment it promised to be of service to the North, a solemn bargain which had yielded the South Florida, Arkansas, and Missouri as slave States. Northern Democrats, especially in the rural parts, unwilling longer to serve slavery, drew off from the party in increasing numbers. Northern States one by one passed to the opposition. The whole of New England had gone over in 1856, also New York, Ohio, Michigan, Wisconsin, and Iowa--Buchanan having six votes outside those of Pennsylvania, where he won, as many believed, by unfair means. In 1860, New Jersey, Pennsylvania, California, Illinois, Indiana, Minnesota, and Oregon crossed to the same side.

CHAPTER VII.

THE CRISIS

[1850]

The repeal of the Missouri Compromise was politically a remarkable epoch. It not only consolidated old anti-slavery men, but cooled, to say the least, many "silvergray," or conservative Whigs, as well as many "hards" and "hunkers" among the Democrats. But the slavocrats were blind

to the risk they were running, and grew bolder than ever. There were now propositions for renewing the foreign slave-trade. Worse black laws were enacted. There was increased ferocity toward all who did not pronounce slavery a blessing, prouder domineering in politics, especially in Congress, and perpetual threat of secession in case the slave power should fail to have its way.



Abraham Lincoln. After a rare photograph in the possession of Noah Brooks. (Only five copies of this photograph were printed.)

There were also plans for foreign conquest in slavery's behalf, which received countenance from public and even from national authorities. The idea seemed to be that the victory and territorial enlargement consequent upon the Mexican War might be repeated in Central America and Cuba. The efforts of Lopez in 1850 and 1851 to conquer Cuba with aid from the United States had indeed been brought to an end through this adventurer's execution in the latter year by the Cuban authorities. Pierce put forth a proclamation in 1854, warning American citizens against like attempts in future. Defying this, the next year William Walker headed a filibustering expedition to the Pacific coast of Nicaragua, conquering the capital of that state and setting up a government which proceeded to re-establish slavery and invite immigration from the United States. Driven out by a coalition of other Central American states against him, Walker at once organized a new raid, and landed at Punta Arenas, Nicaragua, November 25, 1857; but he was seized by Commodore Paulding of our navy and brought to New York. He made a similar effort the next year, and another in 1860, when he captured Truxillo in Honduras, only to be soon overwhelmed, tried and

shot.

[1852]

If the Government at Washington was not openly implicated in any of these movements, no more, surely, did it heartily deprecate them. Fillmore's administration had in 1852 declined to enter into an alliance with Great Britain and France disclaiming intention to secure Cuba. In 1854, inspired by Pierce, our ministers at London, Paris, and Madrid, met at Ostend and put forth the "Ostend Manifesto." The tenor of this was that Spain would be better off without Cuba and we with it, and further, that, if Spain refused to sell, the United States ought as a means of self-preservation to take that island by force, lest it should become a second San Domingo. This proposition, like everything else relating to the great Repeal, was under umbrage in 1856; but in 1858 the southern Democrats in Congress brought in a bill to purchase Cuba for \$30,000,000, and the democratic platform of 1860 spoke for the acquisition thereof at the earliest practicable moment, by all "honorable and just means."

[1854]

Thus an institution, barbarous, anti-democratic, sectional, an unmitigated curse even to its section, not so much as named in the Constitution, beginning with apology from all, by the zeal and unscrupulousness of advocates, the consolidation of political power at the South, and apathy, sycophancy, divided counsels, and commercial greed in the North, gradually amassed might, till, at the middle of Mr. Buchanan's term, every branch of the national Government was its tool, the Supreme Court included, enabling it authoritatively to mis-read the Constitution, declare the Union a pro-slavery compact, and act accordingly. But justice would not be mocked, and, though advancing upon halting foot, dealt the death-blow like lightning at last.

We have seen the feeble efforts of the old Liberty Party to make head against slavery, Birney and Earle being its candidates in 1840, Birney and Morris in 1844. In 1848 these "conscience Free-soilers" were re-enforced by what have been called the "political Free-soilers" of the State of New York, led by ex-President Van Buren. This astute organizer, aware that his defeat in the democratic convention of 1844 had resulted from southern and pro-slavery influences, led a bolt in the New York Democracy. His partisans in this were known as the "Barn-burners," while the administration Democrats were called the "Hunkers." In the democratic convention of 1848 at Baltimore appeared representatives of both factions, and both sets were admitted, each with half the state vote. This satisfied neither side. The Barn-burners called a convention at Utica in June, and put Van Buren in nomination for the presidency. The Liberty Party men had the preceding year nominated Hale for this office, but now, seeing their opportunity, they called a new convention at Buffalo for August 9, 1848, to which all Free-soilers were invited; and this convention made Van Buren and Charles Francis Adams its candidates for President and Vice-President. The platform declared against any further extension of slavery. The party was henceforth known as the "Free-soilers," the name coming from its insistence that the territory conquered from Mexico should forever remain free. Its platform denounced slavery as a sin against God and a crime against man, and

repudiated the compromise of 1850. It also laid special emphasis upon the wickedness of the new fugitive slave law, of which it demanded the repeal. By 1852 the regular Democracy in New York had won back a large proportion of the Barn-burners or free-soil revolvers, so that the free-soil prospect in this year was not encouraging. Only 146,149 free-soil votes were polled in all the northern states.

[1856]

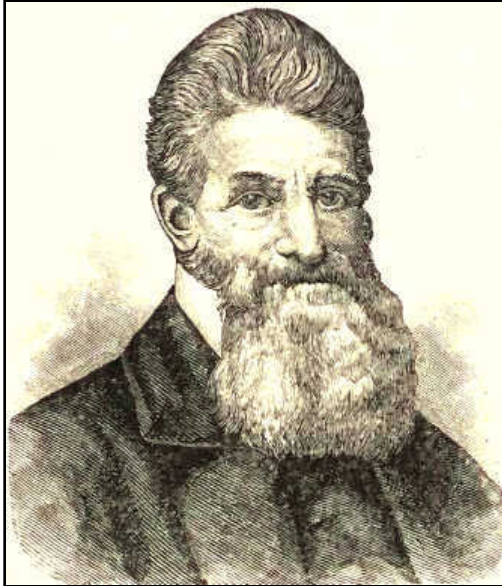
What quickened this drooping movement into new and triumphant life was the revocation of the Missouri Compromise. This rallied to the free-soil standard nearly all the northern Whigs, many old Barn-burners who since 1848 had returned to the democratic fold, and vast numbers of other anti-Lecompton Democrats. Most of the Know-nothings throughout the North also joined it, while of course it had in all its anti-slavery measures the hearty co-operation, directly political or other, of the Abolitionists. The first national convention of this new party, fortunately styling itself "Republican," was in 1856. Whig doctrine early appeared in the party by the demand for protection, internal improvements, and a national banking system; in fact, Republicanism may be said to have received nearly entire the whig mantle, as the Whigs did that of Federalism.

But the living soul and integrating idea of the party was new, the rigid confinement of slavery and the slave power to their narrowest constitutional limits. It denounced the repeal of the Missouri Compromise. In the election of this year, 1856, eleven States chose Republican electors, viz.: all New England, also New York, Ohio, Michigan, Iowa, and Wisconsin. Evidently the Democracy had at last found a foe at which it were best not to sneer. The Dred Scott decision immensely aided the growth of this new political power, as it was now quite generally believed in the North that the whole policy of the South was a greedy, selfish grasping for the extension of slavery.

[1858]

Out of this conviction, apparently, grew the John Brown raid into Virginia in 1858. John Brown was an enthusiast, whom sufferings from the Border Ruffians in Kansas, where one of his sons had been atrociously murdered and another driven to insanity by cruel treatment as a prisoner, had frenzied in his opposition to slavery. He had dedicated himself to its extirpation. The intrepid old man formed the purpose of invading Virginia, and of placing himself with a few white allies at the head of a slave insurrection that should sweep the State. Friends in the North had contributed money for the purchase of arms, and on October 16th, Brown, with fourteen white men and four negroes, seized the United States Armory at Harper's Ferry. He stopped the railway trains, freed some slaves, and assumed to rule the town. United States troops were at once despatched to the scene, when the misguided hero, with his devoted band, fortified themselves in the engine house, surrendering only after thirteen of them, including two of Brown's sons, were killed or mortally wounded. Brown and the other survivors were soon tried, convicted, and hung. This insane attempt was deprecated by nearly all of all parties; but the fate of Brown, with his resolute bravery, begot him large sympathy, and the false assumption of the South that he really represented northern feeling made his deed helpful to the anti-slavery

movement, of which the Republican Party was now the centre.



John Brown.

[1860]

Notwithstanding all this the Democracy might still have elected a president in 1860 had it been united. But it was now desperately at feud with itself, the cause of this, beautifully enough, lying back in that very device of Repeal which was intended to make Kansas a slave State and so to perpetuate the democratic sway. Judge Douglas, and most of the northern Democrats with him, had insisted so long and earnestly upon the doctrine of squatter sovereignty that they could not now possibly recede from it even had they desired to do so. The great majority of them did not so desire, but sincerely believed in that doctrine as part and parcel of the true democratic faith. But it was now obvious that the working out of the Douglas theory was absolutely sure to make free all the western States henceforth to be formed. This would, of course, remove the Senate from the domination of slavery. Hence the South was irrevocably opposed to it, and insisted with all its might upon the Calhoun-Taney contention that the national Government must protect slavery in all the Territories to which it pleased to go. In a passage at arms with Douglas as they were stumping Illinois for the senatorship in 1858, Lincoln keenly forced upon him the question whether under the Dred Scott decision any Territory could possibly be kept free from slavery. "If," said he, "Douglas answers yes, he can never be President; if no, Illinois will not again elect him senator." Douglas replied in the affirmative, and, as his antagonist prophesied, became in the South a doomed man.

The schism was fully apparent when, on April 23d, the democratic convention of 1860 began its session in Charleston. A majority of the delegates were for Douglas, voting down the Calhoun-Taney view, though willing that the party should bind itself to obey the Dred Scott decision. When the Douglas platform was adopted the delegations from

Alabama, Mississippi, Florida, and Texas, with parts of those from Louisiana, North and South Carolina, Arkansas, and Delaware, seceded. Douglas had a majority vote as presidential candidate, but not two-thirds. The convention adjourned to meet at Baltimore June 18th, and when it met there Douglas was nominated by the requisite two-thirds vote. The seceders met at Richmond, June 11th, where, imitating some new seceders at Baltimore they nominated Breckenridge and Lane. The so-called Constitutional Union Party also had in the field its ticket, Bell and Everett, which secured votes from a few persistent Whigs and Know-nothings still foolish enough to suppose that further clash between the powers of slavery and freedom could somehow be averted.

The Republicans nominated Abraham Lincoln, of Illinois, and Hannibal Hamlin, of Maine. Lincoln was already a marked man in his party, especially in the West, his brilliant joint debate with Judge Douglas during some months in 1858 having brought out his matchless good sense and good nature, his rare knowledge of our history and law, and his high quality as thinker and speaker. Born in Kentucky in 1809, removing to Indiana in 1816, to Illinois in 1830, reared in extreme poverty and wholly self-educated, this man had risen by his wits, his sturdy perseverance and industry, his extraordinary ability, and his proverbial honesty, to be the acknowledged peer of the "Little Giant" himself. He began political life a Whig and ably represented that party in the national Congress from 1847 to 1849, making his voice heard against the high-handed procedure of the Administration in the Mexican War. But as with Seward, Greeley, Fessenden, Thaddeus Stevens, Sherman, Dayton, Corwin, and Collamer, subsequent events had intensified his anti-slavery feeling, convincing him, as he avowed, that the Union could not "permanently continue half slave and half free." He was thus drawn to unite his fortunes with the Republicans. His nomination was received coolly in the East, where Seward had been preferred; but as men studied Lincoln's record they were convinced of the wisdom which had made him the party's leader. He swept New England, New York, New Jersey, Pennsylvania, Ohio, Indiana, Illinois, Michigan, Iowa, Wisconsin, California, Minnesota, and Oregon, having 180 electoral votes to Breckenridge's 72, Bell's 39, and Douglas's 12.



William H. Seward.
From a photograph by Brady.

CHAPTER VIII.

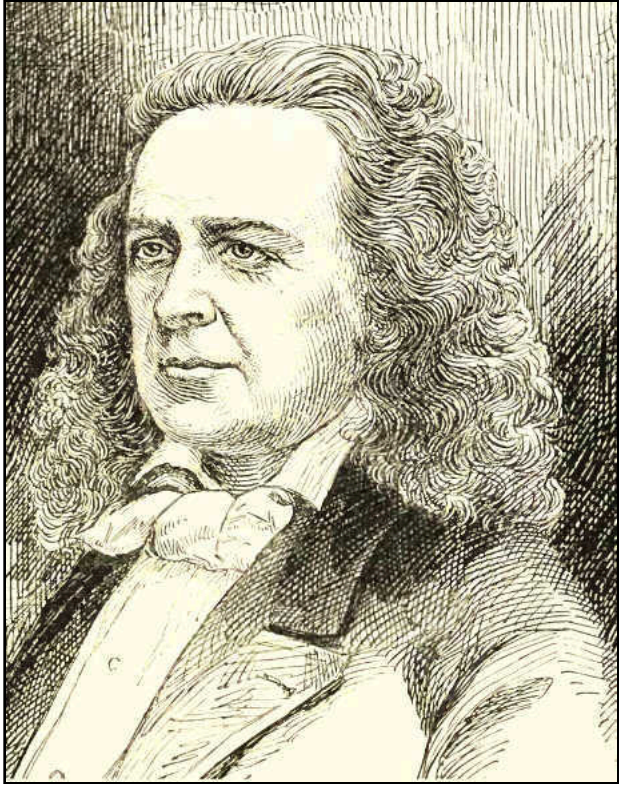
MATERIAL PROGRESS

[1860]

The population of the United States in 1860 was 31,443,321. In spite of the threatening political complications between 1840 and 1860, these years were characterized by astonishing economic prosperity. The decade after 1848 was, indeed, in point of advance in material wealth, the golden age of our history. Between 1850 and 1860, the wealth of the nation swelled 120 per cent., the value of its farms 103 per cent., its total manufacturing product 87 per cent., its manufactured export 171 per cent., its railroad mileage 220 per cent. Making all due allowance for the rise of prices during the period, this is still a remarkable exhibit.

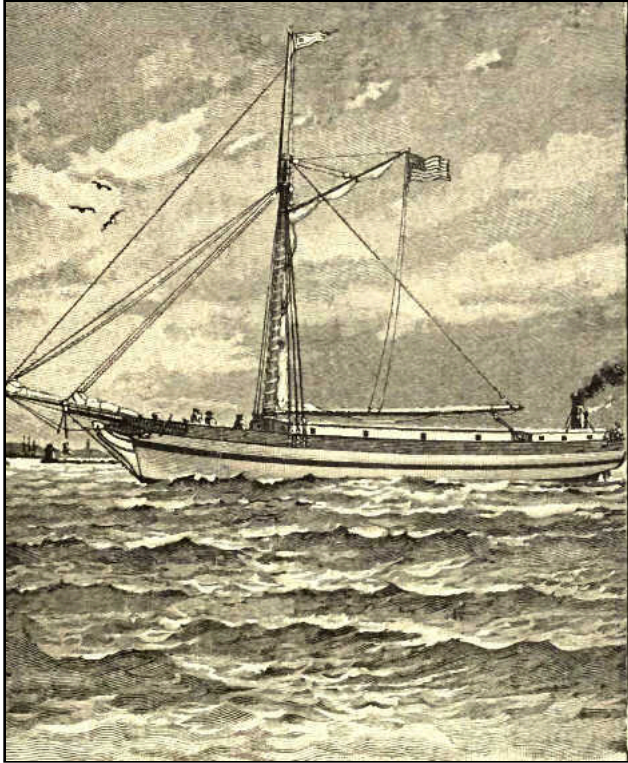
The great West continued to come under the hand of civilization. Between 1850 and 1860 our centre of population made a longer stride westward than during any other decade--from east of the meridian of Parkersburg, W. Va., to the meridian of Chillicothe, O. Florida and Texas having been admitted to statehood in 1845, Iowa followed next year, Wisconsin in 1848, California in 1850, Minnesota, which had been an organized Territory since 1849, in 1858, and Oregon in 1859. Kansas, Nebraska, Utah, and Washington Territories were organized before 1860. By this

date there were settlements far up the Rio Grande. The Pacific coast was sought for lands and homes as well as for gold. Fremont's expeditions in 1842, 1844, and 1848 had done much to show people the way thither. In 1853 the Government sent out four different parties to survey suitable routes for a Pacific railway, a work followed up by three other parties the next summer. The settlements in Oregon had, by 1845, in places become dense.

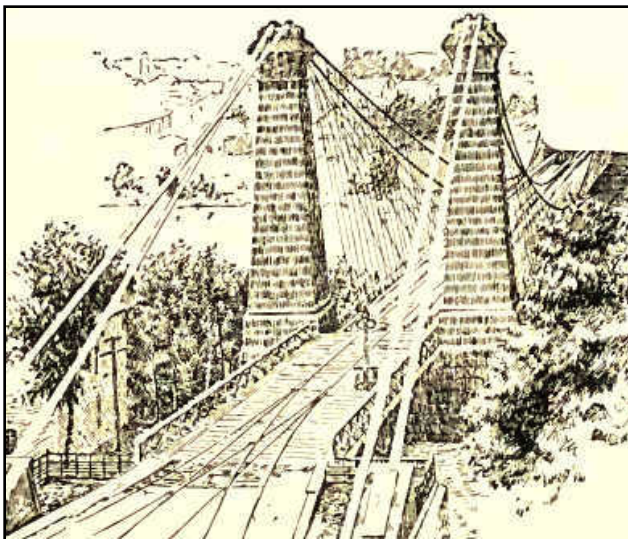


Elias Howe.

Immigration hither was unfortunately checked a little later by Indian hostilities, the gravest attacks being in 1847 and 1855. In the latter year Major Haller, leading an exploring party, was surrounded by the savages and cut off from food and water, only making his escape by a fight of two days against overwhelming odds. He and his party at last hewed their desperate way through, losing their entire outfit, besides one-fifth of their number. The whole territory was harassed by Indians on the war path, and General Wool had to be sent up from San Francisco to restore peace. This done, immigration was renewed. A thousand new inhabitants came to Oregon in 1852, and its northern half was organized as Washington Territory the following year. The Pacific Mail Steamship Company had been chartered in 1848, and four years earlier a newspaper started, the first in English on that coast. Its seat was Oregon City, its name the Flumgudgeon Gazette.



The Vandalia. The Pioneer Propeller On the Lakes.

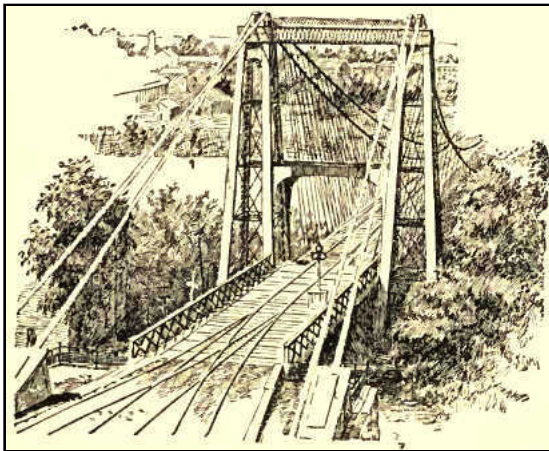


Old Stone Towers of the Niagara Suspension Bridge.

The old West prospered, notwithstanding the drain which it, in common with the East, experienced in favor of parts farther toward the setting sun. The first lake propeller was launched at Cleveland in 1847. The same year the Tribune was started in Chicago. In 1850 the city had its theatre and its board of trade. The Chicago streets began this year to be lighted with gas. The first bridge across the Mississippi was built in 1855 at Minneapolis; that at Rock Island, 1,582 feet long, in 1856.

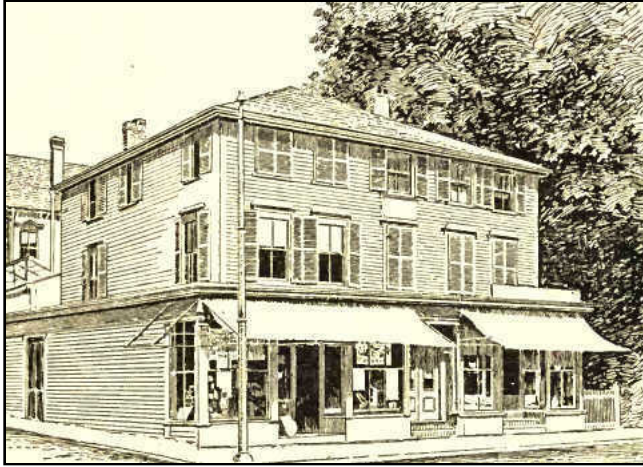
The Niagara suspension bridge was finished in 1855.

The increase of railways did not at once end the opening of canals. The Miami Canal, between Cincinnati and Toledo, 215 miles, begun in 1825, was finished in 1843, and the Wabash and Erie, between Evansville and Toledo, opened in 1851; but the Middlesex Canal in Massachusetts was, in 1853, abandoned and filled up from the loss of its business to railroads. In 1857 the Pennsylvania Railroad Company purchased from the State the canal and railway line from Philadelphia to Pittsburgh, and soon after extended the railway portion to cover the whole. A traveller from Boston to the West could get to Rochester by rail in 1841. Next year he could go on to Buffalo by the same means. In 1842, Augusta, Ga., was connected by rail with Atlanta, Savannah with Macon, and the Boston & Maine Railway finished to Berwick.

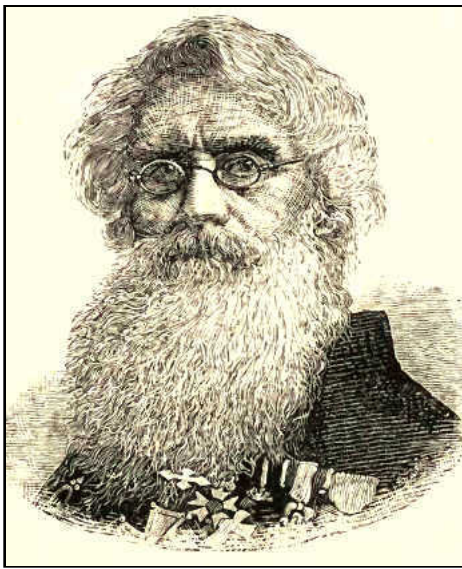


The New Iron Towers of the Niagara Bridge.

The first railway out of Chicago--it was the first in Illinois--was built in 1850, to Elgin. Chicago had no railway connection with the East till two years later, when the Michigan Southern was opened. The Michigan Central was finished soon after the Southern, and the Rock Island before the end of the year. The Michigan Central had direct connection east across Canada to Niagara Falls by 1854. In 1856 the Burlington route reached the Mississippi and the Rock Island went on to Iowa City. This year witnessed the opening of the first railroad in California--from Sacramento to Folsom. In 1857 Chicago and St. Louis were joined by rails, as also the latter city with Baltimore, over the Parkersburg branch of the Baltimore & Ohio.



Birthplace of S. F. B. Morse, at Charlestown, Mass. Built 1775.

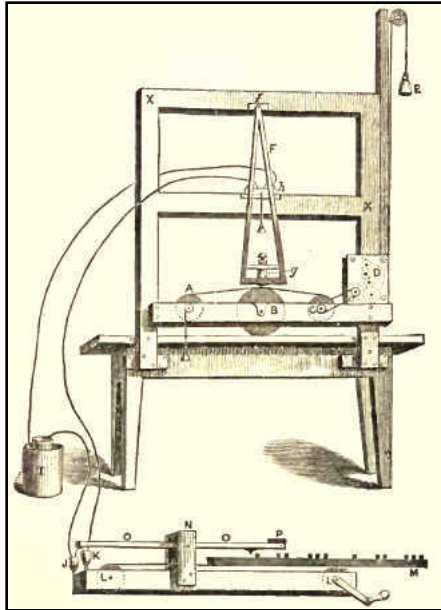


S. F. B. Morse.

We now come to an improvement of which the preceding period knew nothing, the magnetic telegraph, introduced by Professor Morse in 1844. In this year Morse secured a congressional appropriation of \$30,000 for a line from Washington to Baltimore. The wires were at first encased in tubes underground. In spite of the success of the project, further governmental patronage was refused, the Postmaster-General advising against it under the conviction that the invention could not become practically valuable. Morse appealed for aid from private capitalists. Ezra Cornell, of New York, soon opened a short line in Boston for exhibition, following this with a similar enterprise in New York City. The admission fee was twelve and a half cents. Few cared to pay even this trifle, so that the undertaking was hardly a success in either city.

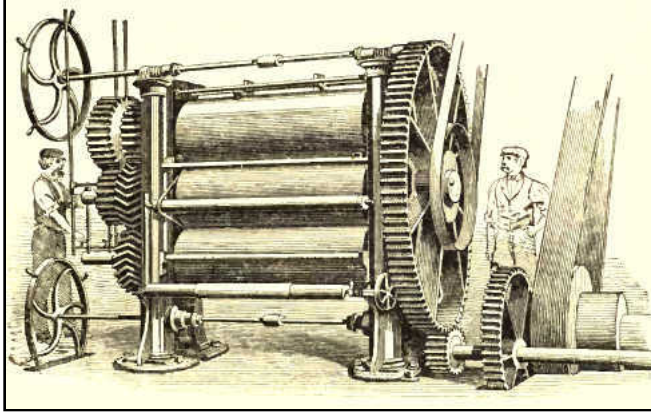
Amos Kendall then engaged as Morse's agent, and by dint of great effort secured subscriptions for a line from New York to Philadelphia, being obliged to sell the shares for one-half their face value. Incorporation

was secured from the Maryland Legislature, under the first American charter, for the telegraph business. The line was completed in 1845 to the Hudson opposite the upper end of Manhattan Island, and an effort made to insulate the wire and connect with the city along the bottom of the river. This failed, and for some time messages had to be taken over in boats. In 1846 the wire was carried on to Baltimore. In the same year Philadelphia and Pittsburgh were connected by telegraph, New York and Albany, New York and Boston, Boston and Buffalo. The first line in California was erected in 1853.



The First Telegraphic Instrument, as exhibited in 1837 by Morse.

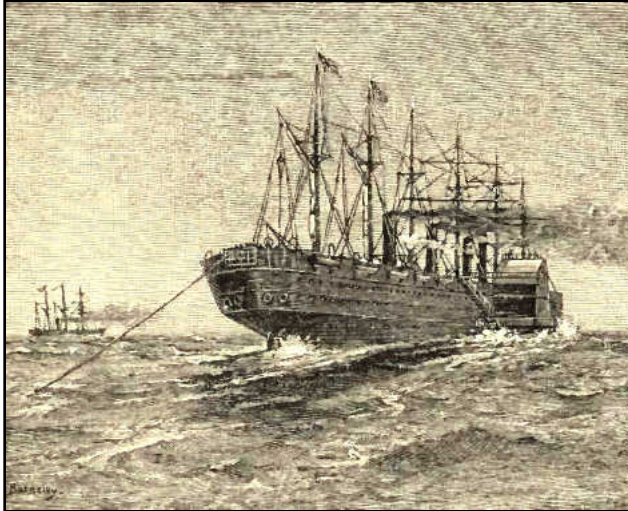
In 1850 Hiram Sibley embarked in the telegraph business. He bought the House patent, and next year organized the New York and Mississippi Valley Telegraph Company. By 1853 or 1854, some twenty companies had started, with a capital of \$7,000,000--too many for good management or high profits. Accordingly, Sibley and Cornell united in buying them up, and thus formed, in 1856, the Western Union, which Sibley's energy extended all over the country east of the Rocky Mountains. In 1860 he went to Washington with a scheme for a transcontinental telegraph line, and secured from Congress a subsidy of \$40,000 for ten years. Just then the Overland Telegraph Company was started in San Francisco. It and Sibley united, breaking ground July 1, 1861, and proceeding at the rate of nearly ten miles of wire per day. On October 25th, telegraph wire stretched all the way between the two oceans. In 1864 this line was amalgamated with the Western Union.



Calenders heated internally by Steam, for spreading India Rubber into Sheets or upon Cloth, called the "Chaffee Machine."

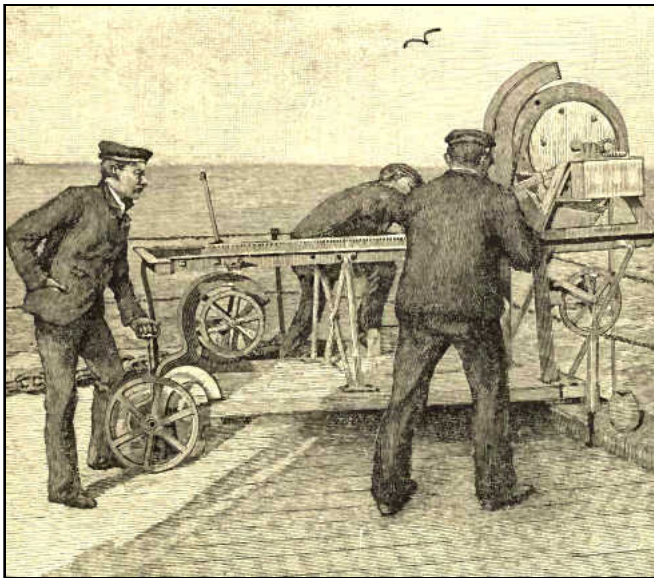
Still more wonderful, ocean telegraphy was broached and made successful during these years. Tentative efforts to operate the current under water were made between Governor's Island and New York City so early as 1842. A copper wire was used, insulated with hemp string coated with India rubber and pitch. In 1846 a similar arrangement was encased in lead pipe. This device failed, and sub-aqueous telegraphy seems to have been for the time given up.

In 1854 Mr. Cyrus W. Field, of New York, with Peter Cooper and other capitalists of that city, organized the New York, Newfoundland, and London Telegraph Company, stock a million and a half dollars, and began plans to connect New York with St. Johns, Newfoundland, by a cable under the Gulf of St. Lawrence. Little progress was made, however, till 1857, when it was attempted to lay a cable across the Atlantic from Newfoundland. The paying out was begun at Queenstown and proceeded successfully until three hundred and thirty-five miles had been laid, when the cable parted. Nothing more was done till the next year in June. Then, in 1858, after several more unsuccessful efforts, the two continents were successfully joined. The two ships containing the cable met in mid-ocean, where it was spliced and the paying out begun in each direction. The one reached Newfoundland the same day, August 5th, on which the other reached Valencia, Ireland. No break had occurred, and after the necessary arrangements had been effected, the first message was transmitted on August 16th. It was from the Queen of Great Britain to the President of the United States, and read, "Glory to God in the highest, peace on earth and good will to men." A monster celebration of the event was had in New York next day.



The Great Eastern Laying the Atlantic Cable.

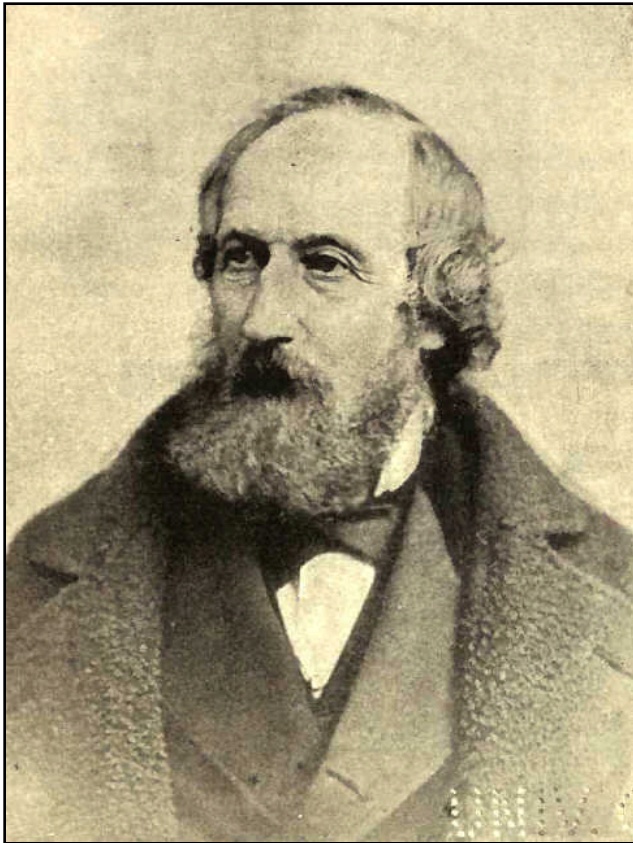
Although inter-continental communication had been actually opened, the cable did not work, nor did ocean cabling become a successful and regular business till 1866, when a new cable was laid. This event attracted the more attention from the fact that the largest ship ever built was used in paying out the cable. It was the Great Eastern, 680 feet long and 83 broad, with 25,000 tons displacement.



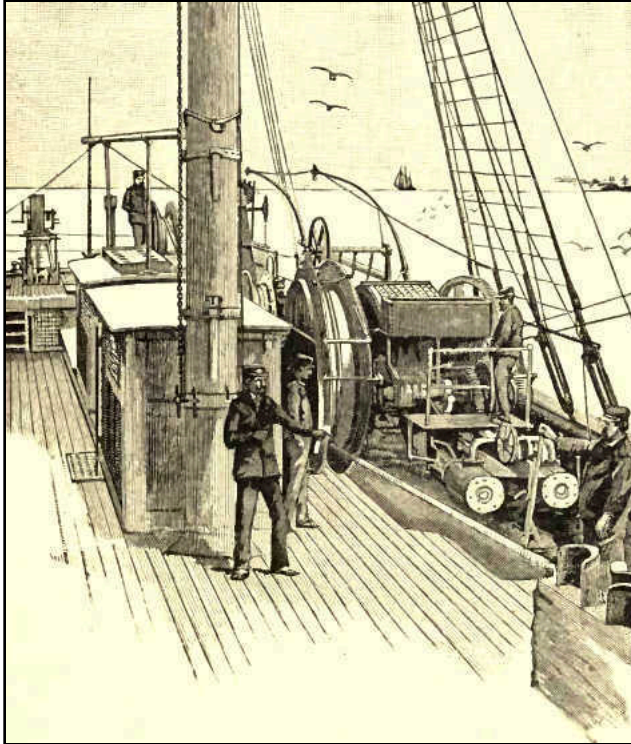
Sounding Machine used by a Cable Expedition.

Street railways became common in our largest cities before 1860, the first in New England, that between Boston and Cambridge, dating from 1856. Sleeping-cars began to be used in 1858. The express business went on developing, being opened westward from Buffalo first in 1845. A steam fire-engine was tried in New York in 1841, but the invention was successful only in 1853. Baltimore used one in 1858. Goodyear

triumphantly vulcanized rubber in 1844, making serviceable a gum which had been used in various forms already but without ability to stand heat. Elias Howe took out his first patent for a sewing machine in 1846, being kept in vigorous fight against infringements for the next eight years. The anaesthetic power of ether was discovered in 1844. Gutta-percha was first imported hither in 1847. The first application of the Bessemer steel process in this country was made in New Jersey in 1856, the manufacture of watches by machinery begun in 1857, photo-lithography in 1859. New York had a clearing house in 1853, Boston in 1855. The petroleum business may with propriety be dated from 1860, although the existence of oil in Northwestern Pennsylvania had been long known, and some use made of it since 1826. For several years experiments had been making in refining the oil. The excellence of the light from it now drew attention to the value of the product, wells began to be bored and oil land sold for fabulous prices.

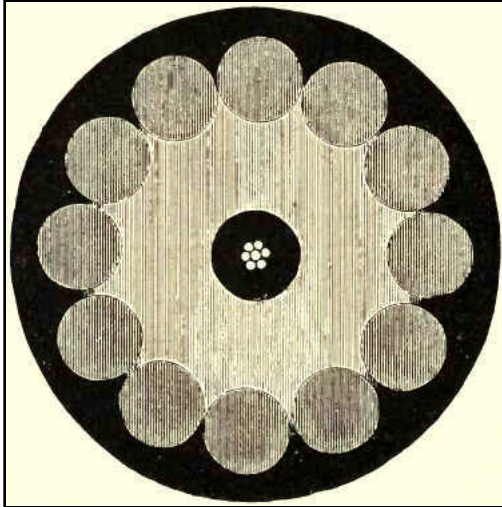


Cyrus W. Field.



Paying out Cable Gear. From Chart House.

We close this chapter with a word about the painful financial crisis that swept over the country in the autumn of 1857. Its causes are somewhat occult, but two appear to have been the chief, viz., the over-rapid building of railroads and the speculation induced by the prosperity and the rise of prices incident to the new output of gold. Interest on the best securities rose to three, four, and five per cent. a month. On ordinary securities no money at all could be had. Commercial houses of the highest repute went down. The climax was in September and October. The three leading banks in Philadelphia suspended specie payments, at once followed in this by all the banks of the Middle States, and upon the 13th of the next month by the New York banks. Manufacturing was very largely abandoned for the time, at least thirty thousand operatives being thrown out of work in New York City alone. Prices even of agricultural produce fell enormously. Tramps were to be met on every road. Easier times fortunately returned by spring, when business resumed pretty nearly its former prosperous march.



Shore End of Cable-exact size. [About 3.5 inches in diameter.]



Barnacles on Cable.

PERIOD IV.

CIVIL WAR AND RECONSTRUCTION

1860-1868

CHAPTER I.

CAUSES OF THE WAR

[1861]

It were a mistake to refer the great Rebellion, for ultimate source, to ambiguity in the Constitution or to the wickedness of politicians or of the people. It was simply the last resort in an "irrepressible conflict" of principle--in the struggle for and against the genius of the world's advance. Economic, social, and moral evolution, resulting in two

radically different civilizations, had enforced upon each section unfaithfulness to the spirit and even to the letter of its constitutional covenant. The South was not to blame that slavery was at first profitable; and if it deemed it so too long and even thought of it as a good morally, these convictions, however big with ill consequences to the nation, were but errors of view, not strange considering the then status of slavery in the world.

The South's pride, holding it to the course once chosen, was also no indictable offence. Nor could the North on its part be taxed with crime for its "higher law fanaticism," which was simply the spirit of the age; or for seeing early what all believe now, that slavery was a blight upon the land. Much as was "nominated in the bond" of the Constitution, neither law nor equity forbade free States to increase the more rapidly in numbers, wealth, and other elements of prosperity; and northern congressmen must have been other than human, if, seeing this increase and being in the majority, they had gone on punctiliously heeding formal obligation against manifest national weal. And when, in 1854, the great sacred compact of 1820 was set aside by the authority of the South itself, the North felt free even from formal fetters. All talk of extra-legal negotiations and understandings touching slavery was now at an end. The northern majority was at last united to legislate upon slavery as it would, subject only to the Constitution. The South too late saw this, and fearing that the peculiar institution, shut up to its old home, would die, sought separation, with such chance of expansion as this might yield.

The South had come to love slavery too well, the Constitution too little. Upon conserving slavery all parties there, however dissident as to modes, however hostile in other matters, were unconditionally bent. The chief argument even of those opposing disunion was that it endangered slavery. Our new government, said Alexander H. Stephens, soon to be vice-president of the Southern Confederacy, is founded, its cornerstone rests, upon the great physical, philosophical, and moral truth, to which Jefferson and the men of his day were blind, that the negro, by nature or the curse of Canaan, is not equal to the white man; that slavery, subordination to the superior race, is, by ordination of Providence, whose wisdom it is not for us to inquire into or question, his natural and normal condition. As the apostle of such a principle the South could not but abjure the old establishment, whose genius and working were inevitably in the contrary direction. Many confessed it to be the essential nature of our Government, and not unfair treatment under it, against which they rebelled.

Slavery had also bred hatred of the Union indirectly, by fostering anti-democratic habits of thought, feeling, and action. "The form of liberty existed, the press seemed to be free, the deliberations of legislative bodies were tumultuous, and every man boasted of his independence. But the spirit of true liberty, tolerance of the minority and respect for individual opinion, had departed, and those deceitful appearances concealed the despotism of an inexorable master, slavery, before whom the most powerful of slave-holders was himself but a slave, as abject as the meanest." Over wide sections, untitled manorial lords, "more intelligent than educated, brave but irascible, proud but overbearing," controlled all voting and office-holding. Congressional districts were their pocket-boroughs, and they ignored the common man

save to use him. The system grew, instead of statesmen, sectionalists, whom love for the "peculiar institution" rendered callous to national interests.

The vigorous secession movements in the South at once after Lincoln's election, raised a question of the first magnitude, which few people at the North had reflected upon since 1833, viz., whether or not non-revolutionary secession was possible. Almost unanimously the North denied such possibility, the South affirmed it. This was at bottom manifestly nothing but the old question of state sovereignty over again. The South held the Union to be a state compact, which the northern parties thereto had broken. To prove the compact theory no new proof was now adduced. Rather did the southern people take the assertion of it as an axiom, with a simplicity which spoke volumes for the influence of Calhoun and for the indoctrination which the South had received in 1832.

Not alone Calhoun but nearly every other southerner of great influence, at least from the day of the Missouri Compromise, had been inculcating the supreme authority of the State as compared with the Union. The southern States were all large, and, as travelling in or between them was difficult and little common, they retained far more than those at the North each its original separateness and peculiarities. Southern population was more fixed than northern; southern state traditions were held in far the deeper reverence. In a word, the colonial condition of things to a great extent persisted in the South down to the very days of the war. There was every reason why Alabama or North Carolina should, more than Connecticut, feel like a separate nation.

This intense state consciousness might gradually have subsided but for the deep prejudices and passions begotten of slavery and of the opposition it encountered from the North. Their resolution, against emancipation led Southerners to cherish a view which made it seem possible for them as a last resort to sever their alliance with the North. It was this conjunction of influences, linking the slave-holder's jealousy and pride to a false but natural conception of state sovereignty, which created in southern men that love of State, intense and sincere as real patriotism, causing them to look upon northern men, with their different theory, as foes and foreigners.

A very imposing historical argument could of course have been built up for the Calhoun theory of the Union. The Union emerged from the preceding Confederacy without a shock. Most who voted for it were unaware how radical a change it embodied. The Constitution, one may even admit, could not have been adopted had it then been understood to preclude the possibility of secession. Doubtless, too, the gradual change of view concerning it all over the North, sprung from the multiplication of social and economic ties between sections and States, rather than from study of constitutional law. We believe that the untruth of the central-sovereignty theory in no wise follows from these admissions, and that its correctness might be made apparent from a plenitude of considerations.

Champions of the northern side deemed it the less necessary to expatiate upon this question, since, admitting the South's basal contention, the right in question depended upon sufficiency of grievance. As, in the South's view, the case was one of sovereigns one party of whom, without

referee, was about to break a compact without the other's consent, the adequacy of the grievance should, to excuse the step, have been absolutely beyond question. On the contrary it was subject to the gravest question.

The South's only significant indictment against the North was the one concerning the personal liberty laws. Moderates like Stephens, indeed, stoutly condemned this plea for secession as insufficient; but, believing in the State as sovereign, they had perforce to yield, and they became as enthusiastic as any when once this "paramount authority" had spoken. "Fire-eaters," at first a small minority, saw this advantage and worked it to the utmost. On its complaint touching the personal liberty legislation the South's case utterly broke down, theorizing the Union into a rope of sand, not "more perfect" but far less so than the old, which itself was to be "perpetual." According to the Calhoun contention States were the parties to a pact, and it was a good way from clear that any northern State as such, even by personal liberty legislation, had broken the alleged pact. The liberty laws were innocent at least in form, and at worst had never been endorsed in any state convention. Buchanan himself testified that the fugitive slave law had been faithfully executed, and its operation is well known never to have been resisted by any public authority.

It was suspicious that no State ventured upon secession alone. It was equally remarkable that the Gulf States were the readiest to go, and made most of the personal liberty laws as their pretext, accounting this cry, as was ingenuously confessed, a necessary means for holding the border States solidly to the southern cause. Weak enough, indeed, was the complaint of "consolidationist" aggression, of which certainly no party to the so-called pact was or could have been guilty. But the deeps of folly were sounded when northern "persecution" of the South was mentioned, or Lincoln's election as threat of such. This was simply the election as President, in a perfectly constitutional way, of a citizen, honest and unambitious, who was pledged against touching slavery in States. Having become President, he was unable to procure minister, law, treaty, or even adequate guard for his own person save by the consent of the party hitherto in power. Lincoln had failed of a popular majority by a million. Both Houses of Congress were against him at the time of his election, and, but for the absence of southern members, they would, it is likely, have continued so through his entire term. It was the South's bad logic on these points which gave the war Democrats their excellent plea for drawing sword on the northern side.

But even supposing secession technically justifiable, how strange that it should have been judged rational, prudent, or in the long run best for the South itself. Could aught but frenzy have so drowned in Americans the memories of our great past; or launched them upon a course that must have ended by Mexicanizing this nation, wresting from it the lead in freedom's march, and crushing out, in the breast of struggling patriotism the world over, all hope of government by and for the people! The South ought at least to have spared itself. Either its alleged horror at the advance of central-sovereignty sentiment at the North was sheer pretence, or it should have been certain that this section would not hesitate, as Buchanan so illogically did, to coerce "rebellious" state-bodies. If the North believed the totality of the nation to be the "paramount authority," Lincoln would surely imitate Jackson instead of

Buchanan, and in doing so he would not seek military support in vain.



James Buchanan. From a photograph by Brady.

Quite as sure, too, must the final result have appeared from the census of 1850, had people been calm enough to read this. By that census the free States had a population fifty per cent. above the population of the slave states, slaves included, and the disparity was rapidly increasing. Their wealth was even more preponderant, being, slaves apart, nearly one hundred per cent. the larger. Their merchant tonnage was five times the greater--even young inland Ohio out-doing old South Carolina in this, and the one district of New York City the whole South. The North had three or four times the South's miles of railway, all the sinews of war without importation, and mechanics unnumbered and of every sort. And while champions of the Union would fight with all the prestige of law, national history and the status quo on their side, Europe's aid to the South, or even that of the border slave States, was more than problematical, as was a successful career for the Confederacy in case its independence should chance to be won. Events proved that the very defence of slavery had best prospect in the Union, and it seems as if this might have been foreseen by all, as it actually was by some.

CHAPTER II.

SECESSION

[1861]

Secession was no new thought at the South. It lurked darkly behind the Kentucky and Virginia resolutions of 1798-99. It was brought out into broad daylight by South Carolina in the nullification troubles of 1832. "Texas or disunion!" was the cry at the South in 1843-44. In 1850 South Carolina declared herself ready to secede in the event of legislation hostile to slavery. Two years later the same State solemnly affirmed that it had a right to secede, but that, out of deference to the wishes of the other slave States, it forbore to exercise such right.

It must be admitted that in early years the North had helped to make the thought of secession familiar. In 1803, in view of the great increase of southern territory by the Louisiana Purchase, and again in 1813, when New England opposition to the war with England culminated in the Hartford Convention, there had been talk of a separate northern confederacy. But from that time on the thought of disunion died out at the North, while the South dallied with it more and more boldly. During the presidential campaign of 1856, threats were made that if Fremont, the republican candidate, should be elected, the South would leave the Union. In October of that year a secret convention of southern governors was held at Raleigh, N. C., supposed to have been for the purpose of considering such a contingency. Governor Wise, of Virginia, who called the convention, afterward proclaimed that had Fremont been chosen he would have marched to Washington at the head of 20,000 troops, seized the Capitol, and prevented the inauguration. This threatening attitude in 1856 may have been chiefly an electioneering device; but during the next four years the gulf between North and South widened rapidly, and the southern leaders turned more and more resolutely toward secession as the remedy for their alleged wrongs.

No sooner had the presidential campaign of 1860 begun than deep mutterings foretold the coming storm. "Elect Lincoln, and the South will secede!" cried the campaign orators of the South, while the halls of Congress rang with threats similar in tenor. As the campaign went on and republican success became probable, the southern leaders began to nerve up their hosts for the conflict. In October the governor and congressmen of South Carolina, with other prominent politicians, met and unanimously resolved that if Lincoln should win, the Palmetto State ought to renounce the Union. Similar meetings were held in Georgia, Alabama, Mississippi, and Florida. Governor Gist sent a confidential circular to the governors of all the cotton States declaring that South Carolina would secede with any other State, or would make the plunge alone if others would promise to follow. The governors of Florida, Alabama, and Mississippi replied that their States would certainly do this. Georgia proposed to wait for some overt act by the National Government. North Carolina and Louisiana, it was learned, would probably not go out at all.

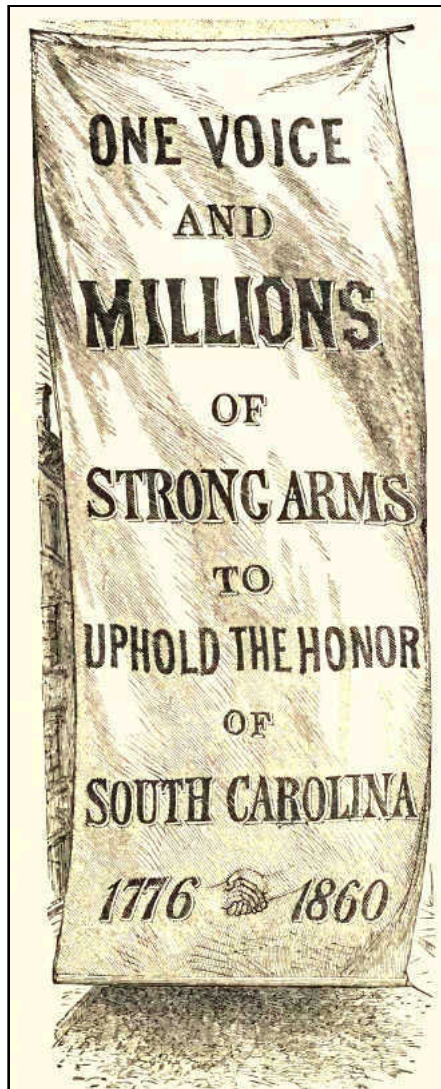
But the enthusiasts in South Carolina had got all the encouragement they wanted, and bided their time. Their time was at hand. The presidential election fell on November 6th. Next day the tidings flashed over the land that Abraham Lincoln had been elected President by the vote of a solid North against a solid South. The wires had scarcely ceased to thrill with this message of death to slavery-extension, when South Carolina sounded a trumpet-call to the South. Her Legislature ordered a

secession state convention to meet in December, issued a call for 10,000 volunteers, and voted money for the purchase of arms. Federal office-holders resigned. Judge Magrath, of the United States District Court, laid aside his robes, declaring, "So far as I am concerned, the temple of Justice raised under the Constitution of the United States is now closed." Militia organized throughout the State. The streets of Charleston echoed nightly with the tramp of drilling minute-men. Secession orators harangued enthusiastic crowds. Hardly a coat but bore a secession cockade. November 17th, the Palmetto flag was unfurled in Charleston. It was a gala day. Cannon roared, bands played the Marseillaise, and processions paraded the streets bearing such mottoes as "Let's Bury the Union's Dead Carcass!" "Death to All Abolitionists!" The whole South was beside itself with excitement. One State after another assembled its convention to decide the question of secession. Even the Georgia Legislature, within a week after the election of Lincoln, voted \$1,000,000 to arm the State.

The South Carolina convention met at Charleston, and on December 20th unanimously adopted an ordinance declaring:

"The union now subsisting between South Carolina and other States, under the name of the United States of America, is hereby dissolved."

This action was hailed with wildest enthusiasm. Huge placards--"The Union is Dissolved!"--were posted throughout the city, while the clang of bells and the boom of cannon notified the country round. The sidewalks were thronged with ladies wearing secession bonnets made of cotton with palmetto decorations. A party of gentlemen visited the tomb of Calhoun, and there registered their vows to defend the southern cause with their fortunes and lives. In the evening the convention marched to the hall in procession, and formally signed the revolutionary ordinance. The chairman then solemnly proclaimed South Carolina an "independent commonwealth." The little State, whose white population was less than 300,000, began to play at being a nation. The governor was authorized to appoint a cabinet and receive foreign ambassadors, and the papers put information from other parts of the country under the head of "foreign news."



Street Banner in Charleston.

"One voice and millions of strong arms to uphold the honor of South Carolina 1776-1860"

The secession of South Carolina was greeted with joy in most of the other slave States. Montgomery and Mobile, Ala., each fired one hundred guns. At Richmond, Va., a palmetto banner was unfurled, while bells, bonfires, and processions celebrated the event all over the South. The other cotton States, spurred on by the bold deed of South Carolina, rapidly followed her lead. Mississippi seceded January 9th, Florida the 10th, Alabama the 11th, Georgia the 19th, Louisiana the 26th, Texas February 1st.

It is probable that only in South Carolina, Mississippi, and Florida were the majority of whites in favor of secession. The South was after all full of Union sentiment. The ordinance of secession proceeded in each State from a convention, and the election of delegates to this witnessed the earnest work. The noble efforts of those Union men in their fierce struggle have never yet been appreciated. But they fought

against great odds, and were inevitably overborne. The opposition was organized, ably led, and white-hot with zeal. The political power and the wealth of the South lay in the hands of the secessionists. The clergy threw their weight on that side, preaching that slavery, God's ordinance, was in danger. Union proclivities were crushed out by force. Vigilance committees were everywhere on the alert. In the rougher States of the Southwest abolitionists were tarred and feathered. Some were shot. In all the States Union men were warned to keep quiet or leave the South. One of the most powerful agents of intimidation was the Knights of the Golden Circle, a vast secret society which extended throughout the southern States.

Yet, in spite of all, the vote was close even in several of the cotton States. The Georgia people wanted new safeguards for slavery, but did not at first desire secession. Alexander H. Stephens, who headed the anti-secession movement, declared that Georgia was won over to take the fatal step at last only by the cry, "Better terms can be made out of the Union than in it." Even then the first vote for secession stood only 165 to 130. In Louisiana the popular vote for convention delegates was 20,000 for secession and 17,000 against.

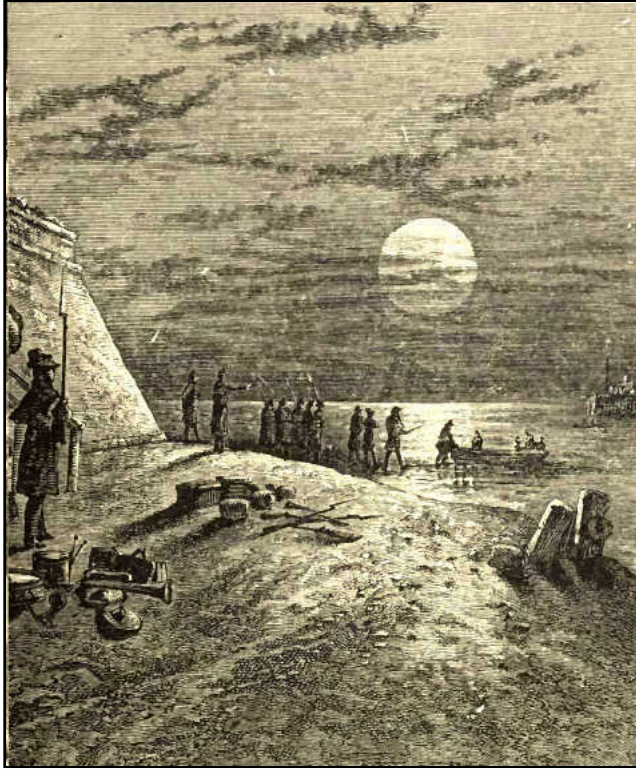
The border States held aloof. Kentucky and Tennessee refused to call conventions. So, for long, did North Carolina. The convention of Virginia and of Missouri each had a majority of Union delegates. When the Confederate Government was organized in February, only seven of the fifteen slave States had seceded. Their white population was about 2,600,000, or less than half that of the entire slave region. But Arkansas and North Carolina were soon swept along by the current, and seceded in May. Virginia and Tennessee were finally carried (the former in May, the latter in June) by the aid of troops, who swarmed in from the seceded States, and turned the elections into a farce. Unionists in the Virginia Convention were given the choice to vote secession, leave, or be hanged. Missouri, Kentucky, Delaware, and Maryland resisted all attempts to drag them into the Confederacy, though the first two, after the United States began to apply force, appeared neutral rather than loyal.

The seizure of United States property went hand in hand with secession. Most of the government works were feebly garrisoned, and made no resistance. By January 15th the secessionists had possession of arsenals at Augusta, Ga., Mount Vernon, Ala., Fayetteville, N. C., Chattahoochee, Fla., and Baton Rouge, La., of forts in Alabama and Georgia, of a navy-yard at Pensacola, Fla., and of Forts Jackson and St. Philip, commanding the mouth of the Mississippi. At one arsenal they found 150,000 pounds of powder, at another 22,000 muskets and rifles, besides ammunition and cannon, at another 50,000 small arms and 20 heavy guns. The whole South had been well supplied with military stores by the enterprising foresight of J. B. Floyd, of Virginia, Buchanan's Secretary of War, who had sent thither 115,000 muskets from the Springfield arsenal alone.



Major Robert Anderson.

Fort Moultrie, in Charleston harbor, was held by Major Robert Anderson, of Kentucky, with a garrison of some seventy men. On December 27th the whole country was thrilled, and the South enraged, by the news that on the previous night Anderson had secretly transferred his whole force to Fort Sumter, a new and stronger work in the centre of the harbor, leaving spiked cannon and burning gun-carriages behind him at Moultrie. The South Carolina militia at once occupied the deserted fortress with the other harbor fortifications, and began to put them into a state of defence. At Pensacola, Fla., Lieutenant Slemmer, by a movement similar to Anderson's, held Fort Pickens.



Major Anderson removing his Forces from Fort Moultrie to Fort Sumter, December 26, 1861.

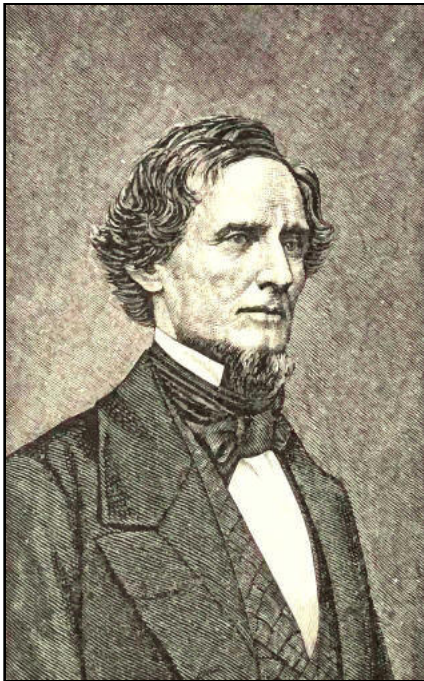
The seizure of government property went on through January and February. In Louisiana all the commissary stores were confiscated, and the revenue cutter McClelland surrendered. The mint at New Orleans, containing over half a million in gold and silver, was seized. More than half of the regular army were stationed in Texas, under General Twiggs. In February, at the demand of a secessionist committee of public safety, he surrendered his entire force, together with eighteen military posts. The troops were sent to a Gulf port and there detained.

This wholesale seizure of government property, worth some \$20,000,000, has brought down upon the South much scathing rebuke. The conduct of Floyd, stabbing his country under the cloak of a cabinet office, cannot be too strongly condemned; but with the seceding States the case was different. Having (so they thought) established themselves as independent republics, they could not allow the military works within their borders to remain in the hands of a foreign power. As to the Government's property right, they recognized it, and proposed to pay damages. The provisional constitution of the Confederacy, adopted in February, provided for negotiations to settle the claim of the United States.

The southern leaders were not more anxious to get the slave States out of the Union than to get them into a grand Southern Confederacy. Early in January a caucus of secession congressmen was held at Washington, and arrangements made for a constitutional convention.

February 4, 1861, delegates from the States which had left the Union met

at Montgomery, Ala., and formed themselves into a provisional Congress. A temporary government, styled "The Confederate States of America," was soon organized. Jefferson Davis, of Mississippi, was chosen President by the Congress, and Alexander H. Stephens, of Georgia, Vice-President. Davis was born in Kentucky in 1808. He graduated at West Point, fought as colonel in the Mexican war, served three terms as congressman from Mississippi, the last two in the Senate, and was Secretary of War under Pierce. After Calhoun's death, in 1850, he became the most prominent of the ultra southern leaders. The new President was brought from Jackson, Miss., to Montgomery by a special train, his progress a continual ovation. Cheering crowds gathered at every station to see and hear him. February 18th Davis was inaugurated. In his address, which was calm and moderate in tone, he declared that reunion was now "neither practicable nor desirable;" he hoped for peace, but said that if the North refused this, the South must appeal to arms, secure in the blessing of God on a just cause.

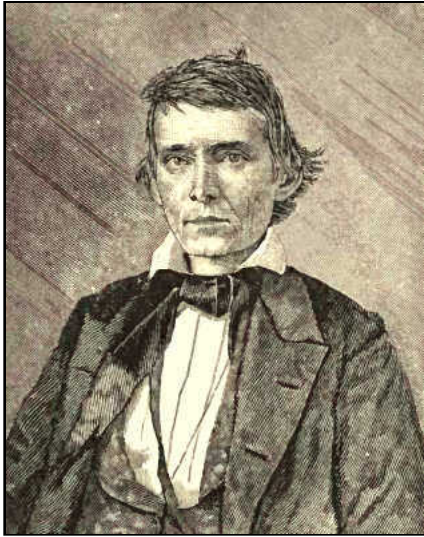


Jefferson Davis.

The Confederate President was intrusted with very large powers, including supreme control of military affairs. He was authorized to muster into the service of the central government the regiments which had been forming in the various States. A call was issued for 100,000 volunteers, and provision made for organizing a regular army. President Davis appointed a cabinet, with state, treasury, war, navy, and post-office departments. Robert Toombs, of Georgia, a rabid secessionist, became Secretary of State.

March 11th the Confederate Congress adopted a permanent constitution. It reproduced that of the United States, with some important changes. State sovereignty was recognized in the preamble, which read, "We, the people of the Confederate States, each State acting in its sovereign and

independent character," etc. Slavery was called by name, and elaborate safeguards fixed for it in the States and Territories. Slave-trade from beyond the sea, or with states not in the Confederacy, was, however, prohibited. Protective tariffs were absolutely forbidden. The president and vice-president were to serve six years, and the former could not be re-elected. Some valuable features were inserted. Members of the cabinet might discuss matters pertaining to their departments in either house of congress. The president could veto one part of an appropriation bill without killing the whole, and was required to lay before the senate his reasons for the removal of any officers from the civil service.



Alexander H. Stephens.

By the last of April all the seceded States had ratified this constitution. The other slave States were taken in as fast as they withdrew from the Union. The Southern Confederacy, now fairly launched, set sail over strange seas upon its short but eventful voyage. At the start the hopes of those it bore rose high. Few believed that the North would dare draw sword. Even if it should, the southern heart, proud and brave, felt sure of victory. King Cotton would win Europe to their side. Peace would come soon. Visions of a glorious future dazzled the imaginative mind of the South. A vast slave empire, founded on the "great physical, philosophical, and moral truth" that slavery is the "natural condition," of the inferior black race, would spread encircling arms around the Great Gulf, swallowing up the feeble states of Mexico, and rise to a wealth and glory unparalleled in the history of nations.

CHAPTER III.

THE NORTH IN THE WINTER OF 1860-61

[1860-1861]

At the beginning of the secession movement the North slumbered and

slept. Even South Carolina's withdrawal from the Union caused little alarm. "She will be glad enough to come back before long," prophesied many. As the revolution progressed there was a gradual awakening, but division of opinion paralyzed action. Ultra Abolitionists, with a few others, urged that the South be let go in peace. Most Republicans favored the preservation of the Union by force of arms if necessary; but nearly all Democrats, with many Republicans, wished for compromise. Of the latter class a few prayed the prodigals to return on their own terms. More proposed a rigid enforcement of the fugitive slave law, the repeal of personal liberty legislation, and acquiescence in the Dred Scott decision, with all future like decrees of the Supreme Court. This may be called the northern-democratic position. The most pronounced Republicans, as Seward and Stanton, would gladly have voted to re-enforce the Constitution's guarantee to slavery in the slave States.

Throughout the North the feeling was strong against all efforts at coercion. Most democratic papers and many republican ones insisted loudly that use of arms was not to be mentioned, and that the South must be conciliated. A democratic convention met at Albany in January, to protest against forcible measures. The sentiment that if force were to be used it should be "inaugurated at home," here evoked hearty response. There were signs of even a deeper disaffection. An ex-governor of New Jersey declared that his State would join the Confederacy. Mayor Wood, of New York, proposed that if the Union were broken up, his city should announce herself an independent republic.

At Washington matters were still worse. President Buchanan, loyal but weak, feared to lift a finger. In his December message to Congress, he insisted that a State had no right to secede, but that the United States had no power to coerce a State which should secede. A majority of his cabinet were southern men, three of them zealous secessionists. His most intimate friends in Congress were southerners. These surrounded the vacillating Chief Magistrate, and paralyzed what little energy was in him, meanwhile taking advantage of his inaction to launch the Confederacy. Now and then, spurred on by loyal old General Scott and by the Union members of his cabinet, the President tried to break away from the toils which the conspirators had spun around him. The Star of the West was secretly sent with supplies and recruits to re-enforce Fort Sumter. But Secretary Thompson warned South Carolina, and when the vessel arrived off Charleston, January 9th, hostile batteries fired upon her and forced her out to sea again. Another plan to relieve the fort was half formed, but came to nothing. Buchanan's term was on the point of expiring, and he sat supinely looking on while the disruption of the Union proceeded apace.

The northern side in Congress showed little wisdom or spirit. Most northern congressmen truckled to the South or wasted their energies in fruitless attempts at compromise. Both houses, each by more than a two-thirds majority, recommended a constitutional amendment depriving Congress forever of the power to touch slavery in any State without the consent of all the States. In December the venerable Crittenden, of Kentucky, laid before the Senate his famous Suggestions for Compromise. These, besides embodying the above amendment, restored the Missouri Compromise, let each new State decide for itself whether it would be slave or free, and forbade Congress to abolish slavery in the District of Columbia or interfere with the inter-state transportation of slaves.

The United States was to pay for all fugitives whose capture should be successfully prevented, and slaves as slaves could be carried through free States. This measure, before Congress all winter, was finally lost only for lack of southern votes.

A peace congress, called by Virginia, met at Washington in February. Most of the northern States were represented and all the southern which had not seceded. It sat for three weeks, and adopted resolutions identical in substance with the Crittenden Compromise. These dangerously large offers of concession, mainly well meant, happily proved useless. The South had gone too far. She did not want compromise, but was bent upon setting up a slave empire.

Mr. Lincoln arrived safely in Washington on February 23d, having eluded a rumored plot to assassinate him in Baltimore. He accomplished this by assuming a slight disguise and taking an earlier train than the one in which he had been announced to go. He was duly inaugurated on March 4th. In his inaugural he disclaimed all purpose to interfere with slavery in the slave States, yet denied the right of secession, and proposed to regain and hold the property and places belonging to the United States in all parts thereof. There would be no bloodshed, he said, unless it were forced upon the Government. "In your hands, my dissatisfied fellow-countrymen," so ran his memorable words, "in your hands, not in mine, is the momentous issue of civil war. You can have no conflict without being yourselves the aggressors. We are not enemies, but friends." This message, held out as an olive branch, the South denounced as a menace. Some northern papers condemned it as the "knell and requiem of the Union." But the general feeling it evoked at the North was one of rejoicing. People believed that a hand both moderate and firm had at length seized the helm.

The new President stood faced by an herculean task. Congress was not yet fully purged of traitors, while Washington still swarmed with their friends and agents. Floyd's treachery had tied Lincoln's hands. All the best munitions of war had been sent south. Of the rifled cannon belonging to the United States not one was left. Only a handful of regular troops were within call, and the resignations of their officers came in daily. The plight of the navy and treasury was no better. Amazing coolness and the absurd prejudice against coercing States largely possessed even the loyal masses. The attack on Sumter was thus a god-send.

April 8th, Governor Pickens received notice from President Lincoln that an attempt would be made to provision that fort. Thereupon General Beauregard, who had left the United States army to take charge of the fortifications at Charleston, was ordered by President Davis to demand its evacuation. Major Anderson replied that they should be starved out by the 15th, and would leave the fort then unless his Government sent supplies. This answer was held unsatisfactory, and at 3.20 on the morning of April 12th Beauregard notified Anderson that his batteries would open fire in one hour.

Fort Sumter stood on an artificial island at the entrance of the harbor. It was pentagonal in shape, the walls of brick, eight feet thick and forty feet high. The parapet was pierced for 140 guns, but only 48 were in condition for use. The garrison, including some 40 workmen and a

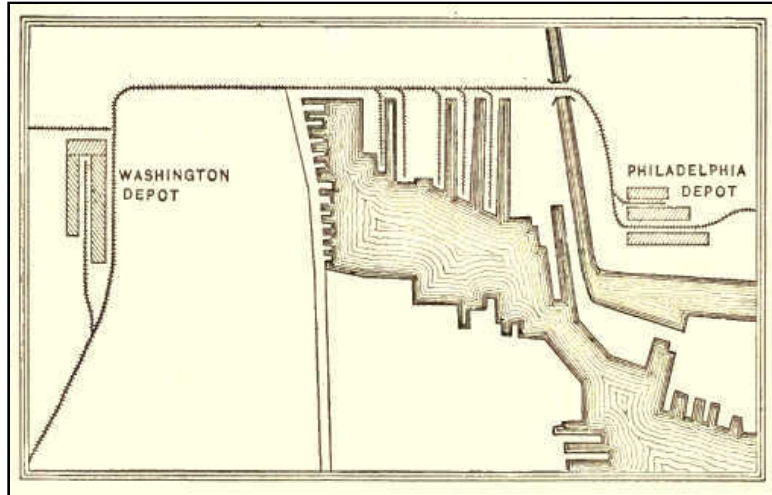
band, numbered 128. Surrounding the fort on all sides except toward the sea, and distant from 1,300 to 2,500 yards, 19 Confederate batteries were in position, mounting 47 cannon and mortars, and manned by 3,000 or 4,000 volunteers. These works were provided with bomb-proofs made of railroad iron or of palmetto logs and sand.

The wharves, roofs, and steeples of Charleston were black with expectant crowds, straining their eyes down the harbor where the silent castle loomed up through the dim morning light. Boom! From a mortar battery to the south a bombshell rises high into the air, describes its graceful trajectory and falls within Sumter's enclosure. It is the signal gun. One battery after another responds, until in less than an hour the stronghold is girt by an almost continuous circle of flashing artillery. Shells scream through the air and explode above the doomed work, and great cannon-balls bury themselves in the brick walls. Still Sumter speaks not. Anderson is waiting for daylight. About six o'clock he breakfasts his garrison on pork and water, the only provisions left. An hour later the embrasures are opened, the black guns run out, and Sumter hurls back her answer to the voice of rebellion. The bombs making it unsafe to use the barbette cannons of the open rampart, Anderson was confined to his twenty-one casemate pieces, mostly of light calibre. The fire was kept up briskly all the morning. Sumter stood it well, but did little damage to the opposing batteries. At sunset the guns of both sides became silent, but the mortars maintained a slow fire through the night.

Early next morning the cannonade opened afresh, and in the course of the forenoon hot shot set fire to Sumter's wooden barracks. The flames soon got beyond control; the powder magazine had to be closed; and the heat and smoke became so stifling that the garrison was forced, in order to avoid suffocation, to lie face downward upon the floor, each man with a wet cloth at his mouth. Powder was at last exhausted. About one o'clock the flag was shot away. It was immediately raised again upon a low jury-mast, but could not be seen for the smoke, and Beauregard sent to ask if Anderson had surrendered. The latter offered to evacuate upon the terms named before the bombardment, to which Beauregard agreed, and all firing ceased. The next day at noon, after a salute of fifty guns to their flag, Major Anderson and his men evacuated the scene of their heroism, and soon after took passage for New York.

The disunion leaders had rightly calculated that an open blow would bring the border slave States into the Confederacy; but they had not anticipated the effect of such a deed beyond Mason and Dixon's line. When it was known that the old flag had been fired upon, a thrill of passionate rage electrified the North from Maine to Oregon. Then was witnessed an uprising unparalleled in our history if not in that of mankind. From every city, town, and hamlet, loud and earnest came the call, "The Union must be preserved! Away with compromise! Away with further attempts to conciliate traitors! To arms!" Slavery might do all else, so little did most northerners yet feel its evil, but it could not rend the Union. Pulpit, platform, and press echoed with patriotic cries. Everywhere were Union meetings, speeches, and parades. Union badges decked everyone's clothing, and the Stars and Stripes were kept unfurled as only on national holidays before. In New York City a mass-meeting of two hundred thousand declared for war. The New York Herald changed its sneer to a war-blast. Party lines were thrown down. Democrats like

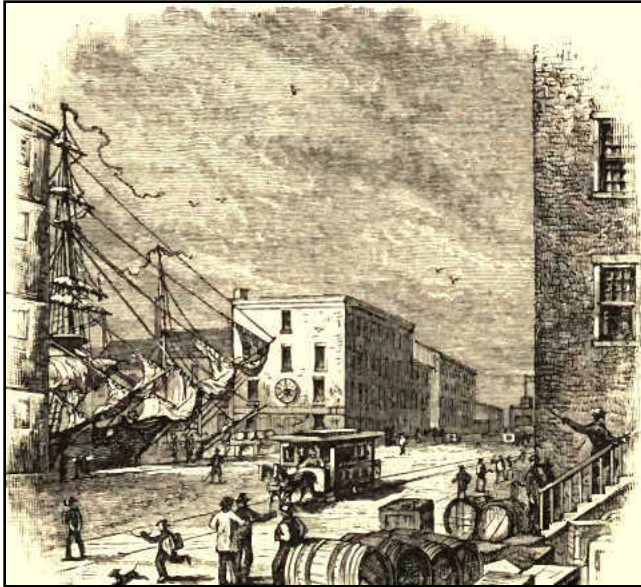
Butler, Cass, and Dickinson were in the Union van. Senator Douglas, lately Lincoln's antagonist, and at first strongly opposed to coercion, went through the West arousing the people by his patriotic eloquence. "There can be no neutrals now," were his words, "only patriots and traitors."



Route of the Sixth Massachusetts Troops through Baltimore.]

April 15th, President Lincoln issued a call for seventy-five thousand volunteers, and each free State responded with twice its quota. Enlisting offices were opened in every town and hamlet, and the roll of the drum and the tramp of armed men with faces set southward were heard all over the North. First to march was the Sixth Massachusetts Regiment. Forming on Boston Common it took cars for Washington on April 17th, reaching Baltimore on the morning of the 19th.

Maryland was trembling in the balance between Union and disunion. A determined disunionist minority was working with might and main to drag the State into secession. Baltimore was white-hot with southern zeal, determined that the Bay State troops should never reach Washington through that metropolis. Eight of the cars containing the soldiers were drawn safely across the city. The next was assailed by a hooting mob, and the windows smashed in by bricks and paving stones. Some of the soldiers were wounded by pistol shots, and a scattering fire was returned. Sand, stones, anchors, and other obstructions were heaped upon the track. The remaining four companies therefore left the cars and started to march. They soon met the mob, flying a secession flag. A melee ensued. The troops moved double-quick toward the Washington depot, surrounded by a seething mass of infuriated secessionists filling the air with their brick-bats and stones, while bullets whizzed from sidewalks and windows. The troops returned the fire, and several in the crowd fell. The chief of police with fifty officers appeared on the scene, who, by presenting cocked revolvers, held the rioters in check for a while, till the distressed troops could join their comrades. Baltimore was in the hands of this secessionist band for the rest of the day. The bridges north of that city were also burned, so that no more troops could reach Washington by this route.



Scene of the First Bloodshed, at Baltimore.

Meanwhile the capital city was in great peril, devotees of the South being each moment expected to make an attack upon it. Only fifteen companies of local militia and six of regulars were present at inauguration time, stationed by General Scott at critical points in the city. Pickets were posted continually on roads and bridges outside. Four hundred Pennsylvania troops happily arrived on April 18th, and the next day came the Sixth Massachusetts. But the city was not yet secure. There were reports that large bodies of men were gathering in Maryland and Virginia for a descent upon it. Washington was put in a state of siege, the public buildings barricaded and provided with sentinels. The Government seized the Potomac steamers and also all the flour within reach. Business ceased. Alarmed by rumors of a military impressment, hundreds of government clerks, besides officers in the army and navy, came out in their true colors and fled south. Enemies at Baltimore had cut off telegraphic communication between Washington and the North. Reports came that re-enforcements were on the way, but day followed day without witnessing their arrival. The President and all Unionists were in an agony of suspense.



The Routes of Approach to Washington.
Russell & Struthers, Eng's, N. York.

On April 22d the Eighth Massachusetts, under General B. F. Butler, and the famous Seventh Regiment from New York City, met at Annapolis. Here they were delayed several days. Governor Hicks had warned them not to land on Maryland soil. The railroad to Washington had been torn up for many miles and the engines damaged. Among his troops Butler found the very machinists who had made the engines. Repairs were promptly effected, the track re-laid, and about noon of the 25th the gallant New Yorkers landed in Washington amid the joyful shouts of the loyal populace. Up Pennsylvania Avenue swept the solid ranks, bands playing and colors flying, to gladden the heart of the careworn President as he welcomed them at the White House. A sudden change came over the city. Secessionists slunk away, the faces of the loyal beamed with joy. The national capital was safe.



CHAPTER IV.

WAR BEGUN

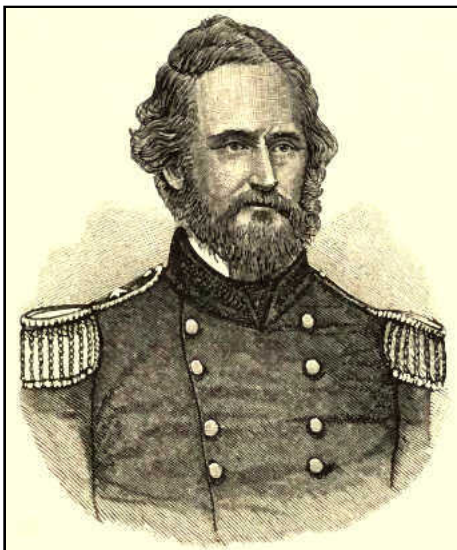
[1861]

It was now apparent to both North and South that war was inevitable. Yet neither side believed the other in full earnest or dreamed of a long struggle. Sanguine northerners looked to see the rebellion stamped out in thirty days. The more cautious allowed three months.

The President, however, soon saw that more troops, enlisted for a longer term, would be necessary. At the outset the South certainly possessed decided advantages: greater earnestness, more men of leisure aching for war and accustomed to saddle and firearms, a militia better organized, owing to fear of slave insurrections, and now for a long time in special training, and withal a certain soldierly fire and dash native to the people. The South also had superior arms. Enlistments there were prompt and abundant. The troops were ably commanded, 262 of the 951 regular army officers whom secession found in service, including many very high in rank, joining their States in the new cause, besides a large number of West Point graduates from civil life.

Accordingly on May 3d Mr. Lincoln issued a new call for troops, 42,000 volunteers to serve three years or during the war, 23,000 regulars, and 18,000 seamen. It was of first importance to secure Maryland for the Union. On the night of May 13th, under cover of a thunderstorm, General Butler suddenly entered rebellious Baltimore with less than 1,000 men, and entrenched upon Federal Hill. Overawed by this bold move, the secessionists made no resistance. A political reaction soon set in throughout the State, which became firmly Unionist. Baltimore was once more open to the passage of troops, who kept steadily hurrying to the front.

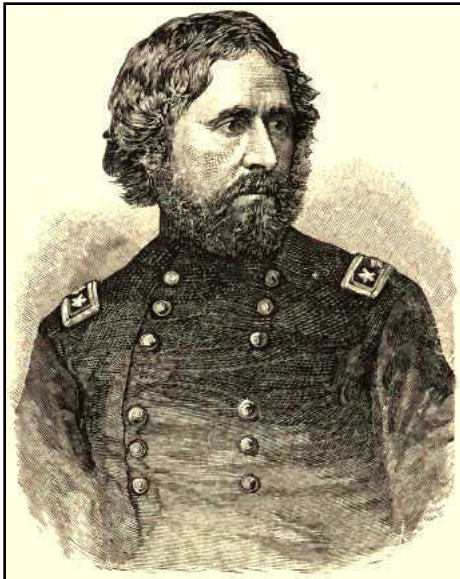
Meanwhile the Confederate forces were getting uncomfortably close to Washington. From the White House a secession flag could be seen flying at Alexandria, which was occupied by a small pro-secession garrison. There was fear lest that party would occupy Arlington Heights, across from Washington, and thence pour shot and shell into the city. At two o'clock on the morning of May 24th, eight regiments crossed the Potomac and took possession of these hills as far south as Alexandria, and fortified them. The latter place was entered by Colonel Ellsworth with his famous New York Zouaves. No resistance was made, as the Confederates had retired, but Ellsworth was brutally assassinated while hauling down the secession flag.



Captain Nathaniel Lyon.

Upon the secession of Virginia the Confederate capital was removed to Richmond. The main armies of both sides were now encamped on Old Dominion soil, and at no great distance apart; but the commanders were busy drilling their raw troops, so that for a time only trifling engagements occurred. General Butler, with a considerable body of men, was occupying Fortress Monroe, at the mouth of the James River. June 10th, an expedition sent by him against the Confederates at Big Bethel, some twelve miles distant, was repulsed after a spirited attack, with a total loss of sixty-eight. A week later an Ohio regiment took the cars to make a reconnoissance toward Vienna, a village not far south of Washington. They were surprised by Confederates, who placed two guns on the track and fired on the train as it came around a curve. The Ohioans sprang to the ground, and after some fighting drove their opponents back.

All this time both North and South were struggling for possession of the neutral States. Governor Jackson, of Missouri, was straining every nerve to force his State into secession. Early in May two or three regiments of militia were got together and drilled in a camp near St. Louis. Cannon were sent by President Davis, boxed up and marked "marble." Captain Lyon, of the regular army, who held the St. Louis arsenal with a few companies, reconnoitred the secessionist camp in female dress. The next day, May 10th, assisted by local militia, he suddenly surrounded it and took 1,200 prisoners. A month later he embarked some soldiers on three swift steamers, sailed up the Missouri to Jefferson City, the state capital, and raised the Union flag once more over the State House. Governor Jackson fled. During the next month all the armed disunionists were driven into the southwestern part of the State.



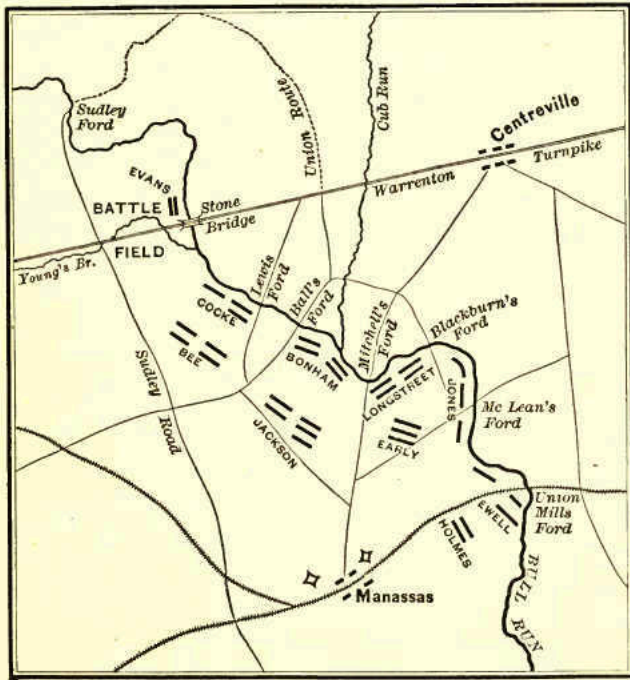
General John C. Fremont.

The last of July a state convention organized a provisional government and declared for the Union. But the secessionists, under General Price,

continued the struggle. The Union forces, after a brave fight against great odds at Wilson's Creek, August 10th, in which Lyon was killed, had to retreat north. General Fremont had shortly before been put at the head of the Western Department, which included Missouri, Kentucky, Illinois, and Kansas. His difficulties were great. He was unable to clear the State of secessionists, who besieged Lexington and took it on September 20th. Generals Hunter and Halleck, Fremont's successors, were equally unsuccessful, and the State was harassed by a petty warfare all the year.

In Kentucky, Governor Magoffin was inclined to secession. The Legislature leaned the other way, but preferred neutrality to active participation on either side. September 6th, Brigadier-General U. S. Grant occupied Paducah, an important strategical point at the junction of the Ohio and Tennessee rivers. Next day the Confederate General Polk, advancing from below, took possession of Columbus on the Mississippi. With both hostile armies thus encamped on her soil, Kentucky could no longer be neutral. Her decision was quickly taken. The Legislature demanded of President Davis to withdraw Polk's forces, at the same time calling upon General Anderson, the hero of Sumter, who had been placed in charge of the Department of the Cumberland, to take active measures for the defence of this his native State.

The mountain portion of Virginia belonged to the West rather than to the South. It contained only 18,000 slaves, against nearly 500,000 in Eastern Virginia. Union sentiment was therefore strong, and when the old State seceded from the Union, Western Virginia proceeded to secede from the State. General Lee sent troops to hold it for the Confederacy. Thereupon General McClellan, commanding the Department of the Ohio, threw several regiments across the river into Virginia, and defeated the foe in minor engagements at Philippi, Rich Mountain, and Carrick's Ford. By the middle of July he was able to report, "Secession is killed in this country." Later in the year the Confederates renewed their attempts, but were finally driven out. West Virginia organized a separate government, and was subsequently admitted to the Union as a State by itself.



Bull Run--the Field of Strategy.

While these struggles were going on in the border commonwealths, the Union soldiers lay inactive along the Potomac. Constant drill had changed the mob into some semblance of an organized army, but the careful Scott feared to risk a general engagement. The hostile forces stretched in three pairs of groups across Virginia from northwest to southeast. In the southeastern part of the State, at Fortress Monroe, Butler faced the Confederate Magruder. At Manassas, opposite Washington, and about thirty miles southwest, lay a Confederate army under General Beauregard. General Patterson, a veteran of the War of 1812, commanded considerable forces in Southern Pennsylvania. About the middle of June he advanced against Harper's Ferry, which had been abandoned by the Unionists the latter part of April and was now occupied by General Joseph E. Johnston. Johnston evacuated the place upon Patterson's approach, and retreated up the Shenandoah Valley, in a southwesterly direction, to Winchester. Patterson followed part way, and the two armies now lay watching each other.

Anxious to see the rebellion put down by one blow, the North was becoming impatient. "On to Richmond!" was the ceaseless cry. Yielding to this, Scott ordered an advance. July 16th, General McDowell, leaving one division to protect Washington, led forth an army 28,000 strong to attack the enemy at Manassas. He advanced slowly and with great caution. The enemy were found posted in a line eight miles long upon the south bank of Bull Run, a small river three miles east of Manassas, running in a southeasterly direction. Several days were spent in reconnoitering. Meanwhile, Johnston, whom Patterson was expected to hold at Winchester, had stolen away to join Beauregard, their combined forces numbering about 30,000. McDowell was ignorant of Johnston's movement, supposing him still at Winchester.



General Irvin McDowell.

On the morning of the 21st McDowell advanced to the attack. Beauregard held all the lower fords, besides a stone bridge on the Warrenton turnpike which crosses the river at right angles. Two divisions, under Hunter and Heintzelman, were set in motion before sunrise to make a flanking detour and cross Bull Run at Sudley's Ford, some distance farther up. To distract attention from this movement, Tyler's division began an attack at the stone bridge. This was held by a regiment and a half, with four guns, under General Evans. He replied vigorously at first, but perceiving after a while that Tyler was only feigning, and learning of the flank movement above, he left four companies at the bridge and drew up the rest of his forces on a ridge north of Warrenton turnpike to await Hunter and Heintzelman's approach down the Sudley road.

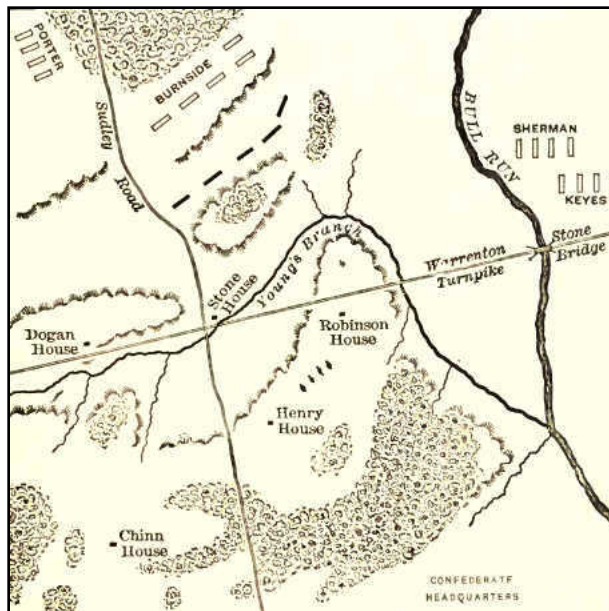


General Samuel P. Heintzelman.

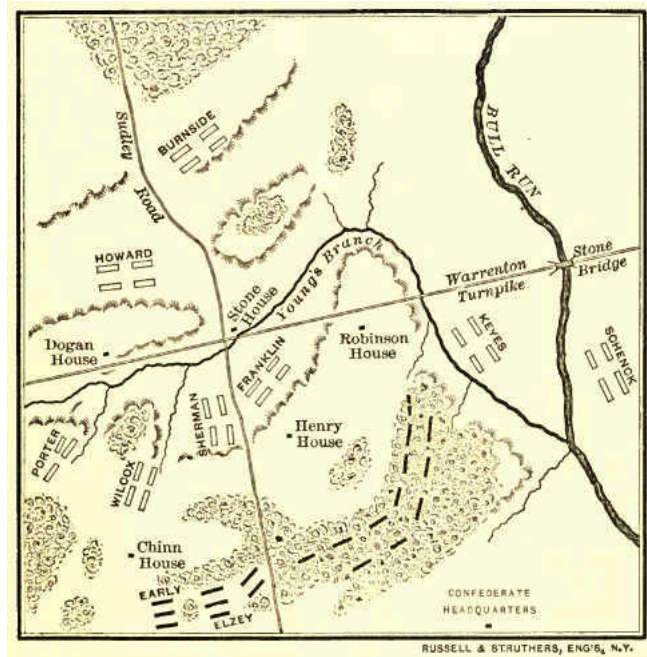
The fight began about ten o'clock. Both sides were soon re-enforced.

After two hours' stubborn fighting the Confederates were driven back across the pike, beyond Young's Branch of Bull Run, and took up a second position on a hill each side of the Henry House. The whole Union force had now crossed Bull Run. Griffin's and Ricketts' powerful batteries were posted in favorable positions, whence they poured a deadly fire upon the Confederates. The whole Union line advanced to the turnpike. About two o'clock the Confederates were forced to abandon their second position and fall back still farther.

Early in the morning Beauregard and Johnston had given orders for an attack upon the Union forces across the river, not knowing that McDowell had assumed the offensive. These orders were now countermanded, and all available troops hurried up the Sudley road toward the Warrenton pike front. Till after noon the prospect for the Confederates looked gloomy. They had been steadily driven back. Some of their regiments had lost heavily, while all were more or less demoralized. Johnston and Beauregard gave their personal direction to re-forming the line upon a second ridge to the south of the Warrenton pike, under cover of a semicircular piece of woods. Twelve regiments, with twenty-two guns and two companies of cavalry, concentrated in this favorable position and awaited the Union advance.



and forth. The guns are three times captured and lost again. The fight becomes general along the Confederate centre and left. The Union generals are getting alarmed. So far they have been confident of victory. Now regiment after regiment is going to pieces in this terrific melee, and still the "rebels" hold their ground. About half-past four o'clock General Early arrives by rail with three thousand more of Johnston's army, and, assisted by a battery and five companies of cavalry, bursts upon the extreme right flank and rear of McDowell's line.



Bull Run--Battle of the Afternoon.

This manoeuvre decided the day. The Union ranks waver, break, flee. The centre and left soon follow, though in better order. Union and Confederate generals alike were astonished at the sudden change. McDowell found it impossible to stem the tide once set in, and gave orders to fall back across Bull Run to Centreville, where his reserves were stationed. As the retreat went on it turned to a downright rout. The Confederates made only a feeble pursuit, but fear of pursuit spread alarm through the flying ranks, demoralized by long marching and hard fighting. Baggage and ammunition-wagons, ambulances, private vehicles which had been standing in the rear, joined the sweeping tide, adding to the confusion and in some places causing temporary blockade. Frightened teamsters cut traces and galloped recklessly away. Panic and stampede resulted, soon reaching the soldiers. Flinging away muskets and knapsacks, they sought safety in flight. The army entered Centreville a disorganized mass. Fugitives could not be stayed even there, but streamed through and on toward Washington. McDowell gave the order to continue the retreat. The reserve brigades, with the one regiment of regulars, covered the rear in good order. All that night the crazy hustle to the rear was kept up, and on Monday the hungry and exhausted stragglers poured into Washington under a drizzling rain, the people

receiving them with heavy hearts but generous hands.



General Joseph E. Johnston.

The Union loss was 481 killed, 1,011 wounded, 1,460 prisoners. Twenty-five guns were lost, thirteen of them on the retreat. The Confederate loss was 387 killed, 1,580 wounded. The numbers actively engaged were about 18,000 on each side. General Sherman pronounced Bull Run "one of the best planned battles of the war, but one of the worst fought." The latter fact was but natural. The troops on both sides were poorly drilled, and most of them had never been under fire before. Precision of movement, concert of action on any large scale, were impossible. Neither side needed to be ashamed of this initial trial.

The North was at first much cast down. The faint-hearted considered the Union hopelessly lost, but pluck and patriotism carried the day. On the morrow after the battle Congress voted that an army of 500,000 should be raised, and appropriated \$500,000,000 to carry on the war. General McClellan, whose brilliant campaign in West Virginia had won him easy fame, was put in command of the Army of the Potomac. The young general was a West Point graduate and had served with distinction in the Mexican War. An accomplished military student, a skilful engineer, and a superb organizer, he threw himself with energy into the task of fortifying Washington and building up a splendid army. Many of the three-months volunteers re-enlisted. Thousands of new recruits came flocking to camp, and before long companies, regiments, and brigades amounting to 150,000 men were drilling daily on the banks of the Potomac, while formidable works crowned the entire crest of Arlington Heights. In October the aged General Scott resigned, and McClellan, at the summit of his popularity with army and people, became commander-in-chief.



General George B. McClellan.

For several weeks after Bull Run it was feared that Beauregard and his men would descend upon Washington, then in a defenceless condition; but they were in no state to attack. They too felt the need of preparation for the coming struggle, whose magnitude both sides now began to realize.

A disheartening affair occurred in October. On the night of the 20th two Massachusetts regiments crossed the Potomac at Ball's Bluff, a few miles above Washington, to surprise a hostile camp which according to rumor had been established there. A large force concealed in the woods attacked and forced them to retreat. They were re-enforced by 1,900 men under Colonel Baker. The enemy were also re-enforced. Baker was killed and the Union soldiers driven over the bluff into the river. The boats were totally inadequate in number, and the men had to make their way across as best they could, exposed to the Confederate fire. The total Union loss was 1,000.

On the whole, then, the South had reason to be gratified with the aggregate result of the first year of war. Bull Run gave the Confederates a sense of invincibility, and the ready recognition by the foreign powers of their rights as belligerents, offered hope that England would soon acknowledge their independence itself. And they thought that the North had been doing its best when it had only been getting ready.

END OF VOLUME III.
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